

Phil 241 The Philosophy of Politics: Part 2

Numbered Transcript

PHIL 241 • Dr. Stephen R. C. Hicks

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Lecture 1: Rand's Rights

At a glance — Hicks opens Part 2 in 1945 with Ayn Rand and the philosophy of rights.

- 1.1 Let's begin this series in the Philosophy of Politics in 1945. 1945, because the Second World War finally comes to a close, the whole world breathes a sigh of relief, except for the losers of the war who are also devastated. But in the American context, a sigh of relief breathed because America had been fighting the war on two fronts, against the Germans led by the National Socialists under Hitler, against the Fascists in Italy led by Benito Mussolini and their allies, militaristic, collectivistic, dictatorial, totalitarian regimes. It was a terrible battle.
- 1.2 But then on the other side of the world, also against Japan, again, a militaristic, dictatorially oriented society, and another brutal front. Both fought successfully. Finally, by the time we get to the end of 1945, the war is over. Under the cultural and intellectual scene bursts a now middle-aged author, the Russian-born, now Americanized, Ayn Rand, the writer of philosophical novels and having had a significant career in Hollywood, doing various screenplays and so forth.
- 1.3 Now, Rand had been born in Russia, 1905. Russia was then under the Tsars. Her childhood had been marked by living through World War I in Russia, the Russian Revolution, where the Marx-inspired Communists led by Vladimir Lenin, who was going to die after five years or so, and then Stalin takes over, eliminates his political rivals.
- 1.4 Rand is at university in St. Petersburg, sees students of her age disappearing from their classes. It's always the outspoken ones who have their own views on political and various matters. She realizes fairly quickly that if she wants to write the kinds of novels that she wants to write, she's not going to be able to do it in communist Russia. She forges a plan to get out of Russia successfully and go to the United States, which seems to her to be a dream world come to reality, the place where all things noble and beautiful are occurring.
- 1.5 So in the 1930s, when Rand is getting settled in to the United States, you arrive in New York with that majestic skyline, and the Americans are doing wonderful things like building the Empire State Building, the tallest then building in the world. If you go across the land, new schools of architecture, such as those by Frank Lloyd Wright, on a more intimate scale, are developing new styles of architecture, more earth-loving, in harmony with nature, celebrating how humans live in their domestic life kinds of building.
- 1.6 As you to go further west, you get to Hollywood, as it was then called Hollywoodland, and all of those fantastic movies in the golden era of Hollywood. All of this is happening in the '30s, and it seems like a place of unlimited potential promise. If we jump then to the end of World War II, it seems like, OK, we did have the Depression, we did fight

World War II, but now we can get back to normal. Normal is progress and solving human problems and making lives happier and more fulfilled.

- 1.7 The inventiveness in the Western world, particularly in America, is manifesting itself once again. Transistor radios, everybody can listen to music anywhere at any time they want, and all kinds of radio stations to listen to. The development of television is sweeping the world and everyone can, with some savings, afford a television. Air conditioning, opening up the South and making summers more tolerable. New cars that are increasingly affordable, so everyone can have that freedom of travel.
- 1.8 Things that have typically killed large numbers of people, in many cases, children in their infancies, the new sciences of vaccination are going full force ahead. Polio vaccine, which had solved the problem of devastating disease for thousands and tens of thousands of young people. And pretty soon we're going to even be putting rockets into space, if you can imagine. So, enormous energy, productivity, potential, optimism. But at the same time, lots to worry about.
- 1.9 Now, Rand had, by the time we get into the '40s, Rand had written two novels, one in the 1930s, *We the Living*, in the 1940s, *The Fountainhead*, which slowly became a bestseller over time. And she's now working on what will be her most philosophical novel, *Atlas Shrugged*, to be published in the 1950s. All three of them end up being made into films. We have someone who knows, so to speak, the Hollywood mass market, who writes also for the thinking public.
- 1.10 As though we get into the 1950s, late 1940s on into the 1950s, she's increasingly concerned with what's actually going on in the political world. She had been largely shocked, not so much at the general American culture, in general, Western culture and all of its achievement, but with its intellectual culture, particularly its intellectual culture as it was applied to politics.
- 1.11 When she arrived in America in the 1920s, on into the 1930s, she expected this is going to be the nation where freedom is celebrated, individual rights are celebrated, free market capitalism and liberalism and democracy and republicanism are celebrated, and the individuals who are the smart people, the trained people, the intellectuals, are going to be on board with this. But to her shock, she found that many or most American intellectuals were on board with the worst of the trends that had taken over in Europe.
- 1.12 In the 1930s, in Italy, Italy is controlled by Mussolini and the Fascists, an explicitly anti-individualistic, anti-liberal totalitarian regime. In Germany, it is Adolf Hitler and the National Socialists, or the Nazis for short, another totalitarian, anti-individualistic, anti-capitalist regime that wants to reshape all of society and is increasingly clear that it's willing to exterminate large numbers of people who are in the wrong groups in order to achieve its ends.

- 1.13** The country that she came from, Russia, now the Soviet Union, in the thrall of a communist dictatorship, and development of concentration camps and the widespread torture and incarceration and execution of people who disagreed and had non-communist political ideas. When she arrives in America, and this decade, the 1930s, is sometimes informally called America's "red decade", when huge numbers of intellectuals are not really sure whom they admire more. Do they admire Stalin in Russia the most, or do they admire Hitler in Germany the most?
- 1.14** And then a smaller group of them saying, "No, Mussolini is really doing great stuff in Italy, and we should bring a lot of that." And very few are defending individualism, liberalism, republicanism, democracy, and capitalism. She is shocked by this. When we fast forward to the end of World War II, Rand is starting to be alarmed. But of course, on the continent, there are many defenders of liberal democracy and various sorts who are also alarmed with what the post-World War II political landscape looks like.
- 1.15** Most of Western Europe had been liberated by the Allied forces, the British, the French, the Canadians, and the Americans, and their various allies, and so forth. But all of Eastern Europe had been taken over by the Soviet Russians and was now under the control of a communist dictatorial government. There was, in 1946, just within the year of the end of World War II, Winston Churchill, then the Prime Minister of England, actually had been voted out of office very quickly after the war, but he's on a lecture tour in the United States, and he gives his famous Iron Curtain speech.
- 1.16** That what has happened now is not the liberation of the world from totalitarian and other kinds of military dictatorships, but a new kind of geopolitical ideological alignment. In the West, by and large, a number of nations committed to liberal democracy, republicanism, free markets, and so on, in varying degrees and in varying flavors.
- 1.17** But then this iron curtain, a huge wall, so to speak, that divides the West from the East, and the East is under a new kind of anti-democratic, anti-individualistic, anti-capitalist regime. We need to not rest on our laurels, having won World War II; we have a new battle ahead of us. The world then enters into what is going to dominate political thinking for the next 40 to 50 years, the so-called Cold War.
- 1.18** It's called a Cold War because, except for various skirmishes from the European and American perspective, outlying parts of the world, smaller countries in Asia, for example. And despite the threat of initially atomic and then nuclear weapons, that the two biggest nations are pointing at each other with incalculable, to the normal human mind, destructive power. The United States and the Soviet Union both have technological power to devastate and kill millions and tens of millions of people with these long-distance weapons. This is the new reality that we face.
- 1.19** So Rand, with the publication of *Atlas Shrugged* in 1957, a massive philosophical novel, increasingly turns her attention to writing non-fiction, collections of essays on all

aspects of philosophy, from moral philosophy to philosophy of art, to philosophy of cognition and epistemology, to also, what are the foundations of a proper political system, and from her perspective, how we can take the philosophy of the Enlightenment, the doctrine of individual rights, constitutional government, separation of powers—a healthy, dynamic free market economy that has been pushed to, a large extent, into the back burner as the 20th century has gone on, and intellectuals became increasingly attracted to opposing ideologies.

- 1.20** How can that be resuscitated, put on a better intellectual, especially philosophical, foundation? I want to turn next to a book. It was a collection of essays around this theme that was published in the early 1960s called *Capitalism, the Unknown Ideal*. What I want to do is focus on the most important, to my judgment, my philosophical judgment, essay in that, an essay called, "What Is Capitalism?"
- 1.21** It's an interesting question because Rand is arguing that capitalism is one of those situations or intellectual frameworks, institutional frameworks, that is sort of understood. That some of the political theorists had worked out some of the elements of it. Some of the economists had worked out some of the elements, but that the philosophers had done a terrible job at developing and defending the underlying foundations for both of them.
- 1.22** And as a philosophical novelist now doing straight-up philosophy, she wants to attend to what she sees as the missing foundational elements in the case for capitalism. Let's next go to the text. As I will be doing in each of these lectures, we'll spend perhaps 25 to 30 or 40% of the time not only sketching out the general context and the arguments that the philosopher is working within, or the political philosopher is working within, and how they answer various objections and what the various objections are, but reading the person in their own words.
- 1.23** It's enormously important. As these things typically go, sometimes philosophers do not write very clearly. In many cases, they're trying to develop brand new ideas. Terminology is often original, strange to our ear. The language is very complicated. They're dealing with deep, complicated issues. The normal thing is, when one reads a philosopher for the first time, you will understand a fraction of it. That's fine. That's normal. You go with it.
- 1.24** Hopefully, you've got an instructor or a guide or a professor who can do some interpretive stuff with that and always take that with some thanks, but also with a big grain of salt, because often instructors misunderstand very important things, and they also have their own ideological axes to grind and will want to push things in a certain direction. Do add to your mental list that you're going to go back to the text and read it for yourself with your own eyes and make up your own mind about what the best interpretation of the text is.

- 1.25** But let's start with, what is capitalism? And why might we think not only that capitalism is an ideal, Rand is going to argue that it's the best, it is an ideal system, but that even, and this sounds a little bit odd initially, by the time we're getting to the middle of the 20th century, that it's an unknown ideal, that it's not yet fully worked out and grasped in all of its significance by many people, even in some cases, its advocates. All right, plunge in.
- 1.26** "The disintegration of philosophy in the 19th century and its collapse in the 20th have led to a similar, though much slower and less obvious, process in the course of modern science." We start off with a big-picture claim. We're going to be talking about capitalism in the 20th century after World War II and so forth. Rand is immediately pointing us back to the 19th century, the 1800s.
- 1.27** One of the things that is characteristic of her philosophical approach is to say that philosophy is the mother science, so to speak, or it's the most, less metaphorically, foundational discipline. That politics is downstream, so to speak, from philosophy. That you can do a certain amount of philosophy, talk about particular policy proposals and debating this or that piece of legislation and so on. But that most of the debates we have over those are often philosophical in nature.
- 1.28** The reason why people have very unfruitful discussions about so many political matters is that the philosophical commitments that they are bringing to that politics is left unstated and never explicitly addressed. What Rand is going to argue and does argue frequently in her writings is that if we want to understand why politics and political systems and political ideologies get us worked up so strongly is that they are pushing our deepest buttons.
- 1.29** They are where we are going to put in practice and enforce by government, by the police, by the military, our deepest-held convictions. That every political philosophy is, in effect, a view on, or embodies a view on, what are the important values? We want to have good laws. Well, what is the good? We want to have just laws. Well, where do we get our standards of justice from? You need to have a worked-out understanding of morality. It has to be something that works for human beings because we're doing a political system for human beings.
- 1.30** Well, what is it to be a human being? You need to have a theory of human nature. If we're going to come up with big abstract principles and we think that we're going to integrate a certain amount of history in order to justify these laws that we are going to put into place and that we know that these are true and just and important laws, well, you are making a very big knowledge claim.
- 1.31** And what is knowledge? When do we really know? And that requires that you do something with respect to human cognition, and then more explicitly, even in epistemology. So necessarily, you're going to be talking about human nature and

epistemology and cognition and moral theory—and all of that, hopefully, is worked out in a thoughtful, accurate fashion. Then your politics is going to be an application of that.

- 1.32** What Rand is here making is not only a claim about the importance of philosophy, but also what happened historically to philosophy in the 19th century. So what she wants to say is, in the 18th century, that was the age of the Enlightenment. That was the age in which the American Revolution was prosecuted. We had strong notion of individual rights. Individuals matter. Individuals should be free in their conscience. They have their own right to life, right to liberty, right to property, the pursuit of happiness.
- 1.33** And we're going to work out a social system that enables millions and millions of people to live peacefully and productively in the course of doing so. That philosophy of the Enlightenment, Rand is arguing, by the time we get to the 19th century, is starting to collapse. Now, here I will just name-drop. But the famous philosophers stop being British and French Philosophers, and by the time we get into the 19th century, it's philosophers like Hegel and Schopenhauer and Karl Marx and Friedrich Nietzsche, who come to be seen in the world of philosophy as the giant brains, the most interesting, the most exciting, and their philosophies.
- 1.34** And Rand's claim is that they are all variations on irrationalism and skepticism, and most of them are anti-individualistic in varying degrees. It's the opposite of the philosophy of the Enlightenment. America, intellectually, is a young country in the 1800s. Most of its leading intellectuals, there's not very many of them, but they are reading the big brains in philosophy and political ideology and religion. They are reading the European, the trendy new wave of philosophies that are coming out of Europe, and starting to import those into the United States for disastrous results.
- 1.35** Now, Rand then wants to say, if we go even further back, this is one of her intellectual heroes, Aristotle, the great Greek philosopher, and her argument is, the Aristotelian approach to philosophy had been resuscitated in an empirical form early in the modern world. That led, this is a very short story, to the Enlightenment, but it is now anti-Aristotelian approaches, very broad strokes, that are starting to dominate.
- 1.36** "In the humanities, the crash is past." Maybe the best way to see what's going on, now that we're getting into the 20th century, is, what do we think of human beings and human ideals and human aspirations? It is a culture's artists who are most explicit about saying, "This is what I think the human project is all about, the status of human history." If we start then to look at the waves of art, the modernist art, and all of that weird stuff that's going on in the art world as the 20th century begins and accelerates.
- 1.37** Now we're right on the cusp, as we get to the middle part of the century, to the postmoderns, and it becomes even weirder and stranger and explicitly anti-rational, anti-humanistic as well. So Rand is making the claim that, intellectually, the humanities have collapsed, and we are into all kinds of weirdness and irrationality in the humanities.

- 1.38** She also says, though, that science, by and large, has been progressive, physics and chemistry and biology, all of those as part of the Enlightenment project. As we carry on, there's still the development in the modern sciences, and we start to see the development of new sciences and social sciences by the time we get to the 20th century—psychology, she mentions here, and political economy. It's going to be political economy that's the one that's very important to us here.
- 1.39** But from her perspective, if you look at where things stand, say, in this new and developing field of psychology in the 20th century, the two dominant movements, the way she puts it here, "In psychology, one can observe the attempt to study human behavior without reference to the fact that man is conscious." That's a very strong claim.
- 1.40** But the two dominant schools of psychology in the middle part of the 20th century are behaviorism, and the most famous name there is B. F. Skinner. And behaviorism wants to say we can, so to speak, explain all of human behavior without reference to any sort of internal psychological states, because we don't think that those could be verifiable and measurable and so on.
- 1.41** What we want to do is see the human being just as a stimulus response machine, with externally observable inputs and externally observable outputs, inputs and behaviors. We don't need to talk about consciousness and what's going on inside the mind, and that's not very important, and causally efficacious, anyway. If we turn to psychoanalysis and the Freudians, there the argument is that human being is at root an irrational animal driven by his id and all of these instincts that have been built up over the course of thousands and thousands of years.
- 1.42** What we call consciousness is just this rather weak epiphenomenal or superficial capacity that we have that tries to keep the id in check once in a while. But by and large, it's a matter of, the beast is going out and people are going to act on their sex instinct and their aggression instinct and so on. The vast amount of our understanding of what human beings are all about really is not about the consciousness, but about unconscious instinct, animal aggressiveness and sexual behavior. These are the two leading schools of psychology, not a pretty picture for the humanity.
- 1.43** In political economy, the argument here is going to be that, in many cases, what economists have done has become captured by collectivistic political philosophies. We don't really need to study the individual and why individuals make choices and do what they do. Instead, all action socially happens at the collective level, and we should be able to understand collective interactions. Marxism and Fascism and National Socialism are all explicitly collectivistic.
- 1.44** And even those economists who are not advocates of those ideologies will want to say that we don't really need to study individuals. We can have what we call macroeconomic models. If we can construct these abstract theoretical models of how

the economy goes, and all we need to do is see it as a system of levers and switches, or we push the interest rate here, we push the money supply here, then the economy is going to go the way we, the top-level designers of the economy, want it to go, and individuals will just follow along, more or less like puppets in this overall macroeconomic economy.

- 1.45 That's a lot of words unpacking what's built in here, that human beings and humanism has been, by and large. "Implicitly, uncritically, and by default, political economy accepted as axioms the fundamental tenets of collectivism." There's an important concept. Human beings are collective beings or human beings are individual beings. Is the unit of reality, the unit of agency, and then when we become normative, the unit of value, the individual—and that's what we are going to focus on and explain everything in terms of?
- 1.46 Or do we see individuals merely as belonging to a collective, and that it really is a collective of various sorts that are in collision with each other or doing various things? If we say, for example, that human beings have individual rights, that those are important, that's an individualistic thesis. If we say, your job is to serve your nation, well, the nation is a collection, it's a collective. If we say, you are to serve your economic class, well, a class is another collective. So it's individualism versus collectivism.
- 1.47 If you want to argue in political economy, even those economists in the West who are not Fascist in their economics, or National Socialist in their economics, or Marxist in their economics, or some other version of socialist in their economics, so Rand then makes the claim that political economy, which is our primary focus here, is not based on individualistic understandings of human beings, but rather on collectivist understandings, even by those who are not explicitly collectivist in their ideology.
- 1.48 So notice the language she uses here. If we think, well, what are we trying to do when we do economics, or we are politicians and we are thinking about the economy of our political unit? "Political economists defined their science as the study of the management or direction or organization or manipulation"—that's four possibilities—"of a community's or a nation's resources." You just go and look at the economics textbooks as they're being written. Say economics is the science of the allocation of a community's resources or the management of a community's resources in various sorts.
- 1.49 But notice the language here. We're starting with the nation as the unit, and that nation is a collection of human beings. It is the community's resources. The assumption is that these are resources that belong to the community. We're not saying economics is the science of individuals who have resources, who make choices and interact with each other in various ways, and we build up our understanding of the economy this way. We're starting with this big-picture collection or collective notion.

- 1.50 "The nature of these resources was not defined; their communal ownership was taken for granted; and the goal of political economy was assumed to be the study of how to utilize these resources for the common good." That's a philosophical phrase. What is the common good? Do we mean by that that there are individuals, an individual, have their own values and their own goods? And what we're looking for is what all of those individuals agree as valuable in common? Or are we trying to say that there's some common good, something that the whole nation should be striving for, or this community should all share in?
- 1.51 Of course, lots of individuals are going to disagree, but that doesn't matter. We will make them in some sense join in this common good project. So unpacking these often taken-for-granted phrases. Rand says we need to do so. Now, why is this so? What she then goes on to argue is that there are philosophical battles, and philosophical debates are behind the scenes, and political economists often don't pay attention to those, or they just more or less take certain ones as obvious.
- 1.52 "The morality of altruism was one." Why are we starting from these collectivist premises? What she means by altruism in this case is the idea that you should serve other people, alter other-ism. As a matter of principle, your life is not about your values, your goals, your pursuit of happiness. That would be individual-ism or me-ism or self-interest-ism. The assumption is, you should be serving other people, and one way you can serve other people is through devoting your economic resources to them in a way that benefits them.
- 1.53 If we take that morality very seriously and apply a politics to that, then we are going to say, people who are not willing to selflessly sacrifice for the benefit of others, those are bad people, and the proper purpose of government is to make people do good things. So we will have an enforced altruism, and that will take us in a certain political direction.
- 1.54 "The growing dominance of political statism among the intellectuals of the 19th century was another." Here we go back and we talk about Hegel and Marx and Auguste Comte and various other statists who want to say, the state is the vehicle through which our aspirations should be realized. We should all be serving the state, and the state can do with us whatever it wants in order to achieve these state-oriented goals.
- 1.55 "Psychologically," she says, there's another factor here. "The main reason was the soul-body dichotomy permeating European culture. Material production was regarded as a demeaning task of a lower order, unrelated to the concerns of man's intellect, a task assigned to slaves or serfs since the beginning of recorded history." This is a fascinating one because what she is saying is, as long as human beings in the European context had been intellectual in their philosophical understanding of what it is to be a human being, they had a certain view about business and commerce and trade and working with your hands.

- 1.56** And that more or less common view across all of them was that that was of a lower order. A higher human being, a better human being, does not work with his hands. He works with his mind or he develops his or her spirit. And if you are a lady born into the upper classes, you don't do any of the work. You have kitchen people who do the work for you and you don't do any cleaning. You have servants who do the cleaning for you because "I am a better kind of person from a better class."
- 1.57** The idea of people who are working with their hands, and then existentially, the vast majority of people are slaves or serfs prior to the modern world. 95% of the population, it's the slaves, it's the serfs who do all of the manual labor, so that those of us who are in the upper class can have a life of spiritual development or a life of psychological development or enjoy ourselves in various ways.
- 1.58** People who are doing the material production, people who are trading with each other and trying to make money, money-making and profit-seeking, oh, that's lower-order indignity. I am above mere monetary concerns. How much does it cost? I don't really care because somebody else will look after this. The most elevated people in feudal society, hundreds and hundreds, if not thousands of years, are people who do not work with their hands. The people who are at the top of the social heap are the nobles and the aristocrats.
- 1.59** And what is it to be a manly man if you're an aristocrat? Well, you train for war. You don't do manual labor. That's what the peasants do. That's what the serfs do. Or I am the lady, the wife of the aristocrat. Again, I don't work with my hands. And the other esteemed people in the purest forms were members of the clergy who are dedicated themselves not to the material world and money-making and profit, but rather to spiritual concerns.
- 1.60** I'm not interested in my body. I might take a vow of poverty. I might take a vow of chastity to show how little I care about the body and physicalistic things. I am a purely spiritual being or trying to be a purely spiritual being as much. Now, of course, I still need to eat, but eating is something, again, that the peasants do, and they're supposed to not sell the stuff to us, but give it to us voluntarily. So we're going to live off their productivity, but they are of a lower order because we are the spiritual people.
- 1.61** Or if we are nobles, I'm going to dedicate myself to the martial arts or to being a fancy fine lady. But again, I'm going to live off the people who are doing work and they are of a lower order. Thousands and thousands of years all over the culture. So the idea that somehow people who work with their hands, who are interested in money, who are interested in technological achievement, who are in the business and commercial world, that's a very hard sell in the European intellectual context.
- 1.62** So Rand then says, it had a chance, when we started rather to create new countries, brand new countries, over in the Americas. And there it started to be that work was something honorable. It might even be noble, making a million dollars. Cool. That's a

goal. That's the American dream. So I can live the good life, and the good life is conceived in a very different way. "But that American philosophy of the rights of men was never grasped fully by European intellectuals." Partial grasp in some places, but not overall, still largely.

- 1.63** Now, if we are then going to start over, so to speak, and not be infected by traditions coming out of Europe, "To reject that premise and begin at the beginning, in one's approach to political economy, one must begin by identifying man's nature." You have to start by political philosophy with an understanding of human nature. What is it to be a human being? And then develop some principles here.
- 1.64** Then we have a very strong philosophical claim. "Man's essential characteristic is his rational faculty." We are beings with a big brain, and we are able then to think rationally, to conceptualize, to form abstractions, to figure out how the world works in terms of cause-and-effect principles, to do science. Having done the science, we can take that science and then do it in an applied fashion, creating technologies.
- 1.65** We can also think more long-range about other human beings and how we're going to interact with them. We're not baboons, we're not chimpanzees, and they are social creatures to some extent, but they still are very low-level intellectual operators. We can think about the past and the future and the principles that are going to govern my interactions with you as an individual in a family unit, what policies are going to make the family work better, and then scaling that out to millions and millions of people.
- 1.66** Human beings can do this, and it is important that we do that, but you have to understand that that is driven by a fact about human nature. We are rational beings. She wants to say, it's not simply that we have that, that this is fundamental to how human beings survive. We're not particularly fast compared to other animals. We're not particularly powerful compared to other animals. We're not hardy. We start to whine when it gets too cold. We start to whine when it gets too hot. We have a fairly narrow range within which we are comfortable.
- 1.67** But we are very smart or potentially very smart. That's the most important thing to our survival. To put it somewhat metaphorically, the reason why we are at the top of the food chain is not because of brute physical features that we have. It's because of the power of our minds, the potential power of our minds. "Man cannot survive as animals do by the guidance of mere percepts." That's to say, just using our eyes and our senses and so forth. "He cannot provide for his simplest physical needs without a process of thought. He needs a process of thought to discover how to plant and grow his food."
- 1.68** Agriculture, an enormous discovery and invention that human beings engaged in. It took us approximately 180,000 years of human history before we had learned enough to be able to conceptualize and make a policy and set of practices doing agriculture. Hunting. "His percepts might lead him to a cave, if one is available, but to build the simplest shelter, he needs a process of thought. No percepts and no instincts will tell

him how to light a fire, how to weave cloth, how to forge tools, how to make a wheel, how to make an airplane."

- 1.69** Wow. How to perform an appendectomy. We're going to take a human body, cut it open, take some stuff out, sew it back up, give the person some antibiotics, all of which have been developed. Huge, amazing discoveries. We're 99.9% confident that the person is going to be just fine. All of the amazing thinking and experimenting in science that had to go into that. "How to produce an electric light bulb or an electronic tube or a cyclotron or a box of matches. His life depends on such knowledge, and only a volitional act of his consciousness, a process of thought, can provide it."
- 1.70** So this is a fact about the human condition that is an essential fact. And this is where we need to start in understanding human nature. Another fact about it, that it is volitional. She had mentioned that. Something that we do by choice. We don't have to think. We can be lazy; we can turn our minds off. We can say, "I know I should be focusing on this, but I don't feel like it, so I'm going to blank it out," and so on.
- 1.71** Our minds are under our control, but it takes an act of will to say, "I'm going to concentrate on this. I'm going to focus, I'm going to see it through. I'm not going to be distracted by this. I'm feeling a little bit tired, a little bit hungry. That's not the important thing right now. I need to get this done." It is a choice that we are engaged in. We have free will, the exercise of our rational faculty. People who do the thinking are the ones who come up with the new knowledge, the new science, the new technologies, and who work out the principles that are going to enable us to live together peacefully and so forth.
- 1.72** But of course, since it's an act of volition, we know lots of people don't do that. They choose not to think very much. This thinking is actually pretty hard work to engage in. The survival of those human beings who don't think very much is dependent upon those who are going to do the thinking. "If some men do not choose to think, they can survive only by imitating and repeating a routine of work discovered by others." It's going to be the deepest and strongest thinkers who become our leaders. Those of us who don't think as much about that will have to be their followers. Tell us what to do, and we will then do that.
- 1.73** "If some men do not choose to think or to work, they can survive temporarily only by looting the goods produced by others. But those others had to produce them, or none would have survived." So what we're saying is, we face a choice as human beings. There are certain things we need to survive, all of us. That's universal to the human species. All of those things need to be produced, the entire apparatus of everything that we've had. Someone had to figure out that it was possible and how to make it. So that had to occur.
- 1.74** Those individuals were engaging in a voluntary process that they sustained and worked out successfully. If I say I'm not going to engage in the thinking, but nonetheless, I want

all of this stuff, the only way I can get it is by taking it from other people who have produced it. If I'm not going to do the thinking and the experimenting, and being a productive person myself, I have to be, Rand's language here is, "a looter, a thief, a taker." The world then is comprised of—this is going to be most people, hopefully—makers who take on the project of thinking and working and making stuff. Then those who say, "I don't want to do that. I want to be a taker, thieves, of various sorts."

- 1.75** "Since knowledge and thinking and rational action are properties of the individual, since the choice to exercise his rational faculty or not depends on the individual, man's survival requires that those who think be free of the interference of those who don't." It is individuals who have their own brain, who have their own mind. It is individuals who can choose or not to use their minds. That's on Rand's account of morality, your fundamental moral commitment.
- 1.76** Am I going to choose to use my brain, to use my mind, to figure out what I need to learn, and then to commit myself to doing the things in the world that I need to do? That is what humans can do, and choosing to do so systematically is the thing that makes you a moral being. But of course, we know lots of people, they are lazy or they are envious or for various reasons, they don't want to do all of that. That sounds like really hard work. I want a shortcut. I want other people to do all of the thinking, all of the producing, and I'm going to find ways to steal from them, to take from them. Those are, on Rand's estimation, deeply immoral people.
- 1.77** But much of human history we know has been looters versus producers, and that carries on into the modern world in more sophisticated form. But if we are committed to human survival, the first thing we will do is, we will recognize that it is individuals who are the units of reality. We're all human individuals with our own bodies and, most importantly, our own minds. It is individuals who are making the choices for themselves about what policies are going to go in their lives.
- 1.78** Any moral philosophy and any political philosophy needs to start by recognizing these human nature facts about reality and building up from there. Hence, any political philosophy that starts from the collective—we're going to talk about the nation; we're going to talk about classes; we're going to talk about the feudal organism, or we're going to talk about whatever—if you're starting anywhere except with individuals and building up, you are starting from the wrong place and your political philosophy, she argues, will lead to disaster.
- 1.79** Now, how do we do this? The next formulation here is, "The social recognition of man's rational nature, of the connection between his survival and his use of reason, is the concept of individual rights." Now this is a technical concept that takes us from this theory of human nature to political philosophy. One characteristic of modern political philosophy has been to elevate this concept of rights, human rights, individual rights, sometimes various other sorts of rights as well.

- 1.80** Partly what makes this modern is that you didn't find rights talk prior to the modern talk because the assumption there was that human beings don't really have rights, rather they have obligations. Or if you have certain resources and things that you're allowed to do in society that other people are not allowed to do, you have privileges. The assumption was that you are a subject. You're not a self-governing individual in a society. You are subject to higher authority. And your subjectness means that you have obligations and duties to serve that higher authority, whatever that higher authority is.
- 1.81** If you are a good boy or a good girl, then that higher authority might grant you some privileges. You don't have rights. Rights is a very modern doctrine. Extraordinary controversial. Many political philosophers will say these are a fiction. There are no such things as rights. Rand is going to argue that the concept of rights is in fact an objectively grounded concept and crucially important to political philosophy.
- 1.82** If we start by saying human beings are individuals, they have their own organic life and their organic needs, and they have a very sophisticated brain and mind, that they can choose to exercise as moral agents to figure out what they need to put together a life plan and so forth. We start from the assumption that individuals are real and individuals are the unit of value. But there's a whole bunch of us, and we're not all just going to go out and live in the desert, isolated in the mountains. We're going to form various kinds of social units.
- 1.83** What are going to be the principles that we think are correct to govern how we in our social units are going to interact with each other? Whether we're talking about a friendship, romantic relationship, marriage, a family, an extended family, a clan, a tribe, a nation, or whatever, we build up from these individuals what principles socially need to be in place. Here Rand wants to say, certain things have to be right and certain things have to be wrong, and we need to identify what the right and wrongs of these social interactions are. But she's an individualist, so there are first individual rights.
- 1.84** "I shall remind you," and now we start to articulate, "rights are a moral principle," there's right and there's wrong, "defining and sanctioning a man's freedom of action in a social context." So they are a moral principle applied in a social context, a kind of bridge between doing ethics and politics or morality and social economy thinking. "I shall remind you also that the right to life is the source of all rights, including the right to property." All right, here's a claim, the right to life.
- 1.85** We're familiar with this language, but then we have to answer, what is life? On her account, life is an individual phenomenon. We each have our own bodies with all of its subsystems. I can't breathe for you, you can't breathe for me; I can't digest your food for you, you can't digest my food for me. These are all individual functions. The same thing holds for our minds. Our minds are individual. You have your brain and mind, I have my brain and my mind.

- 1.86** So all of these things are individual. And we are all moral agents because we exercise control over our bodies and our minds as individuals. Your life is yours. My life is mine. That's the basic foundation. And if we recognize that your life does not belong to me and my life does not belong to you, that we are both individuals of moral value, that's to say, as a moral essential fundamental principle, respecting each individual's right to his or her own life is where we start. That's number one.
- 1.87** Then she goes on to say, there's also the right to property, but there's some intervening steps there. I have needs. You have needs. Those needs, if they're going to be met, require that we act in the world to be productive. But acting in the world requires that I have an idea of what I'm going to do and I initiate that action as a result of agency. I have to be free in a social context to be able to act as I see fit, to be productive, so I can make the things that are going to fulfill my needs.
- 1.88** So if, for example, you just take me physically and put me in a box and put a lock on the box and say, "You can't come out," well, you are violating what is necessary for me. "You're violating my liberty" is the way we would put it, but what's wrong with that is that you're stopping me from acting in the world in a way that I think is necessary to produce the values that I need. So people need to have freedom. Your life is yours, and I'm also going to respect that you have the right to act as you see fit, to be productive in the world, to look after life and maintain your life.
- 1.89** That needs to be symmetrical. You need to do that with respect to me. I'm going to respect your life and your liberty, and you're going to respect my life and my liberty, and we scale that up to all of society. If I have done some thinking, I become skillful, I'm acting in the world, and I have made something. I have made something that I now want to be able to consume, maybe it's some food, maybe I've made a house to protect myself and my family. There's some property there that I then wanted to consume.
- 1.90** If I am the one who made that, then that should be mine by right. I made it. If you make something, whatever it is that you have made, it is yours by right, and that's the basis of property right. If we say by contrast, well, I'm going to let you think and I'm going to let you act in the world and make stuff, but as soon as you make this stuff, I'm just going to take it away, well, you are killing me, because then I'm not able to, so to speak, finish the causal process, cause-and-effect, production and consumption.
- 1.91** A moral society is going to start from this individual basis, right to life, right to liberty, right to property. Sometimes we add this all-encompassing one, the right to the pursuit of happiness. You have the right to put together your idea of what the meaning of your life is all about, what your goals are going to be, and to go for it. That has to be worked out in a way so that your doing so is equally respectful of my individual rights. That's the moral kind of society that we are trying to create.
- 1.92** Now, bearing these facts in mind, Rand goes on then to say, consider the question of what social system is appropriate to man. "There are only two fundamental questions.

Does a social system recognize individual rights or not?" So we start there. Does this system say you have a right to life or does it say, no, your life belongs to the king, your life belongs to the nation, your life belongs to the collective. Does it say you are a free agent? You have a right to act in your life, your religious life, your romantic life, your business life, your recreation life, what movies you watch, right, and so forth, or not?

- 1.93 Or does it say, no, I'm going to choose for you whom you can marry, whom you can associate with, what careers you can go into or not? Does it respect your right to property? You've made something, you've created value in the world, you get to keep it. You've created a \$1,000-worth of value, that's yours. You've created a billion dollars worth of value, you made it, it's yours. Or do we say, no, some of your production, I'm going to take it from you. I might have a rationalization for that, but Rand is going to say, it's never going to be a good rationalization. The fundamental thing is, on principle, are we committed to other people's property rights or not?
- 1.94 This is the second question, "Does a social system ban physical force from human relationships?" The only way rights can be violated, she's arguing, is by means of physical force. I violate your right to life by killing you. I violate your right to liberty by kidnapping you or making you a slave. I violate your right to property by stealing from you or confiscating your goods or destroying them so that you don't get the consumption of them. All of those require physical force of one person against another.
- 1.95 And Rand's claim is that a moral society is one that's going to, as much as possible, and on principle, say we're not going to deal with each other by force, like the other animals by and large do. We're not predator and prey. We are smart beings who make stuff and we should trade with each other. You have something I want, I have to make it worth your while to have you give it to me, by offering you something, say, that I have made that you find of value. So I'm going to treat you as a free agent, as a rational. So trading societies are going to be the moral one.
- 1.96 And Rand's claim is that, in mankind's history, capitalism is the only system that answers yes. It is a principled identification of individual rights and the organization of society to stop people from being predators with respect to each other, preying on each other and taking each other's stuff. And that's the job of government, because there are always going to be predators in society who try to manipulate others in various fraudulent ways, outright steal from them, kill each other, and so forth.
- 1.97 So what we want is an institution in place that will say, individuals have these rights, and any other individuals or collections of individuals that are stopping individuals from exercising their rights, we're going to stop them. We will arrest them. Maybe we'll have to confine them to prison. Maybe even in the most extreme cases, if the person is just wantonly killing people and disrespectful of any humanity at all, we might even have to kill that person. And that's a legitimate government function.

- 1.98** All right. I want to pause on Rand. Rand goes on to argue more elements of her epistemology. There are certain claims about natural facts here that we can identify as universal principles. That requires that you have a rather robust theory of knowledge at work. That has to work with your theory of human nature and this theory of morality. All of that together philosophically then makes a case for capitalism.
- 1.99** Now, Rand, by the time we get to the 1960s, is an international bestselling author. Her novels are selling well, enormously influential, enormously controversial, particularly from all of the intellectuals who are anti-individualistic, anti-capitalistic, and with respect to the rest of her philosophy as well. I want to make a transition to a few years later, to a professor of philosophy at Harvard University, Robert Nozick, who was aware of Rand and had some agreements and some disagreements with Rand, but is nonetheless broadly in this same liberal approach to political philosophy.
- 1.100** That is to say, taking human liberties as fundamental socially in developing a social system that respects that fundamentally. In 1971, Nozick had a reputation in the world of philosophy that had led to his appointment at Harvard University, a very prestigious position, but turning more explicitly to political philosophy. In this book, *Anarchy, State, and Utopia*, arguing that some sort of very limited government, some sort of very minimal government, is the only kind of government compatible with a morally decent understanding of human beings.
- 1.101** The intersection between Rand and Nozick that I want to look at is this concept of freedom. One of the great achievements of liberalism in the broadly modern world had been its battles against slavery. If we think that for almost all of human history, all cultures around the world didn't particularly have a problem with slavery, to the extent that, in many cases, 80, 90 or more percent of its population would be slaves or serfs who are very close to slaves.
- 1.102** It wasn't until the Enlightenment, where we started talking about individual rights and the moral agency of individuals and freedom being the social fundamental, that we started to have movements against the existence of slavery. Then over the course of the late 1700s, on into the 1800s, slavery was largely abolished from the world. Slaves are human beings. They have the same rights that every human being has, to be their own individual, to live freely. That is fundamental, and that is a great accomplishment.
- 1.103** One of the very interesting sections in Nozick's *Anarchy, State, and Utopia*—it's a substantial volume of political philosophy—is a short section called *The Tale of the Slave*. What Nozick is very interested in as a contemporary liberal, and we're starting to call them libertarian because liberalism is going in various directions or sub-schools and so on, the libertarians will argue they are the most principled and consistent advocates of fundamental human freedom, is our attitudes towards slavery.
- 1.104** Now that, by and large, the battle has been won, have we become complacent in our understanding of what slavery is all about? And do we really object to slavery in a

fundamental way? So he offers a thought experiment for us to work through. It's a 9- or 10-stage process. And let's go through. And what Nozick does is, he gives us a scenario and a match, asking you that you're in this scenario. And then at the end of the scenario, just to answer the question, are you a slave or are you not a slave in this situation?

- 1.105** Situation one, "There is a slave completely at the mercy of his brutal master's whims. He is often cruelly beaten, called out in the middle of the night, and so on." OK, so a person in that situation, is that person a slave? Obviously, yes. That's slavery, and it's awful slavery. All right, so then we modify it a little bit.
- 1.106** Now we have "a kindlier master, and he beats the slave only for stated infractions." So I don't just beat you because I feel like it. I announce, "Here are the rules. These are the cases where I'm going to beat you, and I will beat you when you do those things." Of his rules, not fulfilling the work quota, and so on, and "he gives the slave some free time." OK, but you're still a slave. You just have a nicer master in this case.
- 1.107** Third scenario, "The master has a group of slaves, and he decides how things are to be allocated among them on nice grounds, taking into account their needs, merit, and so on." So I'll be the master. You guys are all my slaves. I could just treat all of you absolutely equally. Or I could say, you worked extra hard today. I'm going to give you a little extra stuff. Or, I saw you slacking off, so I'm going to beat you. That breaks one of the rules. Or, oh, you were doing that dangerous job. You fell and broke your arm. I'll bring in a doctor to have your arm repaired. So I'm not going to treat you all exactly equally. Bring in needs, merit, and so on, but you're all still slaves. Not too controversial at this point.
- 1.108** Here's a fun one. "The master allows his slaves four days on their own and requires them to work only three days a week on his land." The rest of the time is their own. We've got some really rich soil and lots of resources. I'm making a really good living here by making you all work, but only for three days. We have way more than we need even after three days. So Monday, Tuesday, Wednesday, work, work, work. The rest of the week, you're on your own, or you just take time off. You can't leave the plantation, but you can take the time off. Still a slave? Yes.
- 1.109** "Master," step five, "allows his slaves to go off and work in the city or anywhere they wish for wages." So you can leave the plantation, you can go work in the city, get a job. "He requires only that they send back to him three-sevenths of their wages. He also retains the power to recall them to the plantation if some emergency threatens his land." I can also, if I need more than three-sevenths of what you're earning, I can raise that rate to four-sevenths, five-sevenths, right, or whatever. But you're, by and large, a free agent off in the city.
- 1.110** Are you still a slave? "He further retains the right to restrict the slaves from participating in certain dangerous activities that threaten his financial return." Stop

smoking cigarettes. I want you to live a long time working so that you can send your three-sevenths of wages back to me. You're not allowed to smoke, and you can't ride fast motorcycles, et cetera, et cetera. You're still a slave.

- 1.111** Step six, "The master allows all of his 10,000 slaves." OK, now I've got a lot of slaves. It's like a small town of slaves, huge, huge plantation. Instead of just making all of the decisions myself, I'm going to allow all of the slaves to deliberate about what the policies should be. Except for you, you can't. "The joint decision is made by all of them. There is open discussion and so forth among them, and they have the power to determine what uses to put whatever percentage of your and their earnings they decide to take, what activities legitimately may be forbidden to you, and so on."
- 1.112** So maybe I'm getting old, I think I'm going to die, and I could, of course, just leave all of you to my descendants, but maybe I don't have any descendants. But what I now do is then say, all right, I'm going to be out of the picture, but everybody has control over everybody else, and the policies are going to be decided by majority vote in that situation, except for you; you're not allowed to participate. Are you still a slave?
- 1.113** And Nozick recognizes, this is a big step here. There's a transfer of power. And we're trying to say, well, this starts to sound a little bit like democracy, right? But what's the difference between democracy and the preceding step? Before, it was just one master who was deciding everything about you. Now these 10,000 people have the power to decide everything about you. So have we gone maybe from a kind of monarchy to democracy, skipping an aristocracy step in the middle? But democracy under these terms is still a kind of slavery. That one person, you, is still a slave to the 10,000. They can decide whatever they want with respect to you.
- 1.114** Step seven. "Though still not having the vote, you are at liberty and are given the right to enter into the discussion of the 10,000 to try to persuade them of various things." So the 10,000 are going to argue, what are we going to do with you? And then we'll ask your opinion, what do you think we should do with you? And you can make your case. And then after the discussion, you will go away, we will vote after having listened to you. Are you still a slave?
- 1.115** Step eight. "In appreciation of your useful contributions to discussion, the 10,000 allow you to vote if they are deadlocked." So what would that be? So now we have to actually have 10,001 people. You're the one. So some policy comes up that affects you. Let's just kill you. Kill that guy. 5,000 for, 5,000 are against. They let you participate in the discussion. But since they're deadlocked, how are we going to get past that? We'll let you vote in that circumstance. But of course, how often does a vote ever come 5,000 versus 5,000? Never happened. Not likely it happened very much. Our question, are you still a slave?
- 1.116** "They throw in your vote," with their step number nine. Everything is exactly the same, except now your vote is one in 10,000. And whatever the majority decides, that's

what's going to happen to you. Are you still a slave? Now, this is a thought experiment, carefully calculated to say, we start from a position of, as modern liberals, repugnance against slavery. So we start with a system of slavery and we change things. Now, we have nice slave masters. We have slave masters that give you some time off, that only tax you, so to speak, at three-sevenths of your wages.

- 1.117** But they still have the right to conscription only in a case of an emergency. Then we have voting. We have open discussion. We add all of these things. But by the time we get to step nine, it's still not clear that you're not a slave anymore. But of course, by the time we get to step nine, that starts to sound very much like the society that we have around us currently in various manifestations. Have we really eliminated slavery, or do we still have some vestigial elements of slavery, even in contemporary liberal democratic society?
- 1.118** What Nozick is going to argue on principle is that we have not yet gone the full liberal route, and Rand agrees, so what we need to get back to is a full robust philosophical understanding of capitalism, and this is her definition of it here, "a social system based on the recognition of individual rights, including property rights, in which all property is privately owned." That's the ideal. All right, stop there.

Lecture 2: Rawls' Justice

At a glance — Rawls' theory of justice, set in 1964 America.

- 2.1 All right, let's begin in 1964, and a United States of America with a new President, Lyndon B. Johnson. The year before, 1963, President John F. Kennedy had been assassinated, and his vice president Johnson assumed the presidency, and starts to move quickly to institute and accelerate the development of programs, some of them envisioned under Kennedy's time, some of them under Johnson's time.
- 2.2 One of the major initiatives to be launched in 1964 is the war on poverty. Johnson, in a famous national speech, said, "This administration today, here and now, declares unconditional war on poverty in America." Now, the question of poverty in the modern world, stepping back a couple of hundred, is a different question than how that question is phrased and answered in pre-modern times.
- 2.3 How do we solve the problem of poverty? Even asking that question is a modern question because, for most of human history, if anyone thought about poverty and said, "What, we should do something about it, get rid of poverty," the response would be, you can't. That's not the way it is. Poverty is a fact of life. Perhaps it's supernaturally ordained that some people be rich and some people be poor, or it's just the way the world is naturally. But the poor will always be with us. Maybe we can play at the margins, but by and large, the vast majority of the population is going to remain in poverty.
- 2.4 As we get into the modern world, though, the transformative effect of the new economies, largely liberalized economies, the new science, the new technologies, the industrial revolution, and suddenly human beings are amazingly productive, and the poverty rate starts to go down noticeably, until we get to the point where people start to say, wow, maybe poverty is not such an inescapable fact of the human condition, and we start to become progressive on this score.
- 2.5 This is a small-p progressive, but the idea that we should be able to make progress, not only as the Enlightenment philosophers will say, in all issues pertaining to human existence, but especially with this issue of poverty. We should be able to eliminate the vestiges of poverty, just like we can eliminate diseases, we can eliminate all sorts of threats and disasters and so forth.
- 2.6 Now, one of the answers then was to say, well, now that we are so productive, we've made all of this stuff, what we should do is simply take from those who have more and redistribute it to those who have less. Maybe we are a certain kind of socialist who wants to say everybody should the same amount of stuff anyway. We're evening out the unevenness and we should end up in an egalitarian state, and hopefully that will solve the problem of poverty.

- 2.7 Or we should be able to take enough from the people who have more, give at least a minimal amount to those who have less on the principle of need, and then the government will just reinvest the remaining amounts in other progressive projects and so forth. But we've made enough stuff. The problem of productivity is solved. We don't even really need to pay attention to that so much. What we should be doing is focusing on redistributing to get rid of poverty.
- 2.8 The main competing answer in the modern world had been to say, well, redistribution comes after being productive, and being productive has certain preconditions. That doesn't appear by magic, and it's only going to be through a liberal freak enterprise capitalist system that we're going to produce all of this stuff and keep it going. So first we have to make sure that everybody is free to be productive and have the conditions in place for that. And then a growing economy is going to provide jobs for the vast majority of people.
- 2.9 If some people are disabled or they can't work, they'll be part of friends and family networks that nonetheless have become richer and can look after them. Or if we have very productive capitalist economies, there will be all kinds of philanthropic organizations that will come into existence. So if we have a healthy capitalist economy, the problem of poverty also then can be solved as well. We have this capitalist versus socialist debate. Both of them think poverty can be solved, and that makes them modern but very different approaches to doing so.
- 2.10 Now, the Lyndon B. Johnson presidency is going to be marked by the argument that both of those are extremes, and we don't want to engage in the extreme, but we think the problem of poverty can and should be solved. It's an embarrassment that, so far into the modern world, wealthy nations still have poor people, particularly in the United States, which is by now the wealthiest nation in the world. Why do we still have poor people? We need to get rid of them. Government action is going to be necessary to do so.
- 2.11 We're not going to interfere with the basic institutions of capitalism. We want to have a very productive economy, but we don't think that the voluntary sector is going to be sufficient to eliminate the remaining pockets of poverty. This is where government can and properly should step in, not going as far as socialism, but taking some of the excess productivity and redistributing it to those who are poorer.
- 2.12 Now, this is something that can be quantified and then put in graphs. This is the United States for a substantial portion of its history. What it shows is, as the decades go on, there's not very much government spending with respect to poverty. That's relatively low. As we get into the late 1920s and 1930s, the Great Depression occurs. There's a huge increase in government spending with respect to welfare state, creation of all sorts of programs directed toward poverty alleviation. That mostly gets put on pause during World War II; it resumes after the war.

- 2.13** But by the time we get to the 1960s, there's a philosophical shift, a political philosophical shift, that President Johnson's administration represents. We then see the amount of government spending with respect to poverty programs increases rather dramatically. That's the LBJ's agenda, as it is said on this chart here. Now, that is at the level of practical politics in America, but that same political debate at the level of practicality—should we dramatically increase government spending or should we not be doing this—is also mirrored in the more academic debates.
- 2.14** The two most famous representatives of this happen to be two professors at Harvard University, both in the philosophy department, both colleagues of each other. One way of characterizing this is to say, it is an intellectual battle for the soul of liberalism in the modern world, particularly the soul of liberalism in the American sense. Should we have a more robust freedom as axiomatic, basic and fundamental libertarian approach to liberalism, as we saw in the previous lecture, or should liberalism involve significant amount of civil rights, rights to free speech and participation in the process and voting and so forth?
- 2.15** We're going to have a largely free market economy, but we're also going to have a significant government control and redistribution efforts, that the government is going to manage the playing field, so to speak, in a way that is not purely free market, but is also not significantly socialist, some sort of middle ground.
- 2.16** The philosopher, John Rawls, publishes in 1971 a work that has an enormous, it's hard to find the right adjectives, enormous impact on philosophy, political philosophy, economic philosophy, social philosophy, more generally, starting in the 1970s. I've emphasized all of those adjectives about the importance of this book. I have here a chart where, now that we can do very sophisticated searches and citation counts, we can come up with numbers that tell us which books are having the most impact in various fields.
- 2.17** This is a result of doing so with respect to social science books, the most influential social science books. If you consider the thousands and thousands of social science books that have been published over the course of the 20th century, what this shows is that John Rawls' A Theory of Justice is seventh on the all-time list. This includes not only works in political philosophy and economic philosophy, but also anthropology and sociology and pure economics and linguistics, and so forth. It's a huge number of books. This is an extraordinarily important book for the discipline.
- 2.18** But I want to tell a bit of story with respect to John Rawls, because Rawls is a secular individual, and he is a modern liberal. But I want to go back to the early John Rawls, when he was an undergraduate at Princeton University, recognized by his professors as a very precocious young man with a bright academic future ahead of him. He wrote in his senior thesis an extended work that was basically a book-length work, called A Brief Inquiry Into the Meaning of Sin and Faith.

- 2.19** At this point, Rawls is a strongly religious individual, raised in a strongly religious family, and he is considering a vocation in a religious field. He writes a highly philosophical, theological investigation focused on these concepts of sin and faith. This is in 1942. The war is on, but he is still a college student and so exempt from the draft. What we find is, the young Rawls engaged with deep theological questions, primarily in the Christian tradition, primarily in the Protestant Christian tradition.
- 2.20** One of the key questions that Rawls engages himself with is this question about the mind-body dualism or the spirit-physicality dualism. Human beings are physical beings, but we also have a soul, or we have a spirit, or we have something else. What is the relationship between the mind and the body, or the spiritual element of our existence and the physical element of our existence?
- 2.21** One of the classic problems is to say that who the human being is as a microcosm mirrors the macrocosm, that the entire metaphysical reality we should understand as a physical reality, a natural world, and beyond that, a superior or a supernatural world that is completely unphysical and spiritual. What is the relationship then between the spiritual world and the natural world? One common tradition had been to say that those are opposed to each other.
- 2.22** What is all good and noble and beautiful and pure is spiritual, but the physical world is low and materialistic and it's full of lust and greed and human beings doing nasty things with respect to each other. Perhaps we find that same macrocosm mirrored in the conflict that rages within each human being. I have my body, and what does my body want? Well, it wants physical things. It wants drink and food and sex and power and aggression. And what does my soul want? If my soul is healthy, well, it wants to be pure and moral and focused on the higher and more beautiful and lovely things.
- 2.23** So what is the relationship between these two? "Does the soul pervert the flesh, or does the flesh pervert the spirit?" Because we all do bad things, the claim here is, and we're trying to explain then the sinful things that we do, catching rather those bad things out in traditional religious language. And sin is typically doing something that, in one way, you know that you should not be doing. We're not like other animals that might be doing various things. We know better. We know what the rules are. We know what it is to be moral beings, but nonetheless, we commit all of these sins.
- 2.24** So where does the sin come from? Is it that we have this body, and the body is just too powerful in its drives and its needs, and it just overpowers our weak souls? And so, we still did sin, but we're off the hook because we can't control our bodies. Or is it the case that, really, we do have moral agency? Our souls can control our body. I don't have to do that thing. What happens is, we decide in our souls that, even though I know I shouldn't be doing this, I'm going to do it anyway. And so this soul, in that case, is perverting the body. So deep engagement with this problem.

- 2.25** So, we commit sins, we should feel guilty about it, but where is the responsibility for all of this sin rise? Do I have free will? To the extent that I say that my soul is weak and my body just makes me do all of these things, that seems to diminish my responsibility. So maybe I don't have very much responsibility. But to the extent that I say I have a soul, and the soul is powerful, and I should be in charge of it, then that also runs into another problem, because then we also believe that there is a God, and we believe that God is a perfect being.
- 2.26** And part of God's perfection is that he is omnipotent. He is all-powerful, and of course, he's all-knowing, and he's all-benevolent, and all-good and so forth. But if we then say that I, as a human being, have some moral agency, that is to say, I have some power, and you have some power, and all of the humans have some power, that's a lot of human beings with a lot of power. If we have some of the power, then it must be the case that God does not have all of the power.
- 2.27** Maybe he has more power than we do, but we have power. If we are going down this road, then we can no longer say that God is all-powerful. And that runs us into another problem. So we then might say, no, human beings, in fact, do not have moral agency because we do not want to diminish the majesty of God. God is all-powerful, and that means human beings do not have power.
- 2.28** But that runs us into another problem, because if we don't have any power, then in what sense does it make to say that we are responsible for the bad things that we do? Why should we feel guilty, if we are just all puppets, so to speak, in the hands of an all-powerful God? So all of these deep issues that go way back in Christian theology Rawls is wrestling with. And he comes down on the side of saying that God is all-powerful.
- 2.29** And so from his perspective, what is called the Pelagian position—Pelagius had been a monk, one of the early monks, who had argued that, if we're going to make sense of moral responsibility as Christians, we have to say that human beings have free will, they have some power, they have some moral agency. And so we'll have to say that God is great, wonderful, super, super powerful, but just not all-powerful. So that was largely treated as a heresy, and the young Rawls is going after this as a heresy.
- 2.30** Well, this is the part that I want us to focus on, in talking then about salvation and what the requirements of salvation are. Is it simply a matter of believing that we have some power, some moral agency, and we can be responsible for the choices that we make? And therefore, if I consistently, say, make good choices, I can, by the time I die and my soul separates from my body and I appear before God on Judgment Day, I can show him that I have done good works, that I'm a morally worthy person, and then I can have a very good chance that I will get into heaven?
- 2.31** And then by contrast, if I've chosen to do a bunch of bad things, and then I am judged by God, and he decides to go to send me to hell, well, that also will be a just dessert that I will have earned as a result of my own rewards. And that is sometimes called the

works position. You can earn your way into heaven or you can earn your way into hell, according to your agency. And Rawls is going to have nothing to do with that.

2.32 That's not what salvation is. Salvation is not something that you can accomplish on your own. Rather, salvation has to be a gift from an all-powerful God. Only God can save you. And in this moment of salvation, as Rawls ends up, "For the first time, the scales of sin have been broken away, and the self perceives that everything in heaven and on earth is a gift of God." Everything is a gift of God.

2.33 The implication of that is that you did not make anything. You did not earn anything. You do not deserve, by your own efforts, anything. Anything you have, any assets, your physical appearance, your wealth, your property, you might, in your unsaved moments, think that you deserve them because you made them. That is a fault. Everything comes from God, perhaps even the skills and the knowledge that enabled you, apparently, to make those things all by yourself in the first place. But you do not, by your own efforts, deserve anything.

2.34 "He has," as Rawls puts it here, "nothing that has not been given to him." We don't make, we receive. And God sometimes gives us stuff directly, but very often he gives stuff to other human beings who then in turn will give things to you. So what you have received comes from God and the community, from God and society, but not you as an individual creating, making, and thereby deserving as a matter of individual just. "He now understands his communal nature." You're not an individual, you are a part of a communal nature.

2.35 Now, this is Rawls working out his theology as a young man in university. He graduates, and then he is drafted into the war. He sees action on the Pacific war. Terrible, terrible things he sees. He sees also many of his comrades killed around him, and he came this close to being shot, but the bullet entered the head of the guy next to him. He feels devastated by the result of his World War II experiences.

2.36 Earlier, Rawls had had two brothers, both of whom died of diseases, and he felt a deep sense of guilt over that because the diseases that they got, they got from him. He had caught some disease, he was in his sickbed, but somehow his brothers came to visit him and got the disease, and they died from it, but he survived. It happened twice, and that never went away from him.

2.37 Then, more intellectually, learning at the end of World War II about the Holocaust. That is just a horrible crushing thing to learn and experience even remotely as a thoughtful, sensitive human being. By the end of World War II, shortly thereafter, Rawls has lost his religious faith and becomes a secular thinker. But the question is to what extent he changes his metaphysics for a more naturalistic understanding of human being, but how much of that earlier understanding of your communal nature, everything being a gift, the lack of individual agency and free will, carries over.

- 2.38** I just want to flag that for future thought as we get into Rawls' greatest work, the 1971 Theory of Justice. Now, this is a book that is, in a way, a delight for academic philosophers. It's created a whole industry of scholarship based on John Rawls. And so if you are of a philosophical temperament, whether you agree with Rawls or not, once you know what's going on in the philosophical world, moral philosophy, political philosophy, and all of their histories, it's a really interesting book to read and engage with all of the arguments and sub-arguments that are going on.
- 2.39** But it is a challenging book for the first time to read through, particularly when one is not necessarily aware of the history of political philosophy, the history of moral philosophy, and all of the technical specialties and sub-specialties that have been worked out. What I have done is, we'll go to the text in a few minutes, as I have excerpted what I take to be important parts of the text on—it's not simply that Rawls has one or two key points and some arguments that get developed.
- 2.40** Rather, he has an entire patchwork or an entire jigsaw puzzle of separate pieces that get put together into this overall theory of justice. What makes it challenging is, each of those pieces has its own set of sub-debates and contrapositions and a history. So the full working-out of your understanding of John Rawls does require reading the book, but hopefully in the context of some fuller understanding of what's been going on in academic political philosophy.
- 2.41** Now, here's my list, and there's some terminology we'll go through. The idea of a social contract. We have a theory of what human nature is. We specify what our core moral principles are. We have this veil of ignorance, which is a very interesting thought experiment. This concept of moral luck, taking up the issue of what you deserve, what you have earned, versus in what ways you are lucky or not. Assets being collective instead of assets being individual. That what's called the difference principle. We will explore that.
- 2.42** A concept that comes out of game theory called maximin, which is a strategy in two-by-two or two-by-four, various kinds of game. This concept of envy and an understanding of human psychology and human social psychology, and what has been learned there about the power of envy as a force in society that political philosophers need to take into account. Then the philosopher Immanuel Kant and his importance to John Rawls' own political philosophy.
- 2.43** I will just say to the side, right for now, in our course on modern ethics here at Peterson Academy, we have an entire lecture devoted to Kant's moral philosophy and its importance for the tradition. That can be usefully listened to in conjunction with the material from John Rawls. Let's plunge in. This idea of a social contract, again, is a very modern way of doing political philosophy. Political philosophy is about power. A government is going to have power, and it's a pretty exhaustive power.

- 2.44 It applies to everybody in the society, unlike most other institutions that are— you join a sports association, or you join a church, or you join a school, they will have rules that apply only to that particular sub-institution in society. But government rules apply universally to everyone. And that power of government is also a coercive power. If you break the rules at Peterson Academy, they'll just kick you out. It's the worst they can do to you.
- 2.45 People don't like how you're playing baseball. You're breaking the rules in a baseball game. All they can do is kick you out and say, we're not going to play whatever it is that you're playing. We want to play baseball over here. A church can kick you out. A business can fire you, or you can fire employees. But you break the rules of a government, and the police come, and the police use physical coercion to arrest you, and they put you in jail. You're behind bars, your property is confiscated, sometimes your life is taken away from you. What is the nature of this power that we think governments have?
- 2.46 And the idea in early modern political philosophy was that it should be a contract among society. So we use language of contract. And a contract is an agreement that is reached voluntarily between two or more people. And so, to the extent that we think of society is made up of individuals who have their own agencies, make their own decisions, have their own interests, and we're trying to come up with some rules for this big society, it makes sense as moderns for us to say, well, it should be rules that have been negotiated and discussed by all of the participants in society, and they will agree to the rules.
- 2.47 It's then their agreement to those rules that confers legitimacy to those rules. Now, what makes this modern is the contrast. We're supposed to say that society is not a contract; rather, you are born a subject to preexisting rules and principles and obligations. Maybe God has ordained the basic rules for society and communicated them to this person whom he has designated as the king. And so the legitimacy of the king's rule is because God has granted him that power over the rest of you.
- 2.48 It's not that you agree. Who are you to make an agreement with God? You obey God. You fulfill your duties. That divine right of kings in various kinds of manifestations was challenged in the early modern world and rejected by, first and foremost, but not exclusively, by a series of what are called social contract theorists. So this entire literature Rawls is drawing upon, going back to Thomas Hobbes in the middle part of the 1600s, John Locke in the latter part of the 1600s, Jean-Jacques Rousseau, middle part of the 1700s, Immanuel Kant toward the end of the 1700s.
- 2.49 And it's going to be especially the Rousseau-Kant tradition that John Rawls is going to be developing and drawing upon some centuries later. But to take up this issue of the contract, so the modern idea that somehow the rules should not be forced upon us, that we should be participating in some sense in the rule-making and consenting to the rules that are going to govern us. That modern principle has to be conjoined with an

understanding of what kind of beings you think we are, we human beings that are reflecting on our interests and our needs and our wants and entering in negotiations in order to come up with these agreements.

- 2.50** One of the interesting things in social contract theory is that, while they all agree that there should be a social contract, they have very different understandings of what a human being is, and so very different ideas about what the ideal society coming out of a social contract is going to be. Thomas Hobbes, for example, had notoriously a very pessimistic understanding of human beings. Human beings are short-term in their thinking. They are relatively grasping.
- 2.51** If you put human beings in a state of nature outside of society, they're not going to be able to trust each other. Instead, various predatory and aggressive instincts are naturally going to come to the fore. And so outside of society, in the law of the jungle, so to speak, it's going to be, as he put it, a life that is solitary, nasty, brutish, short, and poor. He didn't say them in quite that order, but it's a terrible situation.
- 2.52** But we're smart enough to recognize that that's not a tolerable situation for us to live as human beings. But I can't really trust you, and our interests are all in conflict with each other. So I think the best thing that we should do is to grant someone more or less absolute power over all of us, a sovereign, a king. And we will all be scared of the king or the sovereign. And he will then, because of the fear and the power that he has over all of us, this very close to absolute power, keep us all in check.
- 2.53** Our baser instincts will be limited, and we will be able to have a society in some tolerable measure of peacefulness and security. John Locke, by contrast, had said, no, we need to have a social contract. But he believed that human beings were much more rational, much more benevolent, and if raised properly, wanted to become productive, reasonable, friendship and business partner-types of individuals. So human nature is much more natural for us to trust each other and to work out rational, mutually agreeable principles.
- 2.54** And so business is natural to human beings. It's mostly harmonious. Families is natural to human beings. And so we should have a government that is respecting the freedom of individuals to engage in their own contracts and deals in various aspects of society. And it should be a limited government, not this absolute government and so on. So people are individuals, but a more optimistic understanding of human nature.
- 2.55** Jean-Jacques Rousseau says, no, we need to have a social contract. But when we do our philosophical analysis of what it is to be a human being, we realize we are not individuals. I have my individual will, and you have your individual will, but really, our humanity is a much more collective being. And proper philosophical self-reflection will realize that we are part of a general will or a more collective will.
- 2.56** The job of the government is to be the embodiment of a collective will or a general will, and it will have disposable power over all members of society. We have a much more

collectivist, communalistic, small-S socialist kind of government that comes out. So very different flavors of social contract theory, driven by very different understandings of human nature. But that principle of agreement, Rawls thinks, is absolutely and fundamental, and he's going to institute a social contract condition at the beginnings of a just political order.

- 2.57** Now, making explicit what our view of human nature is important, what we take to be our core principles, Rawls is a modern, and here's a quotation that's significant here. "They are the principles," if we're asking what principles we're trying to come up with in a social contract, "that free and rational persons concerned to further their own interests would accept in an initial position of equality as defining the fundamental terms of their association."
- 2.58** We will assume as core values freedom and equality. Very modern. And any society that's formed that rejects freedom, rejects equality, it's going to be a nonstarter. These are our moral assumptions. We assume that human beings are rational beings. Maybe they have instincts, maybe they don't. Maybe they have automatic behaviors, maybe they don't. But nonetheless, they do have a capacity for rationality. That means they can think abstractly, they can think in terms of principle, they can think in terms of big picture, and to some extent, significant extent, they can govern their behavior by means of the exercise of their rational capacity.
- 2.59** Another assumption that we will take, at least for this work, as fundamental. And we're going to assume that human beings are self-interested. That they have their interests, they know what they want, they have their own goals in life. Maybe they overlap with each other's, maybe they don't in various ways, but that human beings are self-interested maximizers is also going to be a fundamental axiomatic assumption. So, social contract, combined with this understanding of some core moral principles and what it is to be a human being.
- 2.60** Now we engage in a thought experiment, one of the most famous thought experiments in all of philosophy, where Rawls calls it the veil of ignorance. What we have to imagine is that those of us who are forming a society, we are coming together as a kind of deliberative body, and we are going to discuss and negotiate and vote what the principles of our society are going to be, but we're going to do so behind what is called a veil of ignorance.
- 2.61** That is to say, there are going to be some things about ourselves that we know and other things about ourselves that we will remain in ignorance of, that we will not know. Because if we want to get a just contract coming out of this, a just social or a fair social contract coming out of this, we have to exclude some things that might lead people to not be interested in freedom, equality, and the appropriate kinds of sense, and so forth. There are such things about human nature that are irrelevant to justice concerns, irrelevant to moral concerns.

- 2.62 So, he gives two such things. "One excludes the knowledge of those contingencies which sets men at odds and allows them to be guided by their own prejudices." Suppose, for example, we have two individuals and we're both self-interested, but one of the things that sets us at odds with each other might be that you are twice as muscular as I am, and that's a contingency. You happen to be twice as muscular as I am. Maybe it's because you worked out some. Maybe it's just, you're just a big muscular guy, and I'm not a big muscular guy by nature.
- 2.63 You're self-interested, and I am self-interested. But this fact, that you're twice as muscular as I am, seems arbitrary. It seems like prejudicial. And what this might then lead you to do is to say, I don't really need to worry too much about fairness and justice, do I? Because I'm a big, powerful guy and I can just get whatever I want. So I might just be willing to say, well, let's not worry too much about fairness and justice in our social contract principles. Let's just have power rules. And that's to your interest, that's not to mine. So, we have to set that sort of thing aside.
- 2.64 It might be that some, say, women are naturally more like supermodels, and they will then say, well, let's let natural beauty be the determining thing about who's most esteemed in society and who is not esteemed in society. But natural beauty is not a principle of justice or fairness. You're not going to know how muscular you are. You're not going to know how beautiful you are. You're not going to know lots of things that are just contingent factors that differentiate us from each other.
- 2.65 What we're going to know is that we are human beings. We're all human beings, equally human beings, getting rid of the contingencies and the prejudices that, if I happen to have one that I like, that puts me an advantage over you, I will push for that, and that's going to lead to weird results. Certain kinds of self-interest need to be set aside.
- 2.66 At the same time, John Rawls argues that certain other kinds of morally irrelevant factors need to be set aside. "A conception of justice should not presuppose then extensive ties of natural sentiment." It's not just me versus you, my self-interest versus your self-interest. It's also that it is natural to a human being to prefer some other human beings. If I have my best friend here, and you guys are all relative strangers, and then I'm going to also be looking for ways to set the rules of the game that benefit my friend more than you, because I care for my friend more than you.
- 2.67 Or if it's my wife, or if it's my kids, or it's my parents, or my family, or if it's people from my city that I happen to be born in, and you are people who come from a different kind of city— all of these are other regarding sentiments. But in those cases, I am not treating you all as human beings equally. So you cannot know who your friends are, who your family are, where you're from geographically, and so forth. All of these things we need to remain ignorant of.

- 2.68** So what you have is a stripped-down human being, and we are all the same. We are all equal in that initial circumstance. The question then will be, as rational, self-interested people in a state of equality, what kind of principles will we start to agree are going to govern our society? This is the concept, or the concept, rather, of moral luck becomes important. What do I deserve? What have I earned? What does justice require that I get automatically?
- 2.69** In contrast to things that we say are just matters of luck. You didn't earn them. There's no justice principle that says you ought to have it. It's just simply a matter of luck. Here, Rawls wants to say that it is a matter of luck, most of the natural endowments that you have, because nature doesn't operate according to a principle of justice or fairness. It more or less randomly distributes physical assets, in many cases, natural assets, perhaps even moral assets—how vigorous you are, how committed to honesty and your ability to persevere and so forth.
- 2.70** So a huge amount of who you happen to be is a matter of luck. Some people are taller, some people are not. Some people are more beautiful, some people are not. Some people naturally live longer, some aren't. There are all of these natural contingencies. This is also social contingencies. Some people are born into families where the parents read books to their children every night before bed. Others don't. Some families live in nice neighborhoods, some don't. Some people are rich, some aren't. Some people are very religious, some aren't. Some are all about education, some aren't.
- 2.71** So there's all these social contingencies. And you, where you are born, with your constellation of natural endowments, it's a matter of luck. You didn't earn any of that. And you were born into a certain social circumstance. You didn't earn any of that. All of that goes under the category of moral luck and needs to be set aside, so that the luckier people don't skew the social contract negotiations in a direction that's inappropriate.
- 2.72** We have to "look for a conception of justice that nullifies the accidents of natural endowments and the contingencies of social circumstance as counters in the quest for political and economic advantage." That also has to be built into the veil of ignorance from which we are going to do our negotiations.
- 2.73** Another way to put this is to say, we are not going to say, well, you're born where you're born. You have your package of natural assets and your parents have whatever your parents have. You didn't earn that, but that's yours. That's your starting point, and everyone has their own starting point. The important thing is what you decide to do from wherever you happen to be in the world, taking your natural assets, your social assets, and doing your best life with that, recognizing that not everybody has the same. We're not doing that. We're trying to extract our thinking away from any of those contingency circumstances.

- 2.74** This is why Rawls then is so strongly opposed to free market capitalism, libertarianism, that other form of liberalism that perhaps Ayn Rand and Robert Nozick represent. Here he gives it the label the system of natural liberty. And there he is reflecting on Adam Smith, because Adam Smith in 1776 in *On the Wealth of Nations* had said we're getting rid of feudalism. We are getting rid of mercantilism. We are going to a system of natural liberty, where we take people as they are naturally and going to protect their freedoms. Then what happens in a free society naturally is going to be economically efficient and fair and moral.
- 2.75** Rawls here then is taking the concept of moral luck as a trump card, so to speak, against that way of thinking about political philosophy. "Intuitively, the most obvious injustice of the system of natural liberty is that it permits distributive shares to be improperly influenced by these factors so arbitrary from a moral point of view." By implication, what would a moral point of view be? It would be a point of view where none of those natural inequalities have any bearing. Everyone starts from an equal starting point.
- 2.76** It's not the case that some people are born into two-parent intact families and some people come from broken homes. Some parents are alcoholic and some aren't. Those are matters of luck from the perspective of the child, and they are, from a moral point of view, arbitrary, and should not be considered. Capitalism starts with everybody natural and everybody free, but not equal. The equality is the big violation here.
- 2.77** Somehow we need to get people behind a veil of ignorance and in an equal circumstance, as well as a freely, rationally discussing principles circumstance as well. That means we should think of all of the assets in society, the people coming together, not as belonging to the individual, because I don't deserve anything from the beginning. I didn't earn anything from the beginning.
- 2.78** From this moral point of view, whatever difference in assets between us are morally arbitrary. We set all of that aside. Everybody is in an equal circumstance, and all of the assets are a part of the society that we are creating. "All social values, liberty and opportunity, income and wealth, and the bases of self-respect." You can't have self-respect if you are too poor and too physically disadvantaged. That's another inequality. So the basis need to have equal basis of self-respect for all people. "Are to be distributed equally."
- 2.79** That's our starting point—everything that we bring together in a society, our collective assets, to be distributed equally. That's our moral starting point. Unless, and then there's an exception. This is why Rawls is not going to be a strong socialist or a strong communist or a strong egalitarian. We should start from a presumption of equality across all of these dimensions, "unless an unequal distribution of any or all of these values is to everyone's advantage."

- 2.80 If we can show, for example, that an equal distribution of all of the assets in society would keep us relatively poor, but if we allow, say, 10% of the population to have more assets, then they will perhaps be more inventive and more hard-working, and they will increase the overall net stock of assets in that society, and that will make the whole of the society better off.
- 2.81 Then we will start from this initially equal start point, but allow some inequalities to develop, but they will be justified because they improve the lot of everyone. They collectively make the society better off. We're going to open the door to some measure of inequality and some measure of, once we realize we're stepping out from behind the veil of ignorance, that some of us are smarter, some are more inventive, some are more attractive, some are faster, some are this, some are that. If we allow for some of those natural inequalities to work their way out in a way that will benefit everybody, that's going to be OK.
- 2.82 In contrast to a society where, if we had agreed to the rules that everybody's always going to have the same amount of stuff no matter what, that society would be worse off overall. This feeds into a piece of Rawlsian technical terminology called the difference principle. Why are we going to allow some differences to emerge in society, instead of a strict egalitarianism? It's formalized in two ways, two sub-principles here.
- 2.83 "Social and economic inequalities are to be arranged so that"— so some people have more power, more prestige, more wealth, more whatever than others, as long as —"offices and positions must be open to everyone under conditions of fair equality of opportunity." So whatever the position is, maybe we have a new opening for a supermodel over here or for someone to join this professional sports team. The first principle will say, these are opportunities, everybody can apply for that opportunity. We're not at the outset arbitrarily going to say some people just can't even apply for that position. So, equality of opportunity.
- 2.84 And the second principles, "They are to be the greatest benefit to the least-advantaged members of society," the difference principle. Now, here there's a slight variation. Initially, when we had talked about the ideal distribution, we had said, we will start from a position of equality and collective assets, but we will allow some unequal distributions if it benefits everybody. That's a really high bar, and that's hard to measure in a lot of ways.
- 2.85 What Rawls subsequently does is tailor that slightly to say, you don't have to show that this inequality is going to benefit everybody in society, but you do have to show that, in our society, the people who are the worst off, the least advantaged, that these inequalities that we're going to allow will benefit them as well. They will not remain in the same position. They will not be made worse off by the allowing of the inequality.
- 2.86 For example, if we say some people, once we strip away the veil of ignorance, realize that they have a physical handicap. Maybe I do not have the use of my legs. And that

just means there's all sorts of careers are not going to be open to me. What we could do is just say, well, I still need the same amount of food and living space and everything as everybody else does, so we will have a communist or socialist or strictly egalitarian form of society. That doesn't change anything. Everybody gets the same amount of stuff.

- 2.87** But if we can show that, without the use of my legs, I'm going to be able to earn a certain living and get a certain amount of stuff, but the people who have two legs, some of them are going to be amazing athletes, and some of them are going to be amazing explorers, and all kinds of wealth-producing things, that if we let them do all of those wealth-producing things, then that society is going to be, say, richer overall, and I will be better off than I would be under a strictly egalitarian system. There will be more to go around. With the right kind of redistributions, I can be made better off.
- 2.88** So we justify the free use of your unequal natural endowments and acquired social endowments by reference to whoever the poorest, the weakest, the most handicapped members of society are. "We see then," and then this is a formalization of that we just talked about, "that the difference principle represents in effect an agreement to regard the distribution of natural talents as a common asset."
- 2.89** This is important highlighting. So it's not simply that you have physical attributes, as in my handicapped example, or people being differently beautiful or tall or muscular or whatever it is. It's not also simply the different social circumstances that people are born into, whatever their life their parents have managed to put together, but also your talents, your natural talent.
- 2.90** So if it turns out that some people are naturally musical, or naturally mathematical prodigies, or naturally able to master 20 languages without really trying very hard, or whatever that talent is; but also a natural talent might be that some people are just born a little bit more relaxed and ready to take a day off and so forth. Other people are real go-getters. They've just got this natural energy and vitality, and they can get by on 4 hours of sleep, whereas other people need 8 or 10 or 12 hours of sleep. So that difference of talent there.
- 2.91** Or it might be that some people are more persevering than other people. Maybe I'm one of these people, I try something, "Oh, that didn't work. Well, another day, maybe I'll try it again." Whereas someone else, naturally, they can't stand that. "If I tried this, it didn't work, I'm going to try again. I'm going to try again. I'm going to try again." And persevering, eventually, they do so. So it might be that character traits and personality traits, as well as intellectual traits and various other moral traits, are also naturally endowed in us.
- 2.92** Those two should be seen as assets belonging to the collective and the people who have naturally better than any of those, the circumstances that lead to them having

more than everyone else has to be justified by its also improving the lot of those who have less overall as well.

- 2.93** The maximin rule. Now, why would we do this? One more thing that Rawls does is to say, we are, of course, rational beings and we are self-interested beings. When we are behind the veil of ignorance and we don't really know very much about ourselves— I know I'm a human being. I know that you're a human being. I know we're going to have rules about political liberty and economic liberty and religion and family right and so forth.
- 2.94** What's going to happen, though, when the veil is lifted, and we all realize who we actually are as individuals in this society? I might be one of the very well naturally endowed ones. That would be great. But also it's possible that I will be one of the worst-endowed ones. Behind the veil of ignorance, I'm a human, but then the veil of ignorance goes away, and I realize that I'm scrawny, I'm not that smart, I'm kind of lazy, came from a terrible family, in a really poor country or a really poor part of the country. And so nature and society really gave me a short stick, so to speak.
- 2.95** Now, there's a risk here, and I have to engage in some risk assessment. Do I want to gamble that I will be one of the luckier ones? Or do I want to not take that risk and realize maybe I should play it safe and say there's a possible worst circumstance that I'm in. I might be one of the worst well-off in society. So am I a gambler risk-taker, or am I a little more conservative, risk-averse person? What Rawls argues, and this is the point of the maximin principle, is that the rational decision that people will make, rationally self-interested, is to avoid the worst possible outcome.
- 2.96** I want to have a guarantee that, no matter what, I won't be that poor guy who's semi-handicapped in a society with no safety net and no redistribution in place. That's the worst circumstance to avoid. That means that my rational self-interest in all of our voting, as we are doing in the social contract position, will be weighted toward maximize min. Imagine the worst possible, the minimal circumstances that you could be in, and I want to be in the best of the worst possible circumstances. That's the one that I'm going to vote for.
- 2.97** "The maximin rule tells us to rank alternatives by their worst possible outcomes. We are to adopt the alternative, the worst outcome, which is superior to the worst outcomes of the others." The best of the worst outcomes. Takes a little to wrap your mind around that. That's the maximin principle. So that's what we will vote for.
- 2.98** Now, here's an example. We're all familiar, probably as kids, about cake-cutting. So this cake-cutting example, suppose we then say, here's the cake. It's a collective asset. We're a social group, and we all want some cake. We're all self-interested. We want to have as much cake as we possibly can. What kind of a procedure are we going to institute? He says the obvious starting point procedure is going to be that, basically,

everybody should have an equal amount of cake. What procedure will we put in place to make sure that everybody gets an equal amount of cake?

- 2.99** I can consider all the possibilities, but one of the rules that's going to give me the maximum worst outcome is going to be if we let someone gets the knife, has the power to cut the cake as he or she wants, but the person who cuts the cake gets the last piece. Everybody else gets to choose first. How is that going to go?
- 2.100** Well, if you're the person who gets selected to cut the cake, you're not going to cut unequal pieces of cake because your rational self-interest calculation is then going to be, "I'm going to get the last piece, and what's the last piece going to be? It's going to be the smallest piece. I don't want the smallest piece. I want the biggest piece that I can get of the worst possible outcome. So it makes sense then for me to cut them all exactly equally because then I'm going to get an equal share."
- 2.101** I won't be able to go through any of the considerations and say, "Aha, I was born with a cake knife in my hand. I have the power, and nobody else has a cake knife, and I can cut the cake as I want, get a big piece for myself." The rules are going to forbid that. That's an example of maximin.
- 2.102** Now, an issue of equality as our starting point and managing redistribution, not simply to overcome social inequalities, natural inequalities, moral inequalities among human beings as well, Rawls incorporates into his position something from social psychology, where when we are talking about ideal principles—we want people to be free and we think wealth is a good thing, but we want people to be equal, we want things to be fair and so forth—Rawls takes it as a truth that, in a social circumstance, large inequalities are not simply unfair by some moral standard, but also destructive of the social fabric.
- 2.103** And that envy is a part of the human psyche, and envy is manifested, worse and worse, by more and more amounts of inequality. So if we have a society, and this is then going to be an argument he makes against the system of natural liberty or strong libertarianism, that just says, well, "Look, I worked in a free market. I created this product, and each product generates a dollar of profit for me. But around the world, a billion people like my product, and they voluntarily gave me a dollar of profit. I became a billionaire. It's mine."
- 2.104** But other people who didn't do that, what they're going to do is to say, "Oh, that billionaire, look at the car he is driving or she is driving. Look at how his kids can afford very nice dental work, and my kids can't afford that expensive dental work, et cetera. I hate that guy." To the extent that you have larger numbers of people who are not doing so well in a society where lots and lots of people are doing really, really well and being flashy with their wealth and so forth, you're no longer going to have a cohesive society.
- 2.105** You'll have a formation not directly of class warfare, not directly because people have different amounts of money, but the different effects of that money are going to put

people into psychologically warring classes. Now, you might say, well, don't be envious. Envy is a sin. That what you should recognize is, as long as someone has earned his or her million dollars by their own efforts in a free market, they didn't do any coercion, and you haven't, well, don't hate that guy.

- 2.106** Just do a little self-reflection and realize, well, you could have done that, too. Maybe if you change your habits or do some different investments now, go back to school, etc., you can improve your circumstances. Why not see that person as an inspiration? "Wow, he made \$10 million. I'm fired up. I'm going to try to make that \$10 million, too." Maybe that's the more morally healthy thing to do. But Rawls wants to say, maybe that would be more morally healthy, but he doesn't think it's very realistic.
- 2.107** It gets unrealistic to the point where, instead of being admiring of other people's accomplishments, envious people not only hate the person who has the greater accomplishments, they start to hate themselves. They start to lose their self-respect. And when you start to lose your self-respect, that becomes disempowering. And so any advice about, well, go back to school and re-educate yourself or just put in some overtime hours, or cut back on all of those luxury, useless expenditures and save for a rainy day and so forth, all of that advice is not going to work on a person who doesn't have the basic self-respect, that their envy has taken them to a very dark place.
- 2.108** And Rawls wants to say, "I understand that." Probably because most of the natural endowments that people have, and the social endowments, they didn't earn them in the first place. It's just bad luck that I ended up with the endowments that I have. So if I'm envious, that's excusable, that's understandable, from Rawls' perspective. "When envy is a reaction to the loss of self-respect in circumstances where it would be unreasonable to expect someone to feel differently, I shall say that it is excusable."
- 2.109** Some envy, of course, is not excusable, but much of envy driven by inequalities, Rawls is going to argue, is excusable. It becomes a social force, and so good social philosophy is going to take into account and devise policies in order to avoid the certain amounts of excusable envy. The way to do that is not letting the inequalities of wealth get too great. Keep it within a manageable score by redistribution and so forth.
- 2.110** Now, I want to wrap up on a slightly historical note by pointing Rawls back to Immanuel Kant. Immanuel Kant, arguably the most important philosopher of the last 220 years or so, writing at the height of the Enlightenment in Britain and in France, and there have been some Enlightenment inroads further east into Prussia, the German states, and so forth.
- 2.111** Just for historical points here, that Rawls is arguing that his basic moral philosophy and his conception of human nature is not original to him, and that he is taking for granted and as background much of Kantian moral theory as it has been worked out since Kant. I think as a necessary adjunct to wrestling with Rawls, if one is so inclined, make sure

one includes a certain amount of reading in Kant's moral philosophy or listening to lectures on Kant's moral philosophy.

- 2.112** Here's Rawls' self-description of his resulting theory. "The theory that results is highly Kantian in nature. The theory that results is highly Kantian in nature. Indeed, I must disclaim any originality for the views I put forward." I am not original. I am applied Kantian, and that becomes important. The veil of ignorance, this governing circumstance where we treat natural and social endowments as arbitrary, as mere matters of moral luck to be set aside, that we're going to start from a collectivity of assets, including one's assets of talents.
- 2.113** "The veil of ignorance is so naturally conditioned that something like it must have occurred to many. The formulation in the text is implicit, I believe, in Kant's doctrine of the categorical imperative." The categorical imperative is a term of art, technical terminology for the governing principle in Kantian moral philosophy.
- 2.114** One concluding remark. John Rawls is among the most famous liberals, politically, liberal political theories of the 20th century, and his influence continues on into the 21st century, where we are now. But as we know, political labels are often fraught and widely and sometimes weirdly used in American and other political vocabularies. Rawls in the literature is described as a liberal, but interestingly also Robert Nozick is a liberal. Ayn Rand in the previous lecture is also a liberal, in that they are making freedom a fundamental political value, in contrast to all of the political philosophies that don't put liberty at the fundamentality.
- 2.115** But just as with all of the other political "isms" that are out there, there are schools and sub-schools and so forth of them. John Rawls has the name liberal, and he, toward the end of his life, wrote another book called Political Liberalism. Often, when you're asking or debating political philosophy with people who are liberal, your question you have to ask, is this a Rawlsian liberalism, or is it a Nozickian liberalism, and so forth?
- 2.116** Sometimes you start seeing the development of adjectives in front of the liberalism. More often, what you will find is that, say, Rand and her version of liberalism will be put in what's called the classical liberal school. She'll be a representative of classical liberalism because she is more explicitly drawing on someone like John Locke and Adam Smith and others in that long tradition.
- 2.117** Whereas by contrast, John Rawls is sometimes called modern liberalism because much of the social contract theorizing and the moral luck theorizing was developed later in modern times by 20th-century moral philosophies. And so, in that sense, it's more of a modern liberalism. So, as a point simply about terminology and clarity and political discussion, since this is often frustrating, be willing to stop for a minute or two when one is conversing and get clear on the basic terminology. What kind of liberalism are we talking about here?

Lecture 3: Third Way Politics

At a glance — Third Way politics after the 1989 fall of the Berlin Wall.

- 3.1 Let's begin in 1989. The Berlin Wall comes down. Symbolic, as well as a physical barrier separating East and West. In the Cold War context, the border between capitalism in the West, socialism in the East or communism in the East. Free society by and large in the West, controlled authoritarian and even totalitarian societies in the East.
- 3.2 The Wall ran through the center of Berlin. Half of Germany was West, half of Germany was East. When the Wall comes down, a great deal of celebration, reuniting friends, families, but also opportunities, particularly for the Eastern side of Berlin, the Eastern side of Germany, Eastern Europe. The entire iron curtain goes away because communism has failed, is recognized to be a failure, and the communist governments basically give up.
- 3.3 Huge amount of celebration around the world, and then a reflection on what do we do now as political theorists, because it seems like, broadly speaking, liberalism has won. If we think of the march of modern philosophy, a lot of controversies after we get out of feudalism and tribalism. But at the beginning of the 20th century, it was far from clear that liberalism was going to survive, much less flourish or become dominant.
- 3.4 We saw the rise of fascism, the rise of national socialism, and world wars fought over that. The rise then of communism and the Cold War, and other nastinesses fought over that for many decades. There's an influential book published by a political theorist, Francis Fukuyama, called *The End of History and the Last Man*, and the provocative thesis of the book was that liberalism's triumph represents the end of history.
- 3.5 This is in part a Hegelian doctrine. Of course, Hegel was far from being a liberal, but Hegel had argued that history has an end or history has a purpose. There's an intellectual, cultural, philosophical development that is going to reach an end state. Hegel did not think it was liberalism, but Fukuyama is arguing that what has emerged in the modern world is, liberalism is the only viable political philosophy, that we have tried any number of other ones. The others have all been failures in theory. They've been failures in practice.
- 3.6 Liberalism is doing a good job of putting food on the table, roofs over people's heads, lots of entertainment, lots of freedom, by and large respecting civil rights. We recognize, of course, there's lots of parts of the world that are illiberal, but as they develop, they're going to follow the same path that the West first went off. And ultimately, we are looking at a liberal end of the century and the further development of liberalism, and eventually the entire world is going to be liberal. So very optimistic and celebratory about what has transpired.

- 3.7** Now, more particularly, though, there were those who thought the debate was not as simple as that and certainly not going to be open, because many of the people were then saying, what do we mean by liberalism? Well, we mean civil liberties, we mean political liberties, we mean economic liberties, we mean religious liberties. In effect, we need the entire package. Human beings should be free agents in all areas of their life. And so, some sort of maybe strong libertarianism is going to be the wave of the future, or some sort of strong free market capitalism, in contrast to the controlled socialisms that we had been dealing with.
- 3.8** But an important sub-school of thought, perhaps the dominant center of the school of political, philosophical thinking, immediately disagreed and said, while it may be true, and we're happy that socialism, communism, fascism, national socialism, all of those collectivist doctrines have failed, we're not going to go there anymore, we don't want to go to the other side of the spectrum and say that we are in favor of principled capitalism or libertarianism.
- 3.9** Instead, what occurred was centrist political thinkers and politicians quickly came to the fore and started talking about a third way of politics between capitalism and socialism, or strong liberalism and authoritarianism. President Bill Clinton, right now a youngish president in the United States, on Time magazine, stating forthrightly, "We have moved past the sterile debate between those who say government is the problem and those who say government is the solution."
- 3.10** Government is the problem. That has been those who argue that the more you have government involved, the more it throttles the economy, stifles civil liberties. So government is the problem. Get the government out of the way; we should have a fully free society. The others wanted to argue, no, no. Freedom leads to all sorts of problems and dislocations. We need to have strong government, maybe even more government, to solve all the problems that liberalism creates. So government is the solution.
- 3.11** Instead, "My fellow Americans, we have found a third way," and it's not going to be either of those extremes. Across the Atlantic Ocean, similar thinking politically, ideologically, the Prime Minister of Britain is Tony Blair, and some very similar principles being enunciated. What is this third way that Bill Clinton has been talking about? "The third way stands for a modernized social democracy. It is a third way because it moves decisively beyond an old left preoccupied by state control, high taxes, and a new right treating public investment, and often the very notions of society and collective endeavor, as evils to be undone."
- 3.12** The third way is not going to be like the old left, the Marxists and the strong socialists, who wanted to say, "The state should run everything. We need to have high taxes, approaching 100% taxes, and the state's going to redistribute everything to people," versus those on the other hand who are suspicious of anything that the government does and wants to say, "Get the government out of everything, and let's go to a free,

perhaps even an anarchic society." We're going to go to a third way somewhere in the middle between those two.

- 3.13** Now, into this debate becomes very importantly the work of James Buchanan, who, just a few years before the Berlin Wall came down, was awarded the Nobel Prize in economics. He was awarded the prize for developing a new school within economics, within political economy, called public choice economics. The argument here was that what we have done as economists is study very much how private markets work. We talk about supply and demand and marginal utility and diminishing returns.
- 3.14** We've worked out very sophisticated understanding of how decentralized markets, individual entrepreneurs making their own decisions, and all of their actions, come to be coordinated, buyers and sellers in the price system and so on. We have this very sophisticated understanding of how the economy works in the private sector, absent government involvement.
- 3.15** Now, of course, to a significant extent, the socialist economists have been trying to say, well, let's suppose, pretend that we don't have any sort of a private market at all. Instead, the entire economy is run by the government, that it has a central plan, and we're trying to work out our plan here as well. What Buchanan and his colleagues are working on is to say that neither the capitalist model nor the socialist model is, in fact, accurately descriptive of the way the economies, more accurately, the political economies of the modern world, actually work.
- 3.16** What we need to do is study not only private choices and how private choices come to be coordinated in a private free market, but rather how public choices are made—the public being the representative of the public. That is to say, the government, how they make their political decisions, but political decisions as they directly affect the economy.
- 3.17** One very interesting measure that Buchanan says that woke him up was to say that he had been studying private economies, and we were saying that maybe the United States is the most developed capitalist economy in the world. But if you look at the actual size of the government after World War II, on into the 1950s, 1960s, then we have the war on poverty and the expansion of all these programs; sometimes the military budget goes way up.
- 3.18** Sometimes the interest that the government is paying on its cumulative debt, it is so much that in almost every so-called capitalist country, the government is at least one-third of the economy. In some cases, the government is 50% of the economy. If we are studying how this economy works, but we are abstracting away from the biggest single agent in the economy, then we're going to have a very unrealistic understanding of the way the world actually works.
- 3.19** Let's take the great advances and all of the tools of measuring and analytical tools that economists have developed in the modern world, almost two centuries now, and apply

them to not simply the private market, but also to public market. How do politicians, to the extent that they are economic agents, economic calculators, but operating from a position of political power, make the decisions that affect the economy in various directions?

- 3.20** Now, particularly if it's going to be that we're following third-way politics as President Clinton and Prime Minister Blair want us to do, we're not going to do pure socialism. That's been a failure. We're also not going to do pure capitalism. We like parts of that, but we don't want an extreme version. As a matter of principle, we want the government to be centrally involved in the economy and working in partnerships with the major business sector.
- 3.21** So the Secretary of Commerce, the Secretary of Energy, the Secretary of Transportation, the Secretary of Agriculture, the Secretary of Fisheries. We're going to have official government agencies formulating policies for all of the important sectors of the economy. And it's not that we're going to have this adversarial relationship with the private sector. We want them to work hand-in-hand as a kind of private-public partnership. How, in fact, is this going to work out? Not as a matter of ideology necessarily, but as a matter of practical, descriptive economic and political reality. The science then of public choice is born.
- 3.22** Now, Buchanan, with his most prominent colleague in the early part of his life, Gordon Tullock—I'd like to mention Gordon Tullock, a world-famous economist. I've taught for many years at Rockford University in Illinois. Tullock was a native of Rockford, so one of our more famous sons—published in 1962 a book called *The Calculus of Consent*. That is a somewhat alliterative title.
- 3.23** We make consent, we have a broadly democratic kind of government, but economics brings all sorts of tools of calculation and calculus. How can we apply the economic tools of calculation in a consenting society, broadly speaking, a democratic society? The biggest criticism they start off by making is that the way political philosophy had largely been done, even in the modern world, was on the politics side, not very realistic.
- 3.24** Instead, much of political philosophy ended up being kind of realistic when it came to looking at what the private market was doing, but incorporating unrealistic or speculative theory on the government side of the equation. So, the concept of market failure, for example, a very common move for economists and political philosophers was to say, all right, so we're studying people as they act as free agents. They're out there in the market. Maybe they are in the business market or they are in agriculture market. Maybe they're in the dating market.
- 3.25** There's just all of these markets in a free society where buyers and sellers, so to speak, come together and form deals and so forth. What we do then is to say, if we have made this assumption of free individual agency, sometimes people make good choices, but a

lot of times people make really bad choices. And systematically, sometimes people make a lot of really bad choices, and so there are failures in the market.

- 3.26** Now, it might be, for example, that we say, if we have a free market, it's going to sometimes mess up in various ways and there will be high unemployment. And so the market has not provided enough jobs, and that's going to be a market failure. Or we might say we have let people decide their family size, and suddenly we've got this huge population because people are choosing to have large families, and so we have a population crisis, too many people. That is a market failure because we let people make their own individual free choices in the dating and reproduction market.
- 3.27** Or we might say that there are going to be various kinds of shortages and then prices are going to go up. And so various sorts of things are going to be unaffordable to large numbers of people. That's a large market failure. Or more sophisticatedly, we might say, from our perspective, and we're looking at all of the productive resources at a society, or of a society, we see how they are currently being arranged in society by all of the collective decisions of the individuals.
- 3.28** But we think from our perspective that if those resources were remobilized in various way, the economy as a whole would be more productive. My speculative theory says so, and so therefore the market is not perfectly efficient, realistically. But my ideal theory says if, say, I, or the economists and I, had power, we would have a more efficient economy organizing things the way that we do so.
- 3.29** But what we're doing in each of these cases then is going to be making a move at something like this. The free market does this, and I don't like that, or I think that's a bad result, or I think it's a less than fully efficient result, and that's a realistic claim about the market. Therefore, the government ought to do something about it. We have to have a new program, a new law, set up a new office to solve the problem. Then I will just leave it at that and I will start lobbying for government as the solution to the problem.
- 3.30** I've not investigated yet at all what, in fact, is going to happen if we set up this new government agency and empower it with a certain amount of resources and so forth. All I've just said is, I think this is a real problem, and somehow the government is going to solve it, but in some idealistic, not-yet-worked-out way. What Buchanan wants to do is to say, that's bad social science in the first place. What you need to do before saying, "There's this option and there's this option, or this is a problem and this is a solution," is to investigate empirically both of them.
- 3.31** Both of them are going to have costs and benefits and risks, and you have to make sure you've tallied the costs and benefits of risks, and then you compare the two and you decide which one is better. It might be that, yes, there is a market failure of some sort. But if you put in place a government program, it might solve the problem, but it might

make the problem worse, or it might create other problems that are even worse. You can't know that if you haven't tried to look at it.

3.32 Now, this is not just an ideological issue. In many cases, we know economists and other kinds of social scientists have ideological presuppositions. Maybe they are anti-capitalist or anti-free market from the get-go. They're just looking for problems in the free market and just using that to say, "We need to have more government programs, more government programs," and so on. It's just ideologically driven.

3.33 But setting aside the ideologists, there is a straightforward social science method issue. That's not how you make good policy. You look at both policies, both possibilities, cost-benefit risk analyses, make your comparison in an impartial fashion, and then you make a decision. Should we have a free market in this case, or should we have some amount of government regulation in this place?

3.34 There's a joke that Buchanan liked to tell sometimes to illustrate this, where he would say, "I'm a king. I'm a little bit bored tonight. I think I want to have some music, and I'm going to have a competition for a violin competition." So two violinists put their hands up and say, "I want to enter into the competition." And so we say, OK, so first violinist gets up and plays his violin, plays the song for a few minutes. The song comes to an end, and the king says, "OK, the competition is over. You lose. That other guy is the winner."

3.35 And your natural response is to say, "Maybe that guy wasn't the greatest violinist yet, but you haven't even heard this guy yet. And it's premature to announce that he is the winner if you haven't actually heard him play and put to the test." So we can't just do ideal political theory and think that it's automatically going to solve whatever weaknesses we think freedom markets are going to have.

3.36 When we start, though, looking at how actual governments work, even in democratic, republican institutions, the argument is going to be that there are patterns of behavior that are consistent enough so that we can start talking about there being not only laws or principles governing how free markets work, or laws or principles that would govern how socialist central planning would work, but these mixed third-way kind of blends between private and public sector are going to work. There's a whole apparatus of terminology that starts to develop.

3.37 One is called unintended consequences, and this is the surprising number of times in which there is a problem. Government, in fact, offers a solution to the problem, but the solution ends up being worse than the problem. That's called unintended consequences, examples of that. We might say we need to have a government bureaucracy in order to solve a certain amount of problem, and the problem is this big, so we need to have this government bureaucracy.

3.38 Maybe that problem goes away or remains the same, but nonetheless, a generation and a half later, the bureaucracy has grown to be quadruple or quintuple the size that it

originally was. Why is it the natural, so to speak, development of bureaucracies to get bigger and bigger and bigger, even if the problem that they're trying to address itself is not getting bigger?

- 3.39** There's the issue of regulatory capture, as it is sometimes called. Here we have the problem of, we have some sector, say, in the economy, and we think there is some bad stuff that's happening or some inefficient stuff that is happening. We set up a government regulatory body, and its job is to monitor and stop the bad stuff from happening. But somehow the people who are working in the government body come to be captured, so to speak, and end up seemingly working for the people they are supposed to be regulating.
- 3.40** It's a corruption of power. Instead of being a regulatory power, it becomes an enabling power. That happens often enough, and there's a dynamic at work there, and so on, and so forth. What I want to do is work through some of the more common patterns that the public choice economists will say are going to develop in a mixed economy or in a third-way kind of economy. Now, in one way, this is not anything new. James Buchanan will say some parts of this are phenomena that have been recognized for a long time by various people. But there is something new, and we'll get to that in just a moment.
- 3.41** We say, for example, once you start having as a general principle the idea that the government should be able to redistribute assets from some people to, from other people, then you're going to get things. Here's Voltaire back in the early part of the, the height, rather, of the Enlightenment, early modernity, cynically saying, well, "In general, the art of government consists in taking as much money as possible from one party of the citizens to give to the other." It's just simple wealth transfer, from the politically not-very-connected to the politically connected, and that's the art of government.
- 3.42** Or P.J. O'Rourke, a more recent political humorist, making this remark. "When buying and selling are controlled by the legislature, the first thing to be bought and sold is legislators." Or one of the high-ups in President Johnson's administration, remarking, "No one ever asked me for anything more than an unfair advantage." He's constantly being lobbied, and lobbying is a part of the system. We want government to be responsive to people, listen to the citizens, and so on.
- 3.43** His point is, I have a certain amount of power here, and constantly what I'm facing is people not interested in so-called "the public interest", but looking for special favors that are going to advantage them against their competitors. These phenomena are all recognized. But rather than being abuses of the system, if we think it's not just the government gets power and then the people who are connected start to redistribute wealth and so on to their buddies and so forth, or we think that there's going to be lobbying, and then people are going to have special interest lobbying and corrupted politicians.

- 3.44 Even if we say redistribution is a matter of political principle, lobbying is a part of a democratic government and so forth, there necessarily are going to be people who will be using the rules of the game fairly in the mixed economy, but they will be using the rules of the game in a way that's not good for the economy as a whole, not good for the political system as a whole. There are systemic problems with the third way of doing government.
- 3.45 Some of the labels that are developed here, and these are fun ones. So pork barrel, for example, colloquially known as bringing home the bacon. Suppose we say, I want you to elect me as senator from the state of Illinois. The state of Illinois has Chicago, but it also has huge amounts of agriculture. I then get sent to Washington, DC. What officially is my job supposed to be as senator? I am to represent the people of Illinois, but I am also in the federal government representing the people of the United States, and I'm to consider all policies, economic policies, etc.
- 3.46 Not from the perspective of what's good for me getting elected again in the state of Illinois, not what's good for my buddies back in the state of Illinois with whom I did business with and so forth, or who I wanted to get elected, not only what's good for Illinois, but what's good for the nation. This is the theory of pure ideal democracy. We have citizens, they get elected, and they consider dispassionately policies that are good for the nation as a whole.
- 3.47 And how often does that actually happen? Because if I am the senator from Illinois, what I learn very quickly is that's not actually my job. My job is to go to Washington, DC, and get as much money and grants and subsidies that are going to benefit people back in Illinois. I am in competition with senators from Iowa, senators from Georgia, senators from Texas, who are trying to do the same thing.
- 3.48 Because what we now have is this mixed economy where the government has this huge pile of tax revenue, and the people who get to decide where those millions and millions and billions of dollars go are the senators. They're not interested in saying, what's a fair distribution for the economy as a whole? They're saying, what's good for Illinois? To the extent that I bring home the bacon, as the colloquially language would say, I am then going to be more likely to be re-elected.
- 3.49 Now, this then is to say that we're operating now on an assumption of behavioral symmetry. It used to be, and this is Buchanan's criticism, was that we would say, how do we understand the behavior of people in the private sector? Will we assume that they are self-interested, they are profit-seeking, and we go into the market, and I'm trying to make the best deal for me, for my family, for my business, and so forth? And of course, you're doing the same thing when you go into the market.
- 3.50 But then we say, that's how it works in the private market. Sure, everybody is self-interested, but our ideal democratic theory says that if we become elected officials, we stop being self-interested people acting in the market. We become these, not

concerned with our own self-interest. We're trying to think about the collective interest of the nation as a whole. Buchanan is saying that that is an assumption of asymmetry. He says, no, that's not the way it is.

- 3.51 In a free market, in a private system, you've got a lot of people who are committed to the idea of working for a living and trading fairly in the market. You've got a lot of people who are in the market who are trying to steal and defraud from each other. You've got other people who say, "I don't care about my self-interest. I'll work for you for free. I'm going to work in the nonprofit sector or so forth." We have all of these types of incentives and moral, psychological types in the free market.
- 3.52 We can't just assume that when people become elected politicians or they go to work for the market, they suddenly have a completely different psychology. We'll have some people who will go to Washington, DC, or wherever, and say, "I'm not going to see this as Illinois versus Iowa versus Wisconsin and try to get the most for me and screw the people from the other state. I'm going to think about what's the national interest."
- 3.53 But at the same time, we know there's a huge number of them who are, in effect, are functioning as predators. They don't really care about the rest of the nation. They care about their people and then various other moral psychology. So whatever psychological incentive types we think are operative in the free market to describe human nature, we also have to apply that in the public sector.
- 3.54 And so the pork barrel, the idea is that there's just a big barrel full of pork, and all of the senators or the elected representatives are rushing to grab as much pork as they possibly can to take it home to their people. Just as that would happen if you put a barrel of pork out in a free market, the same thing happens, the feeding frenzy, in Washington, DC.
- 3.55 Another phenomenon that is a common one is called logrolling. If you imagine that lumberjack game where there's a big log floating in a river or a pond, and you're supposed to get on the pond and stay afloat and you have to get the log rolling and so forth. You probably have seen this. Then it becomes more cooperative. You try to get two, three, or four people on the same log, and everybody has to be doing so in unison to keep the log rolling, so to speak.
- 3.56 Now, logrolling in the political context in a mixed economy is going to have a non-metaphorical meaning here. So suppose, for example, I will remain being the senator from the state of Illinois. What I then want to make sure I do is, when I get to Washington, DC, I want to get on the federal expenditure committees that spend money with respect to agriculture, because I'm a big agricultural state, and so I want to make sure I'm in a position to influence the decisions about how the agriculture money is going to be allocated.
- 3.57 I don't really care about the fisheries department. There's not a whole lot of mining in my department or oil drillings. I don't really care very much about the mining sector or

the Department of Energy or whatever. Or maybe my neighbor from the state of Iowa, he doesn't have Chicago, which has a pretty big financial sector. It's a largely agricultural state. That guy doesn't care about the SEC and the regulation of the financial markets and all of that and so on.

3.58 What we then have is, say, just to keep it simple, a whole bunch of senators from different parts of the country representing different kinds of economic interests. What I am interested in as the senator from the state of Illinois is certain kinds of legislation that are going to benefit the agriculture interests. But the senator from Maine, where there's a lot of fishing, that North Atlantic Great Fisheries Basin, doesn't care particularly much about agriculture, but cares a lot about fishing policy. The senator from Colorado cares a lot about energy and mining policies and so forth.

3.59 What's going to happen, though, is, I will then, suppose I get on the right committees, propose some certain rules that are going to make sure a certain amount of money flows into agriculture, and a significant amount of that is going to go to Illinois. I care about that a lot, and I will go and have a conversation with my colleague from the state of Maine. Doesn't care very much about that policy at all, but he's been crafting a policy that has an effect on fisheries policy and how the monies are going to flow to the various states that have the large fishing subsidiary economies.

3.60 I don't really care about that, but what we will do is we will work out a deal. I say, I will vote for your policy if you vote for my policy. That is to say, you'll keep my log rolling, you'll help me roll the log, and I will then help your log continue to roll. And so all of these deals are going to be worked out. Are they for the good of the nation as a whole? Not clearly. So there's a very different dynamic at work here.

3.61 Lobbying and bureaucracy. It was interesting, if we go back to 1933 when the Department of Agriculture was formed, and farm subsidies were put in place, huge amounts of farm subsidies. This is a temporary solution. We're in a depressed economy. The depression will pass, and then we will disband this whole economy. But then, of course, it doesn't go away. In fact, it gets bigger, and you have not only a few initial subsidies at a few million dollars, you have a huge, larger number of subsidies.

3.62 That is because the bureaucrats, they are inside the system; they know how to protect their interests. We might say, well, they don't have a profit motive. After all, they're not working in the private sector. It's not that if they make the right decisions, they're to make a million dollars. These are all salaried people. But there's another kind of motive. It's the power motive. If you are in politics, it's all about power, or primarily about power, and you want to have more power.

3.63 What you are thinking about is, right now, I am in my department, I have 100 employees, and I have a certain amount of budget. How do I increase my power and prestige in Washington, DC? By making sure that next year I've got 120 employees and a larger budget, and then we need to get a larger building. And so there's the same

growth impetus happening in the political sphere as happens in the private sphere. But it just doesn't have to do with the profit motive. We call it the power motive.

- 3.64** One of my favorite examples, but it has a very unwieldy phrase, a very common pattern. Often, we citizens, we'll look at the budget and say, why is the budget so huge? Why is it so bloated? If we pay at all attention, we start to see, there's all sorts of really weird special interests in there for a million dollars here, \$8 million there, \$14 million there. Now, of course, this is small change from Washington's perspective, but from my budget perspective, I say, "Whoa, that's a lot of money. And it's going to this weird thing. In what way is that the national interest?"
- 3.65** And why is it not only in the budget, but it's been in the budget for so many years? Why doesn't somebody come along and say, "This is not a national interest. We have these big budget deficits now. We should start cutting things that are not essential government services, and this is an obvious candidate." But that almost never happens. Well, why not?
- 3.66** The name is concentrated benefits and dispersed costs. The question we have to ask here is, for any program, someone is going to pay for it. That's the cost side of the equation. Someone is going to get the benefit of that program. That's the benefits side of the equation. The idea here is that the benefits are going to a small targeted group of people, but the costs are dispersed or spread out over a large number of people.
- 3.67** The people who are getting the benefit really care about that benefit, and they're paying a lot of attention to making sure that benefit stays in the federal budget. But the people who are paying the cost often don't even know about this program. And if they did know about it, it's just a small amount, and so they aren't really going to make a big deal about it, and they're just going to let it go.
- 3.68** My favorite example of this comes from my own philosophy profession. There is a government agency that's to look after the humanities and the arts, and it has several tens or hundreds of millions of dollars that it spends then on cultural enrichment in the humanities, and philosophy is part of the humanities. So, we spend millions and millions of dollars on cultural enrichment.
- 3.69** Then you might say, "Well, that's nice. But do we really need to be spending that much money? Where exactly is this money going?" Suppose I happen to be your neighbor, and this is a fictional example, but there are lots of real examples that I know about, where I said, "Well, I'm taking the family to Europe this summer, and we're going to spend a month in France. And thanks, by the way, because you're all paying for it." I'd say, "Well, why on earth would I pay for you to take your family on holiday in Europe?"
- 3.70** And I'd say, "Well, it's because we don't call it 'Professor Hicks taking his family to Europe on holiday.' What we call it is a 'philosophical cultural enrichment grant.' And I got a grant for \$10,000 to study the famous philosophers of the French Enlightenment. What this requires is that I travel to Europe in order to be able to go into the archives in

Paris and various other places. I'll tell you, secretly, I actually will go into the archives maybe for a day or two, but that's not really why I'm going to Europe."

- 3.71** How did this come about, though? How did Professor Hicks get the federal government to give him \$10,000 so that, basically, he can have a nice month in Paris with his family? I'd say, "Well, I am a member of the Society of American Philosophers." I just made this name up, but there are real analogs. There are 1,000 of us professional philosophers around the country, and we each pay \$100 to be a member of the society. We have some low budgetary costs. We have a secretary and so forth.
- 3.72** But basically, that 1,000 people each paying \$100, most of that money we spent on lobbying. There are lobbyists who talk to the people who are responsible for the portion of the budget that has cultural enrichment in the humanities, including philosophy; the historians have theirs and so forth. In the budget for the last 40 years has been \$1 million that's to go to the Society for American Philosophers, so that they can put on conferences and sponsor journals and this, that, and the other.
- 3.73** Every year, the Society for American Philosophers is going to award grants to 10 philosophers to go abroad and do philosophical research and then hopefully come back and do some publication. Now, that's the story. So the philosophers really care about this. I'm going to pay \$100 a year, yes, to be a part of the society, and that gives me certain benefits. But also, once in a while, I'm going to get a \$10,000 grant. That's a lot to me. But how much is it costing the rest of you?
- 3.74** You would say, well, OK, so the philosophers are getting a million dollars a year for all of the stuff that they do. There's 300 million citizens, and 100 million of them are paying taxes. So if I do the calculation, this is really only costing me eight cents a year in my taxes. But—I just made these numbers up—eight cents a year times however many millions of taxpayers, that adds up to a million dollars that the philosophers can get. You're not going to make a big deal about 8%. "We need to go to Washington and march against the philosophers who are abusing the system in order to get my eight cents back." That's just not a valuable calculation to you.
- 3.75** On the other hand, the philosophers are organized. We collect our dues. We make sure every year, 80, 90,000 dollars gets into the pockets of those lobbyists who are talking to the right kind of politicians, to make sure that does not get cut from the budget, and it's going to stay in there forever. All right, that's an example of benefits rather, and dispersed costs, but you multiply that by 1,000, 10,000, and you get a big budget and you get a lot of money.
- 3.76** Vote buying. It's going to be another example, built into the nature of democratic societies. Let's take an example. Big city, we have sports teams. The big city has lots of sports fans. Maybe there's a big stadium where they play soccer, they play football, they play baseball. Maybe it's a multi-purpose stadium or whatever, but it's getting a little bit old. Officially, all of these sports teams are a private enterprise, so there are

people who own the team, and they realize now that the stadium is getting a little bit old, that it really should be torn down, and we can build a brand new stadium.

3.77 It's only going to cost \$800 million. We have people who like to watch sports, people who like to play sports. There's a whole private sports enterprise here and so forth. But in an economy where we say we have a mixed economy and we believe in cultural enrichment and doing things that are good for the community, if I, for example, imagine myself as the rich owner of a sports team, maybe I'm a billionaire, but I'm still looking at spending \$800 million to tear down and build a brand new stadium.

3.78 What if I can go to the democratically elected mayor of my city and say, "You have taxation power over the millions of people who live in this city. What I would like to do is, of course, I'm going to arrange for private financing and we'll come up with \$500 million to build the new stadium, but we would like the city to kick in \$300 million."

3.79 I can make the argument to say, well, this is for the citizens of city because there's a huge number of them who love to watch sports. Think of all of the sports fans that are out there. There are all of the restaurants that are going to be in the area. Every time there's a game, the restaurants are going to make a lot of money. There's going to be more tax revenues. If it's a new stadium instead of an old stadium, the tax valuation of the property there and so on goes up. So you guys will be able to bring in more in property tax and so forth. I play up all of the economic benefits here.

3.80 Long story short, the mayor and the mayor's economic advisory team says, "Yeah, that sounds like a pretty good idea. I'm going to propose an increase in the city taxes in order to, a special levy to raise \$300 million to build a brand new sports stadium." This is going to happen all of the time. Some mayors will buy that argument and some won't.

3.81 But what Buchanan is interested in, and this is where he starts to get more normatively charged, is to say, why are we making however many people in the city who don't particularly care for sports pay for the pleasure of other people who happen to like sports? Is this an essential public service? Is this what governments are set up for?

3.82 I think, for example, of this group of ladies I used to know. They were older and they were all relatively small. So I think of them affectionately as the upset little old ladies who were not very affluent, but they saw their tax bill go up and they saw the tax referendum, and they were quite justifiably outraged and saying, "Look, my taxes are going to go up so that we can build this new stadium. I don't watch sports. I don't care about sports. But nonetheless, money is forcibly being taken from me in order to subsidize the sporting pleasure of various other citizens."

3.83 So that's, in effect, vote buying. And why is it vote buying? Because the mayor of the city, the next time it's an election season, what will the mayor's platform be? Vote for me because pictures of beautiful new stadium that was built under my watch. I brought this to you. And then there's a huge number of people who are sports fans and say,

"Oh, I love the sports stadium. I also like the fact that my ticket prices are not as high as they otherwise would be because a lot of this is being subsidized and so forth. I'm voting for that guy." But that's vote buying.

3.84 In the old days, we used to say, at least according to ideal democratic theory, you shouldn't be buying people's votes. Instead, people should be voting because we think the policies this politician stands for are accurate. OK, I want to do one more quick example here, and then I want to go to the text and read some of James Buchanan in his own words. But this one is sometimes called revolving door and regulatory capture, and they work together with each other.

3.85 The simplest kind of example that we have here is, we imagine a two-party system, such as we have here in the United States, predominantly. We have, we'll call them Party A and Party B. Suppose we say, Wall Street gets pretty big, and suppose we're a little bit distrustful of a lot of the things that Wall Street engages in. So we should have a government department or a few of them that regulate what happens on Wall Street and in the financial sector more generally.

3.86 So we have all of the Wall Street capitalists, and then we now have an office that regulates the Wall Street and so forth, the Securities and Exchange Commission, the Department of Trade, and so forth. But we also live in a democracy, and we have elections every four years. On average, after four years, the party that was in power gets voted out, and the party that was out of power comes into power.

3.87 That means many of the people who were in the regulatory body that was regulating Wall Street and so forth, the new administration lets them go or fires them and appoints some of its own people. Where do you get those people that you are going to appoint to important positions in the regulatory body, say, if you want to regulate Wall Street? Well, you've got to hire people who actually know something about Wall Street because that's really, really complicated technical specialist stuff.

3.88 So what you will do is work your contacts list and say, who do I know who maybe has some Wall Street experience? And we will take someone who's had a successful career in Wall Street and appoint him or her to the Securities and Exchange Commission. So now this person is no longer working for Wall Street, but is now working for the Securities and Exchange Commission. Before, he or she was working for private interest; now he's working for public interest.

3.89 But who is this person really working for? One thing you might think is that the person is thinking, "Well, OK, I've got this job. I'm now working in Washington, DC, but I know there's going to be an election in four years, and we might lose. 50% of the time we're going to be losing. So I'm going to lose my job here in Washington, and I'm going to go back to working in Wall Street. What can I do in four years?"

3.90 I'd say, well, we're going to make all sorts of rules. So we're going to make some rules, some new rules, really complicated rules, that only we inside the commission know

about. It's going to take us a while to work it through the process, but some of them will work their way through the process after three years or four years or so on. Then, supposing we lose the next election, I'm going to go back to my Wall Street job.

- 3.91** Now, though, I'm working not for the government, but I'm working for the private sector. But I know this brand new rule is in the pipeline, or it's just in pass, and no one knows this rule better than I do, because I made it up. I know the ins and outs of it, and I've had three or four years to plan how to use this rule to my advantage once I get back into the private sector.
- 3.92** Now, that's the revolving door. You're in and out, but at the same time, you don't change from being a private-interest person to a public-interest person. It's not clear who's working for whom and who is crafting rules that are going to be in the public interest, versus those that are going to benefit particular private parties. It's not just the financial sector, it's all of the other sectors. The same dynamic is at work.
- 3.93** Can't resist the bootleggers and Baptists example. This is to go back to American history. I think the label actually comes from an economist called Bruce Yandle, who was a slight half a generation younger than Buchanan and Tullock, but he was working in the public choice paradigm and combining that with some economic history, making the argument that politics in a mixed economy makes for strange bedfellows—in this case, bootleggers and Baptists.
- 3.94** So, if we go back to the 1920s, for example, when there was a movement to make the sale of alcohol illegal in the United States—we're going to close down all the bars, close down all of the distilleries, not allow the importing of alcohol from foreign sources into the country. We're going to make the United States a temperate society.
- 3.95** Much of the impetus from this was coming from, shorthand tag, Baptists. It wasn't only Baptists, but it was other kinds of religious denominations. Their view was that alcohol and the consumption of alcohol is a sin. We should not drink alcohol. Their argument had not gotten a huge amount of traction because they were making a religious argument on religious grounds, that it violates our morality, so the government should ban the alcohol. But that's not going to fly in a society that has separation of church and state.
- 3.96** Nonetheless, there were many Baptists and fellow travelers and others who just saw alcoholism as a serious problem in society. There ought to be a law to prohibit alcoholism. Or alcohol, rather, that leads to the alcoholism and the broken families and so forth. The fascinating thing was that the Baptists, so to speak, got into bed with the gangsters. This is the era of Al Capone and all of those bad guys who were running organized crime in Chicago. They have some legal interests, but lots of illegal interests and so forth.
- 3.97** From the perspective of the organized criminals, if you say you're going to make some product illegal, their eyes light up and they say, "This is wonderful. Please make that

product illegal." Because as soon as you make that product illegal, we have no problem with doing illegal things. And we have the organization and the administration set up to be able to deliver that illegal thing.

3.98 So the bootleggers, that is to say, the organized criminals, recognize that if they worked with the Baptists, they could form a political coalition. We're organized crime. We've got all of these legislators and judges and so forth in our pockets. We're paying them healthy amounts of bribes. We can get them to vote for this policy, but we can't get it all by ourselves a majority of people.

3.99 On the other hand, you Baptists and fellow travelers and all the people who, for moral reasons, want to get rid of alcohol, you also have some politicians who are sympathetic to your cause, but you're still a minority group as well, and there's no way that you alone are going to be able to get Prohibition passed. So what if, under the table, so to speak, we work out a deal that we're going to join forces and we're going to bring our teams together to get alcohol prohibited?

3.100 From the perspective of the Baptists, that seems like a good deal, and they're willing to form this coalition. It's strange bedfellows, so to speak. They do so. Then from the perspective of the organized criminal, it's just a beautiful thing because now they've got the Baptists helping them to put their competitors out of work. Because as soon as the law gets passed, all of the bars that are potentially run by organized crime and all the distribution networks that they have set up, they now have competition from the private sector, the legal sector.

3.101 But all those bars will be shut down. The government will do a favor of putting your competition out of business. It's going to close down all of those distribution networks. We, in effect, will have a monopoly on alcohol. Profits are going to be huge and so forth. This is one example of a somewhat twisted dynamic, but when you start looking, you see bootleggers and Baptists all over the place.

3.102 Now, I want to move next to the actual text. This is a short piece published by James Buchanan a few years before he died, after he had won the Nobel Prize. He was writing now a more popular piece trying to explain what public choice is, and particularly, if we want to have a healthy democracy or a healthy republic, whatever we mean, and not having all of these dysfunctional public choice dynamics at worst, the first thing that voting people need to know about is that these things exist, why they exist. At least then in a more informed way, they can start to change policies as voters.

3.103 The interesting title that he chooses is not the academic title, public choice, but the popular descriptor. The public choice means politics without romance. That then is to say that we have this romantic idea in the modern world about how democratic and republican government should go. There are these very elevated principles about freedom and equality and the rights of human beings. We believe in people voting and public-spirited citizens stepping up to become our elected representatives, and they

debate and argue, and they do informed policy studies, and wise policies result out of that.

- 3.104** All of that romantic vision that we sell to kids has some truth to it. There are elements of that that are preserved, but the reality is much less romantic. In many cases, it's much uglier. So what we need is a realistic idealism, and the public choice emphasizes the realism element.
- 3.105** So into Buchanan's own words, "Public choice should be seen as a research program. The theoretical gap in political economy that it emerged to fill seems so large that its development seems to have been inevitable." What was this theoretical gap that was so large? So what is this theoretical gap? The gap basically is, people have been studying free markets as if governments didn't exist or studying planned economies as if there was no free market. The reality is not that.
- 3.106** "Nations emerging from World War II, including the Western democracies, were allocating between one-third and one-half of their total product through political institutions rather than through markets." Economists, however, were devoting their efforts almost exclusively to understanding and explaining the market sector. So this would be as if we're studying the American economy, but we've decided to ignore New York. You can't do that because New York is huge.
- 3.107** So, one of the issues that he's drawing upon is the work of two other economists, Arrow and Black, who are doing pure democracy theory. We say one of the elements of pure democracy is the idea that we should be able to come up with the common interest or the general good, however that phrase is defined. Can we, as professional economists, make sense of that notion?
- 3.108** And we start from the position of saying, well, what we do is, we all have our own private interests, but we have lots of discussions and we vote and we send elected representatives, and they collect all of our preferences in the order of all of our preferences. This matters more than that to me, and this matters to you than it does to me over here. But somehow, out of all of this discussion and collective decision-making at the political level, we're going to come up with a unified and prioritized understanding of what's the proper distribution of interest for all of us as Americans, all 300 and something millions of us.
- 3.109** What Arrow and Black showed is that, as a matter of mathematical theorem, you can't do that. It's just not going to happen. Instead, what you're going to happen is, at any given time, is have a majority set of interests that will come to power because we have a principle of majority of rule, but the minorities will have their interest set aside for the voting cycle. Then the job of the minorities then is to make themselves the majority the next time so that they can impose their set of interests and ignore the other set of interests on the other side.

- 3.110** Rather than some sort of democratic consensus and stability, we're going to just have this unstable competing set of interests that goes on forever. This is a big problem. "The suggestion of this analysis was that majoritarian democracy is inherently unstable." There is no such thing as a more or less static, unified collective good, so to speak.
- 3.111** Buchanan enters at this point and says, well, OK, I understand the theorem, but why exactly is this a problem? Why wouldn't we say that the instability of democracy is a good thing? We're perfectly fine with saying that private markets are unstable, and some products are going to go out and new products are going to come in. We understand that there's change in growth. Why should we think that there has to be one such ordered set of preferences?
- 3.112** It's interesting that one of the reasons, he says, is that majorities are not necessarily protective of the core freedoms that we think democratic institutions are supposed to be protective of—that is to say, the rights of minorities. Because in principle, it's possible for the majority of people, 51% of the population, to say, "Let's do various nasty things and totally ignore the rights of these various minority groups."
- 3.113** Then, of course, if the minority groups become the majority the next time, there's just going to be a revenge cycle, and they'll do the same thing over here. We don't want to have a stable majority in which the majority just recognizes that it can always do with the minorities whatever it wants them to do. If we're supposed to be about freedom and equality, then a simple imposition of majority rule, and a stable rigidified one, seems like an undesirable rule.
- 3.114** The question then is going to be, if you are in a minority group or you're a minority individual, you're an outlier, and you recognize you're never going to become a part of the majority, but the majority is using its political power to deny your freedoms and your equalities, you're not even going to participate in the process. You're not even going to think this is a legitimate process, because it's not respecting my prerogatives. "Why should members of such minorities facing discrimination lend their support to democratic political structures?"
- 3.115** Now, he mentions here Wicksell, another giant in the economics professors, who said, well, maybe if we're going to avoid the problem of the tyranny of a majority, we can't just have 51% of the population doing whatever they want with 49%. We need to say, on anything that's supposed to be a government policy—government policies are supposed to be only about the really important things, not trivial things, and things that affect everybody's rights and equalities—maybe we should have a government policy that is democratic, but require not majority rule, but unanimity.
- 3.116** If you can't get unanimity, then that shows that there's a significant minority whose interests are not being respected. That's not the right kind of policy. You might say, of course, as Wicksell then said, well, getting unanimity is pretty much impossible, so

maybe we should just go for supermajorities, not require 51%, require a two-thirds majority or four-eighths majority. These are the kinds of procedures that are often used by democratic and republican institutions when they're formulating their constitutions, as opposed to their regular work-a-day laws on all sorts of things.

- 3.117** So, recognizing the significance of these more elevated constitutional principles, we have a long history of requiring supermajorities of various sorts. Mentions here Gordon Tullock, his colleague, "who wrote a seminal paper in 1959, an example of farmer voters, each of whom wants to have his local road repaired with costs borne by the whole community." Here we're talking about transportation and infrastructure. Suppose we say it's the job not of private road-building and transportation companies to make all of the roads, but it is a public infrastructure project.
- 3.118** And then it's very expensive, and so we can't expect private companies to do so. So the government is going to take in tax dollars to fund road-building infrastructures. Well, what then happens to the farmers, say, who are way out there at the edges? My farm is way out here, and I want a road that's going to be 10 miles to hook me up to the main road that goes into town. And some other farmer over there wants a four-mile road or a two-mile road or a three-mile road.
- 3.119** At some point, the government is going to say, "It's not cost-effective for us to build \$100,000 per mile of road so that you can drive your tractor to the main road or so forth. We're going to draw a line and make you outlying farmers responsible for building your own roads if you want to hook up to the public infrastructure." So objectively, the cost-benefit analysis doesn't make sense for building the transportation infrastructure out to that point.
- 3.120** But the farmers get together. This is Tullock's paper. They're talking over beers or around, whatever they are that farmers meet, and they recognize, "I can't afford to build this road to the main structure." And the other guy said, "I can't afford to build a road to the main structure." But all the farmers get together, they form the farmers' union or the farmers' coalition. They put a little bit of money toward that and they start to lobby.
- 3.121** And maybe it's going to cost each of them \$1,000 of lobbying to get the right number of city-elected officials on their side. But that is going to be a small amount of money compared to the value of the roads to them if it gets built, but everybody else in the society is going to pay for them. So, it's a kind of concentrated benefits, dispersed cost arguments, and there are lots of them.
- 3.122** This is all playing by the rules, though, according to a democratic republic, and it's producing, in this case, "unjust and inefficient outcomes. Political stability is secured only by discrimination against minorities. How can democracy, as the organizing principle for such, for a political structure, possibly claim normative legitimacy?" So what makes a democratic republic legitimate, if all of this sort of stuff is going on?

Particularly if it's going on and the vast majority of voters aren't even aware that it is going on, we're going to have an unwieldy system.

- 3.123** Their analysis here, that's what led into Calculus of Consent. You see all of the economic reasoning, the historical case examples, the cost-benefit analyses. So, economics as it is applied to collective decision-making. Here he makes his proposal. There he wants to say, what we need to do as a step towards solving this problem is make a distinction between the ordinary rules of politics.
- 3.124** So there are, on any legislative session, dozens, depending on the size of the political community, or hundreds of things that are going to be considered. But they are ordinary runs-of-the-mill. They are fine tunings of existing legislations, getting rid of one that's not working anymore, putting a new one in place and so on. But it's all within the general framework that has been agreed to.
- 3.125** Maybe in those cases, we can go with simple majority rule, but we do know that now, as a matter of policy in contemporary America and much and much of the West, that we have bigger decisions that have been granted, that many bureaucracies have expanded their power to the point where they are delegating resources to huge amounts of the economy, violating or infringing upon civil rights. None of this was elected. A lot of this happened behind the scenes.
- 3.126** What we need to do is, on anything that's a big principle, cabinet-level, as we say here in the United States, policy being formulated, that's not going to be simple majority rule in a simple process. We need to have, in effect, a new constitutional convention, not for all of them at one time, but systematically that we go through all of these, and the public needs to be informed on them, and we need to have some sort of supermajority vote before those ones get put in place.
- 3.127** Again, he says, this is not new. "We're not inventing the distinction. In legal theory and practice, there's a distinction between constitutional law and statute law," civil law, and then also criminal law. We need to up our constitutional game. The difference is that we are now sophisticated 20th-century economists. We have much better tools of measurement and analysis to bring to bear. When we start talking about doing cost analysis, benefit analysis, risk analysis, we know what that means. We have the tools, we have the mathematics, we have the statistics to be able to do realistic policy-making.
- 3.128** "Formalization of the structure that James Madison and his colleagues had in mind when they constructed the American Constitution." Another way in which this is not new, as he says, is, we are simply updating what the founding fathers did, but a lot of that has been lost. When the Constitution was put in place, supermajorities were required for the big principles.
- 3.129** In fact, we do have our Constitution right now, but it's not the actual law of the land consistently. It is in some cases, but in other cases, what we have is the actual law of

the land is what has emerged legally as a result of all of these dynamics of public choice, which are not very constitutional. They're according to the rules of the game, but it's a lot of concentrated benefits and dispersed interests. It's a lot of bootleggers and Baptists. It's a lot of bureaucracy growing. None of this was voted for. None of this is obviously consistent with the constitutional principles, so we need to revisit all of these things.

- 3.130** I want to end by making an analogy. What we've been considering in public choice economics, as the name suggests, is the connection between the business and economic sector of society, the wealth-producing and the wealth-distributing part of society, and government. This is an important thing for anybody to think about as a citizen or as a professional intellectual.
- 3.131** If we have a third way, a mixed economy, an interventionist economy of some sort, we can work out the dynamics that are going to occur and come up with some general principles or laws of how mixed economies work. That's important knowledge to occur. But there also is a normative principle at work. If we are interested in saying, we don't really understand how the economy works, but we have a good society, a moral society, a decent society.
- 3.132** We are interested in justice and liberty and fairness and equality, and we take all of those normative principles and we put them together with our political philosophy. What we need to do in the case of the relationship between economics, which is important, and the state or government, which is important, is consider how we worked all of this out early in modernity with respect to another important domain, religion.
- 3.133** People's religious beliefs are also important. It's an important part of society. Here we also talk about liberty and freedom of conscience and so forth. We know that, if you have a mixed economy, a third way or an interventionist, that there are predictable ways society is going to go if religion and politics are mixed and integrated with each other.
- 3.134** If we say, for example, in the case of religion, we allow for lobbying, we say, "On behalf of my religion, I can talk to government officials to try to get them to pass rules that are to the benefit of my religion against various other religions," the parallel is, I'm passing rules that are going to affect my business and to the detriment of my competitors in business.
- 3.135** If we say the government has the power to say, "This religion has a monopoly," now, we don't usually use the monopoly language when we talk about religion, but we say this is the official religion of our society and all of the other religions are banished. We know what happens there. If we start talking about import restrictions—you're not allowed to bring in foreign religions into this country anymore. Or we start talking

about subsidies—we're going to take tax money from everybody and give money to the members of this religion so that they can engage in their religious practices.

3.136 If we start saying, "Religion is a state matter," well, then we're going to have to hire a whole bunch of government officials to manage the nation's religion life. We're going to have a whole bureaucracy. They're going to become very self-protective. We know what's going to happen to the minority religious rights of all of those small, sometimes strange, but new and evolving religions and so forth. They are going to be subject to various kinds of tyranny.

3.137 This is what's happened in every single case around the world, across all of human history, when state and religion get mixed. The exact same dynamic applies when you mix the economy and the state. Buchanan and the others are arguing now, what we should do is take very seriously. We don't know how far down this road we want to go, but just as a matter of principled separation between religion, which is a private matter, and legitimate government functions.

3.138 We have absolute freedom when it comes to religion. We have not only a more moral society where people are morally responsible for their own religion. We have a more efficient and peaceful society because we're not at each other's throats over religious matters the way we have been through much of history. Consider seriously the same kind of constitutional separation with respect to business matters for not only morality, but also efficiency. We'll pause there.

Lecture 4: Leftist Thought

At a glance — Leftist thought and the legacy of 1968.

- 4.1 Let's begin in 1968, which for the left, especially for the far left, politically, began as a year of hope, but ended as a year of disaster. Riots in many major cities in Europe and America, a wide variety of grievances, many of them led by students and associated intellectuals, had thought they were going to significantly change, perhaps even overthrow, existing society, Western society, American society, which they see as deeply oppressive and repressive.
- 4.2 But the riots were quelled, defeated by the police, in some cases by National Guard. And by the end of the year, the rioting was no more. It had ended in failure. And so for the left, and especially the far left, there's a moment of soul searching. What are we going to do next? What is our re-strategization or our new strategy going to be?
- 4.3 And for many on the left, they decided the best move was to go back to a school of left thinking, initially Marxist, but now neo-Marxist because of some changes that had been introduced, some of them significant, to what is known as the Frankfurt School, because it had been founded in the city of Frankfurt, Germany, associated with an institution of higher research and learning there. But in terms of abstract identification came to be known as critical theory.
- 4.4 Now, the label critical theory, anytime you find critique prominently mentioned in academic discourse, it often indicates that there are some Kantian roots. Kant had written famously three critiques, Critique of Pure Reason, Critique of Practical Reason, Critique of Judgment. There's a long tradition of Kantian and neo-Kantian scholarship on those fundamental issues that are often reflected in 20th-century self-labeling.
- 4.5 The most famous names associated with the Frankfurt School, though, or the founders of critical theory are Max Horkheimer, who had received a large grant from a wealthy donor to start an institute devoted to studying Marxism and what Marxism is to do. This is now in the 1920s. After World War I is over, what are the prospects of Marxism and perhaps neo-Marxism in the 20th century?
- 4.6 He was joined in publishing by a colleague, Theodor Adorno, who, as a young man, had spoken of the transformative experience when he participated in a reading group that worked its way through Kant's Critique of Pure Reason. Horkheimer, I could mention, wrote his doctoral dissertation on Kant. So these are deeply philosophical individuals working in a mainstream philosophical tradition. They are also, though, politically Marxist. One of the big questions for them is, how do we integrate Kantian philosophy with Marxist political philosophy, economic philosophy, social philosophy, and so forth?
- 4.7 They are going to be joined a little bit later by a younger colleague, who is going to become prominent, particularly in the 1960s, particularly in the new world in America,

when there's a transition from the old left, as it is called in socialist, Marxist, communist thinking, to the new left. Sometimes he is designated as the father of the new left or the philosopher of the new left. But he's younger, so we'll come back to him in a little bit.

- 4.8 1920s Germany, shading on into 1930s Germany. The Frankfurt School thinkers are looking at two problems. One more practical reality problem, and that problem is the rise of the National Socialists in Germany, culminating in 1933 with Adolf Hitler coming to power. For communists/Marxist/neo-Marxist thinkers who are bitter rivals, the National Socialists and the international socialists, as the Marxists sometimes called themselves, this is a disaster with widespread persecutions and fighting and so forth.
- 4.9 The theoretical problem was that Marx, as the theory had been developed in the middle part of the 1800s, did not seem relevant to post-World War I developments in the West. It seemed like much of Marx's theory, which to them, as young men, had seemed beautiful and noble and true, was no longer predictive. If we're going to do social science as much of applied philosophy, applied economic philosophy and political philosophy as it's supposed to be, we want to get the science right so we can predict how society is going and come up with the right kind of forms.
- 4.10 Marxist theoretical principles were no longer predictive of what was going on in the world, particularly in the Western world and in the most advanced capitalist nations. We need to do something theoretical as well, make some sort of theoretical adjustments or reforms to the classical Marxist tradition, to have a new kind of Marxism or a neo-Marxism of some sort. This is what is being grappled with by the first-generation thinkers of the time.
- 4.11 Now, all three of these individuals decide to get out of Germany in the 1930s—as communists, Marxists, neo-Marxists, and so forth, not a comfortable place to be. Also, the Jewish background of many of the Frankfurt School and critical theorists makes it an extraordinarily difficult place, if not a self-destructive place to be, if you are a Jew in the 1930s.
- 4.12 One interesting biographical point is that, for a number of Marx-inspired thinkers, if you are in Germany and you're thinking of getting out of Germany, you could look to the east and say, here we have the Soviet Union, which is officially inspired by Marx. And Lenin and Stalin are supposed to be carrying on the Marxist program in the Soviet Union. If we look to the West, there we have Britain, there we have capitalism rampant in the United States.
- 4.13 So it strikes me that, initially, the ideological leaning should be, well, if we're going to get out of Germany, let's go to the Soviet Union. We will find at least something closer to our ideological home. But all of them chose for various reasons not to go east, but rather to go west, to get faculty positions at universities in New York and California.

And that's where, for most of their remaining careers, they remained and continued to publish and make their reputation.

- 4.14 So that solves a practical problem. We're out of Germany, we're no longer under Hitler's regime. But what about the theoretical problem? What the Frankfurt School decides to do is to incorporate a more sophisticated social psychology, that in the traditional Marxist framework, the Marxism is a strongly materialistic philosophy, and it tends to deny the significance of what goes on in our minds or in our consciousness. It reduces everything that goes on in one's consciousness to underlying material processes.
- 4.15 The argument there is then that we have no causal efficacy. What we think and believe and so forth does not direct human action or predict anything about human affairs. It is merely epiphenomenal or a superficial manifestation of underlying material forces. You don't need to do psychology and social psychology as a science. Instead, what you really need to do as a pure Marxist is to simply understand and study the underlying material causal processes, and all of the rest then falls from that.
- 4.16 But that does not seem to be working. Instead, what the critical theorists do is realize that Marx needs to be supplemented by philosophers, psychologists, students of human nature who have a better grasp of psychology and social psychology. They turned to Sigmund Freud, who was the most prominent first- and second-generation psychologist in the world at that time.
- 4.17 Now, what Marx had argued is that, socially, the world is divided into two classes, the bourgeoisie and the proletariat, or those who own capital, own property, and those who don't. And those who don't have to go to work for those who own property, but they have a conflictual economic relationship, but it's the bourgeoisie, the capitalists, who have the upper hand, and they can control and dictate and basically oppress those who are the relatively powerless workers in their society.
- 4.18 And so ultimately, though, the hope is that the oppressed workers will rise up and overthrow their oppressors. But that needs to be supplemented by what seems in the 1920s and 1930s, when we look to the west, a regime where the workers, we know that they are oppressed, but they seem to be relatively content with their lives. Some of them are starting to buy those new Model T cars that are affordable. Some of them are starting to take trips across the country. Their homes are getting bigger. They are getting a little bit heavier because there's so much food available to them and so on.
- 4.19 While the oppression is there, psychologically, the workers who are oppressed don't seem to be in a revolutionary place. They seem to be relatively content. The analysis then is to say that, psychologically, what this oppressive capitalist system has done is not only oppressed them materially, but it has caused them to engage in repression psychologically.

- 4.20 This language is Freudian. Freud's psychological theory said that human beings do have a consciousness, that we are aware of the world and we can regulate our behaviors to some extent by our consciousness. But by and large, we are creatures of instinct and physicality that manifests itself. And a long time, evolutionarily, before we were conscious, we were creatures like the other animals that were largely driven by physical, biological, chemical, and very rudimentary psychological forces. We are creatures of instinct, sex, aggression, and so forth.
- 4.21 Our consciousness is a more superficial manifestation of these underlying strong unconscious forces. But what we humans have learned to do as we've developed cultures and civilizations is taken our consciousness and trained our unconscious to repress itself. If we really just did what our human natures wanted, we would just be out there fighting and attacking and beating up and killing each other and trying to have sex with anything that moves. That would be our unconscious natural animalistic behavior going along.
- 4.22 But what we learn is, if we're going to have any society, is that we can't do that. We have to learn from the very beginning to repress that, push all of that underground, and only act according to nice, civilized, polite norms of behavior. So the forces of repression, psychologically, how our parents teach us, how our teachers teach us, how all of society teaches us, is, by and large, to repress our deepest desires and only act on socially acceptable ones.
- 4.23 If we take that psychology and we adapt it and try to integrate it with Marxism, what we then have is an analysis of society in the 1920s. It seems to be liberal, it seems to be capitalist, it seems to be progressive. But from our perspective, it is both oppressive and repressive, that some combination of both Marxism and Freudianism is the best explanation for why society is the way it is and for why the workers especially seem to be so disappointingly unrevolutionary by the time we are into the 1920s and 1930s.
- 4.24 And this is a short summary of core themes in what comes to be known as critical theory. We have a theory that critiques, with sophisticated Marxist analysis and sophisticated Freudian analysis, existing society. Now, after World War II is over, Horkheimer and Adorno publish a well-read book, and still a classic in this literature, called *Dialectic of Enlightenment*.
- 4.25 Again, some terminological issues. Anytime in the 20th century or late 19th century you see the word dialectic prominently featured rhetorically, that is a piece of vocabulary that is first introduced into Western philosophy in this form, this metaphysical and epistemological form, by Hegel and Marx. You can be confident there are some echoes of something even stronger than Hegelian and Marxist thinking. *Dialectical March of History* for Hegel, *Dialectical Materialism* is the official metaphysics of the Marxist approach.

- 4.26 But here we're doing a dialectical analysis and critique of the Enlightenment. The Enlightenment is their target because, now that World War II is over, it seems like the landscape, intellectually and politically, has clarified. Prior to World War II, it seemed like all of the world was locked in a giant ideological and geopolitical battle. The three big contenders were liberal capitalism, primarily in the West.
- 4.27 It saw itself as the child of the Enlightenment, that era in which we started to talk about science and engineering and the industrial revolution and the universal rights of man, and including the rights of women, the great battles against slavery, and then the rising life expectancy, the rising amount of wealth, that the Enlightenment of the 1700s had spurred this enormous productivity, an enormous amount of liberation in the 1800s, and that the liberal capitalist nations of the West are the children and grandchildren of that. It's a good-news story that we in the modern world should be celebrating.
- 4.28 But if you are a Marxist, you are not a fan of liberal capitalism. And so it is that good-news, sole celebratory story that needs to be critiqued. So what they offer is a critical school or Frankfurt School critique of the claims of the Enlightenment. And this is one of their theses. "The dilemma that faced us in our work proved to be the first phenomenon for investigation, the self-destruction of the Enlightenment."
- 4.29 So Marx had argued that any thesis or any position necessarily generates its opposite. The opposite then is in conflict with the original thesis, and often there's a self-destructiveness, a revolution of some sort that occurs, and out of that comes a new kind of synthesis. Rather than seeing the Enlightenment according to its own self-descriptive, description, as ultimately progressive, we need to see the Enlightenment and interpret it as sowing the seeds of its own destruction, and that what we are seeing is the rhetoric of good news coming out of the Enlightenment, masking a reality that comes out of the Enlightenment of oppression and repression.
- 4.30 So how do we make this analysis? And the problem is more acute by the time we get to the end of World War II, because that three-way battle was not only the liberal capitalist, but also in central Europe was the Fascists and the National Socialists in Germany and Italy, and then further to the east, the communist revolution in the Soviet Union. The big clarification that had come out of the developments, by the time we got to the end of World War II, was that we defeated the Fascists. Hitler has gone away, Mussolini has gone away. Fascism seems to be discredited ideologically.
- 4.31 From our perspective as Marxists, we critical school thinkers, what has happened in the Soviet Union is a disappointment. Yes, it was allegedly inspired by Marxism, but Lenin and Stalin had taken it in a different direction and perverted, from our critical school perspective, the ideals of Marxism. So we do not want to have a Stalinist version of Marxism. And it seems like the only prevailing alternative is capitalism, which is now full of itself at the end of World War II. So what can we do with respect to critiquing capitalism, particularly as the child of the Enlightenment?

- 4.32 Now, one of the remarkable transformations of Marxist theory into a neo-Marxist theory is indicated in this passage here. I want to draw it to our attention. "The fallen nature of modern man." We are not progressive. We're not making achievements and accomplishments in the water. Instead, the story of modern man is one of fall. It's a decline story. That is the true story. "Cannot be separated from social progress. On the one hand, the growth of economic productivity furnishes the conditions for a world of greater justice." I'm going to pause there.
- 4.33 This is a hugely transformative statement by a series of intellectuals who were initially committed to Marxism. Because what it is saying is, according to traditional Marxism, it is supposed to be the development of capitalism that the wealth, the greater productivity, is captured by the capitalist class, but not shared equally with the proletariat, with the workers. Instead, the classical Marxist slogan is, and you probably can all finish this sentence for me, "The rich get richer, and the poor get poorer."
- 4.34 So capitalism, according to traditional Marxism, is supposed to generate a divergence between the rich and the poor. And the poor get poorer and poorer and more oppressed and more alienated and more suffering until hopefully they rise up in revolution. But that does not fit the facts. That is not true. It's not true that the rich are getting richer and the poor are getting poorer. The rich are getting richer, but also the poor are getting richer. We cannot deny this, and we also cannot deny that the fruits of capitalism are being widespread in society.
- 4.35 Now, we go to the other hand. "On the other hand, it allows the technical apparatus and the social groups which administer it a disproportionate superiority to the rest of the population." We're generating all of this wealth, and everybody is participating in this wealth, not necessarily to an equal percentage. But at the same time, there's all of these technical apparatuses and all of the machines of monitoring and control and the dispersal and control of information that the rich and the powerful are controlling.
- 4.36 They are using those not to oppress people physically, but to control them psychologically, to let them not realize their true condition, their true nature, their true calling. So material progress, but psychological regression, and a worsening. In modern society now, "The individual is totally devalued in relation to the economic powers, which at the same time press the control of society over nature to hitherto unsuspected heights."
- 4.37 So yes, we've got this great economic dynamo that capitalism has unleashed. But at the same time, while we're going up economically, we are going down in terms of our authentic humanity. We are being devalued, controlled, and losing our identity. "Even though the individual disappears." Capitalism and liberalism say they're all about individualism and so on, but not really.
- 4.38 "Before the apparatus which he serves, that apparatus provides for him as never before." Capitalism is delivering the goods. People are having lots and lots of material

goods, but they are, in effect, having their souls taken away from them, even though we don't believe, as Frankfurt school thinkers, in a metaphysical soul.

- 4.39 "In an unjust state of life, the impotence and pliability of the masses grow with the quantitative increase in the commodities allowed to them." We are giving people more and more stuff, but we're using all that stuff that we're giving them to control them. We're giving them radios. We say, oh, I've got this new radio. But who controls the content of what is broadcast on the radio? Now we're starting to get into the television area, mass communications and so forth.
- 4.40 People will say, "I'm better and better off. I can listen to the radio, I can watch TV. I've got all these magazines and all of these books." But behind the scenes, who is controlling the levers of all of those? "The materially respectable," we all have clothes, nice houses, cars, televisions, and so forth, but "socially deplorable rise in the standard of living of the lower classes is reflected in this simulated extension of the spirit."
- 4.41 So, old Marxism said people are going to become, by and large, poorer and poorer, and that is the fault of capitalism. It makes people poor and desperate. Now the problem is, capitalism makes people so materially comfortable and so well off that that is another disaster, because they stop realizing their oppression and stop becoming revolutionary.
- 4.42 "Its true concern is the negation of reification. It cannot survive where it is fixed as a cultural commodity and doled out to satisfy consumer needs." Here's the interesting passage. "The flood of detailed information and candy-floss entertainment simultaneously instructs and stultifies mankind." So there's the old phrase from Roman times about bread and circuses. If you want to control the masses, stop them from being revolutionary, even while you have total power, give them enough bread so their bellies are hungry, and give them circuses where they are entertained.
- 4.43 But of course, circus entertainment is relatively low-grade entertainment. It's clowns and this, that, and the other thing. And what we now have then on this analysis is, we have a job. And yes, there are all of these big factories under capitalism, putting all kinds of stuff out, and everybody has a job. But when you go to that job, you have to show up when the boss says, you have to do what the boss says, you're on an assembly line, you're doing one boring thing over and over for a certain number of hours.
- 4.44 You are not a free economic agent. Then at the end of the day, you are physically tired. Your mind is stultified from this numbing work and from having to not tell the boss to shove it when you really want to. You have to repress of that and do what the boss says. Then what do you do? You go home and you're so tired, you sit down and now, yes, you can afford a beer or two beers or a glass of wine or two glasses of wine. Yes, those are all available to you. But what do those do? They make you tired and a little bit sleepy.
- 4.45 So you collapse on the sofa, you turn on your television, and then you watch garbage television for the rest of the evening until you fall asleep. And then the next day you get

up, and you do it over and over again. That is the reality of modern capitalism from the critical school perspective. We are oppressed, but we don't realize how oppressed we are because we have been repressed and taught to repress ourselves by the modern technologies.

- 4.46 What we need then is to go from the old left, which had been, by and large, dominated by classical Marxism, to a new left. Now we are into the 1950s and on the cusp of the 1960s, and this new movement going to be built up. Partly, this is also given impetus in the 1950s by Frankfurt School critical theorists and associated schools by revelations of just how bad things were going in the Soviet Union.
- 4.47 Classical Marxism had said eventually socialist and communist society should be more productive than capitalist economies. We're not sure that that's true anymore because it doesn't seem to be very obvious from the government-issued statistics, even from the Soviet Union, that the Soviets are spreading widespread material prosperity over their population.
- 4.48 Even worse, though, it was supposed to be that capitalism is the inhumane, doesn't care about the workers, doesn't care about the poor people. It's willing to emmiserate them in the name of profit. But socialism is the moral ideal, and socialist leaders and communist leaders are going to care about the workers, care about the people. And instead, upon the death of Stalin in the early 1950s, and his successor, Khrushchev, once he consolidated power, Khrushchev, as part of his power consolidation, wants to disempower the old-guard Stalinists.
- 4.49 And so in a semi-secret speech, but one that was really meant for general publication, he reveals that Stalin and Lenin before him had had a secret police that had been arbitrarily arresting, torturing, and killing hundreds of thousands of people, and that millions of people had been sent out to Siberia, to the gulag, in order to work, basically, as slave labor until they died, the 99% of them. That here we had a genocide, we had mass repression, that we have an officially communist regime that cared not one wit, apparently, for genuine human morality or human rights.
- 4.50 That's the old left, and that has been carrying, so to speak, the mantle for socialism as we get into the 20th century. The old left has to be transformed, and we need to go in a different direction, radically. We need a new left. And by the late 1950s, the theory and the movement adjustments have been made, and we're preparing for the 1960s.
- 4.51 Markedly, also in 1956 was a rising-up of workers and students in Hungary, one of the satellite states in Eastern Europe, behind the iron curtain, dissatisfied with working conditions, dissatisfied with the terrible wages, students rebelling against the ideological indoctrination they are getting in school and universities. Students, like students everywhere, they want to be able to think and learn and have colliding opinions and find their own voices.

- 4.52 Demonstrations that were initially peaceful, the Soviet Union sends in the tanks to support the Hungarian government, and they are shot, arrested, tortured, killed. Their revolution, so to speak, is suppressed violently. This is on international television now, so everyone in the world can see that all of these stories, it's not just CIA propaganda. This is really what is happening inside the Soviet-controlled zone.
- 4.53 We are now poised for Herbert Marcuse, who is now a senior philosopher, older, well published, well regarded within left-thinking circles, and seen as, now that Horkheimer and Adorno are still famous but getting older, the newest guard. And from his position as professor at various universities in the United States, comes to be the intellectual father of the new left, interviewed everywhere, speaking on campuses across the country and so on.
- 4.54 Now, Marcuse. We have to go back again briefly to the 1920s to understand his story. Politically, he is a Marxist, but is following a new Marxist or a neo-Marxist line of thinking that critical theory represents. But in his more basic philosophy, he is a Heideggerian. So we had spent some time in one of the previous lectures in this series talking about Martin Heidegger as brilliant philosopher, but also as a philosopher who joined the Nazi Party and was officially arguing for the application of National Socialist ideology to reforming education and transforming German society.
- 4.55 Marcuse saw himself as explicitly an assistant to Husserl and Heidegger, who both shared a common philosophical method called phenomenology, but it's the Heideggerian one that is more important. What we find in his most basic philosophy, as reflected in his doctoral dissertation, this is the title here, Contribution to a Phenomenology of Historical Materialism. Materialism and historical materialism, that the world goes through materialistic phases, dialectically, that is Marxism.
- 4.56 Phenomenology, that is the method that Heidegger is using, philosophically. So Marcuse then represents, and this is if you want the deep dive into Marcuse, an integration of Marxism with Heideggerian philosophy. And that's what Marcuse wants to work out as a young scholar. But jumping then to 40 years later, almost, Marcuse is now emerging as the philosopher, the guru of the new left.
- 4.57 And in 1965, he publishes a famous essay that is immediately sold out, reprinted, widely read, and becomes one of the Bibles, so to speak, of new left thinking as it develops in the 1960s, particularly the most radical of the new left thinkers, this doctrine called repressive tolerance. And the thesis is going to be that, according to its self-congratulatory self-description in the West, the liberal West, the capital West, we are a very tolerant people. We tolerate divergences of opinion. We allow anybody to publish. We let people do whatever they want in religion.
- 4.58 And even if we don't like a lot of what we are seeing out there, we put up with it because we are a tolerant people. We don't suppress, we don't censor, we don't burn people at the stake anymore for dissenting opinions and the wrong religions. How

wonderful we are, is that self-congratulatory story. But the argument here is going to be that that tolerance is merely a cover for a deeper repression. And that repression needs to be unmasked, uncovered, so that we can deal with it appropriately.

- 4.59 I want to go to the text and work through some of Marcuse's own words. It's always good to get the historical context and so forth, but read authors in their own words, initially struggling through, putting bits and pieces together, bringing in material from other lectures that you have heard. And then hopefully, if you are really serious about it, having another go through, at which pace you go up the exponential learning curve relatively quickly. Let's plunge into some Herbert Marcuse.
- 4.60 OK, repressive tolerance. It sounds like a paradox, like a contradiction in terms. "This essay examines the idea of tolerance in our advanced industrial society," 1960s, the West. "The conclusion reached is that the realization of the objective of tolerance would call for intolerance towards prevailing policies, attitudes, opinions, and the extension of tolerance to policies, attitudes, and opinions which are outlawed or suppressed."
- 4.61 Again, that sounds somewhat paradoxical. If we are really going to achieve tolerance, whatever we mean by that, we have to now become actively intolerant toward the prevailing regime with all of its doctrines and all of its practices. Now, why so and how do we resolve this paradox?
- 4.62 "What is proclaimed and practiced as tolerance today is, in many of its most effective manifestations, serving the cause of oppression." Really, we live in an oppressive society. We need to make arguments for that. But the tolerance is a cover story or a mask for an underlying oppressive society. The way tolerance is used in current society is to reinforce the existing oppressive society. Those are the conclusions that we are going to argue for.
- 4.63 "Tolerance toward that which is radically evil now appears as good because it serves the cohesion of the whole on the road to affluence or more affluence." Now, notice this very strong language here, the radically evil. What do we mean by the radically evil? Well, what we mean is anything that is in favor of capitalism or seems to support capitalism. Capitalism, we know from Marxism, is an immoral, oppressive system full of alienation, exploitation, and so forth. That is an axiom coming out of the Marxist and neo-Marxist tradition.
- 4.64 But it is allowed to speak for itself freely in current society, even though it is evil, and we're supposed to tolerate that. And what's the argument? Well, because if we tolerate it, then we're going to get richer and richer. "To take a most controversial case, the exercise of political rights, such as voting, letter-writing to the press, to senators, etc., protest demonstrations with a priori renunciation of counterviolence," pausing there.

- 4.65 We have a society where we allow people to protest. You can write letters to your senator. You can vote in the process. You can go out in the streets and demonstrate and hold up signs saying all sorts of things that you want. That's what we mean by tolerance in our certain society. We let people who disagree with the current system express their disagreements with the current system, but it's all fluff. It's all pretend. It doesn't accomplish anything.
- 4.66 Partly, it's because it has limits. We don't let people demonstrate and have those demonstrations go out into overt violence. We will let you demonstrate as long as you promise not to get too violent on the streets. Otherwise, we won't give you permission to demonstrate. All of this is happening, but it goes nowhere because we're "in a society of total administration, and all it does is serve to strengthen this administration by testifying to the existence of democratic liberties."
- 4.67 So the capitalists and those who are in bed with the capitalists continue to control and dominate society. And if you start protesting too much and saying, "This is a bad system. It all needs to be overthrown," you say, "What are you talking about? We're tolerant. We let you vote. We had lots of discussion about these policies. We even let you demonstrate. You can write protest letters to your elected officials and so forth." So all of that just simply serves to mask and cover and provide an additional rationalization for the existing oppressive system.
- 4.68 In such a case, "freedom", we could put that in quotation marks, freedom of opinion, freedom of assembly, freedom of speech, "becomes an instrument for absolving servitude." So all it does, it lets people blow off some steam, but it doesn't change the underlying conditions at all. That is to say, "The conditions of tolerance are loaded." So we have the liberal capitalists and we have the left, but it's not an equal tolerance, or it's not an equal balance of power between the two.
- 4.69 And a formal neutrality of opinion and neutrality of free speech, anybody can say anything, since these guys have more power, works to the benefit of these guys. It's loaded dice in gambling metaphor. "They are determined and defined by the institutionalized inequality." There's an institutional discrimination at work here, "by the class structure of society." The Marxists, neo-Marxists now, class structure, rich, powerful, in control, relatively powerless, and so forth. Free speech, freedom of opinion, the right to demonstrate, does not equally benefit those two sides.
- 4.70 "Within the framework of such a social structure, tolerance can be safely practiced and proclaimed." Once you are so powerful, that you know you are in control of all the resources, all of the institutional levers of your society, you can afford to be tolerant to the little people. You can let them make some noise. But you know that that noise is not going to go anywhere. It's not going to amount to very much.
- 4.71 "Tolerance can be safely practiced and claimed in two kinds of ways. First, the passive toleration of entrenched and established attitudes and ideas, even if their damaging

effect on man and nature is evident." That is to say, just to take a random example, suppose we say we're going to publish 10,000 books in a given year, we have freedom of the press. Well, 90% or more are going to come out on the side of existing society is great, existing society is wonderful, reinforcing it in terms of its history, its ideology, the religious structures that support it, and and so forth.

4.72 And only 10% is going to come from those who are radically dissenting from the existence of society. So how can the 10% overcome the 90%? It's not going to happen. "The act of official tolerance granted to the right as well as to the left, to movements of aggression, as well as to movements of peace, to the party of hate, as well as to that of humanity." So it is capitalists versus the rest, the workers.

4.73 Now we get down to the level of party politics. It is the right side of the political spectrum versus the left side of the political spectrum. We need to take it as more or less axiomatic or already argued that the right is evil. It is the party of hate. We know what we need to do with respect to evil. We don't tolerate evil. We don't tolerate hate. We need to do something more radical with respect to those.

4.74 "I call this non-partisan tolerance abstract or pure, inasmuch as it refrains from taking sides. But in doing so, it actually protects the already established machinery of discrimination." So, by analogy, suppose we go into a classroom, and I am your professor, and I make it clear that I have very strong views about my politics, my religion, and I am going to tell you what my views are, and you're going to write essays on controversial issues in politics, and you're going to write exams.

4.75 But I'm the professor, and you are the student. I say, "Oh, by the way, we have free speech in this classroom, and we want to encourage free thought. But don't forget who gives the grade in this class. Let's talk." How is the discussion going to go? Well, it's not only that, if you say the wrong thing, I might come down on you, as many professors will do. But what are you going to do to yourself? It's not only that I am going to officially oppress you from the inside, you're going to start censoring yourself.

4.76 Now, is that the right word? But you're going to silence yourself. You're going to stifle yourself. You're not going to let yourself think certain things because you're afraid. And so it's oppression plus repression. It might be that we're at a liberal arts institution, and on our mission statement, we say we believe in freedom of speech and institutional new neutrality and encouraging a marketplace of ideals. But that's a cover story for what's really going on in my classroom. Extrapolate that to all of society.

4.77 "The subject of this autonomy is never a contingent, private individual." We want actually to have liberation, free individuals of some sort. But who is the vehicle of this autonomy? "It's never the contingent, private individual as that which he actually is or happens to be. It is rather the individual as a human being who is capable of being free with the others."

- 4.78 Here, I just wanted to highlight this in passing in part. This is Marcuse saying, we're not talking at the level of individuals. We're talking at the level of social groupings or a community. Free speech, liberation of humanity, is not liberation of a number of individuals who are going to go their own way. It's a group. This is part of the class analysis.
- 4.79 "The problem of making possible such a harmony between every individual liberty and of the other is not that of finding a compromise between competitors." It's not a capitalist marketplace idea. "Or between freedom and law, between general and individual interests, common and private welfare in an established society." That's how western liberals and capitalists talk. "But of creating the society in which man is no longer enslaved by institutions which vitiate self-determination from the beginning."
- 4.80 We do live in a society of slavery. It's just a repressed slavery, an oppressed slavery, and a slavery that we don't ourselves think about. We don't let ourselves think about it because we're afraid. But even from the very beginning, we get conditioned into believing that we are in a free society. It's a total false consciousness.
- 4.81 Now, anytime you're going to talk about free speech, marketplace of ideas, liberalism, you need to talk about John Stuart Mill, and Marcuse goes on an extended critique of John Stuart Mill's idea of the marketplace of ideas and robust free speech. Mill is not, in fact, defending free speech in the proper sense. He's defending a kind of free speech that's going to prop up the existing regime. Here is a bit of the problem.
- 4.82 That idea of a marketplace of ideas, if you go to the capitalist marketplace, the marketplace presupposes that you have buyers and sellers, different consumers and producers, on more or less an equal playing field. Then you can have free, equal, and fair competition. But when things get too out of balance, the competition stops being fair anymore. Those who are economically entrenched, who have the wealth, they're in a position to dictate, they become monopolistic, even if formally it seems like we have a marketplace going on.
- 4.83 The same thing happens in the marketplace, so to speak, of ideas, the marketplace of ideologies. It's the entrenched ones. So Mill's theory does not fit the reality of society, is the claim. "Such a construction badly fits a society in which powers are and remain unequal and even increase their unequal weight when they run their course. It fits even worse when the variety of pressures unifies and coagulates into an overwhelming whole, integrating the particular countervailing powers by virtue of an increased standard of living and an increasing concentration of power."
- 4.84 So, even though we're all getting better off materially, we're nonetheless more and more subject to the institutional powers that be. Those who control all of the wealth, and most of those are the ones who are behind the scenes controlling the politicians who are formulating the policies. So we're materially better off, but we are not really free.

- 4.85 "The laborer," this is our society, "whose real interest conflicts with that of management; the common consumer, whose real interest conflicts with that of the producer; the intellectual, whose vocation conflicts with that of his employer, find themselves submitting to a system against which they are powerless and appear unreasonable." It's workers versus the boss, consumers versus producers, and it's teachers versus the schools that are controlled by either private interests or government interests.
- 4.86 The individuals are in this adversarial relation. It is exploitation, but we are powerless as individuals to do anything about it. If I make too much noise, then I just seem to be a weirdo, an eccentric, and then social ostracism occurs. What are we going to do about this?
- 4.87 "To enable them to become autonomous, to find by themselves what is true and what is false for man in the existing society, they would have to be freed from the prevailing indoctrination, which is no longer recognized as indoctrination." We are all indoctrinated in thinking that modern democratic, republican, liberal, capitalism, the West has progressed. Here's all of this good news. We hear that from day one. We get a certain amount of goodies to make our bodies happy, so that we don't feel physically oppressed. Where our minds are controlled, our bodies are content.
- 4.88 We are just willing slaves of the existing system. How are we going to find individuals who are going to be able to break out of this comfortable life that is nonetheless not allowing their true human nature to develop in order to advance society in a proper direction? "The subversive character of the restoration of freedom appears most clearly in that dimension of society where false tolerance and free enterprise do perhaps the most serious and lasting damage, namely in business and publicity."
- 4.89 You think of all of the advertising that we are subjected to. You need this, you need that, you need the other thing. We find ourselves, because we have been conditioned to do so, say, "Yeah, I need all of those things." We go rush off to the store and we buy all of those things. Then we find ourselves a little bit in debt and say, "Oh, no, now I need to get a job and I need to work overtime." That means I have to do more of what the boss says, and I can't lose my job, because if I lose my job, then all of my goodies are going to go away.
- 4.90 And so I become a compliant victim of the system. But I don't really think of myself as a victim because that's not what I have been taught to think. So we need something stronger. It's not going to be just talk that is going to do so. "To discuss tolerance in such a society means to re-examine the issue of violence." We need to get more violent. "And the traditional distinction between violent and nonviolent action."
- 4.91 So in contemporary liberal society, we allow lots of nonviolent apparent protest, but that's not working, and it's not going to work. So we need to up the game. "The discussion should not, from the beginning, be clouded by ideologies which serve the

perpetuation of violence." We actually live in a violent society, even though we don't recognize that we are living in a violent society. We are just the conditioned puppets of that society.

- 4.92 "Robespierre's distinction between the terror of liberty and the terror of despotism," now going back to the French Revolution, when France, under the regime of the kings, was a repressive exploitative society and the willingness of radicals to rise up, Robespierre and the other Jacobins, and in effect, get the guillotine busy. We need to start cutting heads off again in large numbers to overthrow the existing society. But we're not supposed to talk about that as liberals who are tolerant and peaceful sorts of things, but we need a new attitude.
- 4.93 What is going to justify this violence? Well, we live in an existing society that is violent, and the only thing that can successfully fight violence is more violence, violence from the other side. "In terms of historical function, there is a difference between revolutionary and reactionary violence." There's violence that tries to overthrow the existing system to bring in a new system. There's also violence that is practiced by the existing system in order to maintain its grip on power.
- 4.94 They are both violence, but there's a difference. One is justified, the other is not justified. Reactionary violence, that is to say, the use of violence, the police, National Guard, military, other forces of repression by existing society, is reactionary violence. Unjustified because it serves the further cause of oppression and repression, but we need to open the door to revolutionary violence.
- 4.95 "In terms of ethics, both forms of violence are inhuman and evil." So yeah, we might need to do a lot of inhuman and evil things to bring about the revolution. But that's how history moves forward. "In terms of ethics," since when is history made in accordance with ethical standards? Now, here we are harkening back to Hegel, and Hegel had argued, in the march of history, the great men, the world historical individuals who are going to rise up and reform and reshape society and move the world into the next generation, they will do horrible immoral things.
- 4.96 Alexander the Great, Julius Caesar, Napoleon. But they are operating from a standpoint above morality, beyond ethics. And you cannot hold the march of history to lower ethical standards. Marx had said the same thing. The march of history requires that society goes through violent revolutionary phases in order to develop into the next stage. There will be a revolution of the proletariat in Marx's version, and it will be violent, and it will do terrible, inhumane, and evil things. But the revolution is more important than ethics to bring society to the next stage.
- 4.97 Marcuse is channeling all of that. Now, who's going to make these distinctions about what kinds of evil and inhumane things we are allowed to do? Because the vast majority of the population is basically brainwashed and compliant. They're not going to do it. "By whom, and according to what standards, can the political distinction between

true and false, progressive and regressive, be made, and its validity be justified?" Here we need a small group of individuals, a vanguard, so to speak.

4.98 Lenin, channeling Marx, had talked about a vanguard of the proletariat, small elite groups of Marxist revolutionaries who are not captured by existing liberal capitalist society, who, even though the proletariat don't necessarily know what's good for them, will make the revolution happen and take society into the next generation. Marcuse is arguing, that's what we need more than ever as we get into the 1960s.

4.99 "Who is qualified to make these distinctions, definitions, identifications for the society as a whole?" It's going to be anyone who is "in the maturity of his faculties as a human being." Only those, and these are going to be the critical theorists who are able to see past the self-congratulatory labels of the Enlightenment, of liberalism and capitalism, to see the repression and the oppression for what it really is, and know what is necessary to get society on to the next stage. We need, so to speak, a vanguard of the intellectuals.

4.100 Now, here he mentions again, John Stuart Mill, and he mentions Plato. Plato had said, in society as a whole, the vast majority of people are too sold out to their appetites. They don't have the moral character or the intelligence. It needs to be a small elite number of individuals who take over society and have a kind of dictatorship for a while.

4.101 He gives a little dig here against John Stuart Mill. John Stuart Mill had argued that, when we're talking about freedom and full freedom and liberty of speech and so and so forth, we're not talking about little children. It has to be only individuals who are mature individuals who are able to live a free and self-responsible life. Instead, children often need to be told, they need authority figures, they need to be led by people who know better than the children do.

4.102 If we extrapolate even that million point to all of society, the vast majority of people have never matured. They still are children. They have been conditioned and remain in a semi-infantile state, even though physically they have matured. They're just happy with getting a certain amount of candy and the TV being on and various other goodies. We need those who are fully adult and know, as critical theory says, where we need to go. All right.

4.103 With respect to tolerance, then, one of the battlegrounds is going to be the realm of free speech, how we do education. The prevailing model in the West under liberalism has been this idea of liberal education, where what we want to do is say students have to, in part, learn how complicated the world is, how on all sorts of issues, political, economic, religious, scientific, and so forth, there's controversy, and even the leading minds in these various fields don't agree with each other.

4.104 Good education is going to free the student from ignorance. That's part of the liberal. But it's also going to free you from dogmatism, from thinking that the first idea that you encounter is the true one, and I don't have to think about things anymore. Students will

be exposed to a variety of opinions. They will be exposed to arguments by multiple perspectives on whatever the controversial issues are. We're going to then give the students lots of content and lots of perspectives and have them hear lots of debates and hopefully have them increasingly entering into the debates as the strength of their own minds develop.

- 4.105 Then, by the time they are adults, they are fully in a position to make up their own minds about what the truth is, or the best approximation of the truth is, and continue to be lifelong learners. That model says we have to be tolerant, institutionally, in all of our educational schools and universities. We have to tolerate and encourage, actually, a widespread diversity of opinion and lots of arguments.
- 4.106 But that is precisely what Marcuse says is wrong, because in the current regime, that just means the prevailing oppressive and repressive doctrines are going to win. They're in the majority, and they have the institutional mechanisms behind them to support them. If we're going to talk about actually liberating people from their oppression, we have to become intolerant to the majority views, and we have to have an uneven playing field.
- 4.107 And then political issues, which are front and center for Marcuse, what this then means is, and this is the famous phrase, "Liberating tolerance, then, would mean intolerance against movements from the right, and toleration of movements from the left." So if we are talking about educational institutions, what we then need, if we're going to breed and generate the next generation of revolutions, is not allow any discussion or celebration of the right political views. That's capital-R right, from the wrong side of the political spectrum. Only views from the left.
- 4.108 That then is going to mean, we need to rewrite the books, the textbooks. We need to get rid of certain other teachers and only hire teachers who are on board with the appropriate viewpoint. Outside of educational institutions, with respect to newspapers, magazines, other journalistic media, if we are going to be true revolutionaries, we cannot be committed to institutional neutrality. Hearing all sides of the debate, we have to push and push and push to get rid of the articulation of viewpoints from the right and only allow those from the left.
- 4.109 There's precedents for this. This is a kind of censorship regime that we're talking about, but it's not an official censorship because we, radical leftists, we don't actually control the government. But we have a justification for this because everyone knows that, in an emergency circumstance, when it's actually war, censorship is justifiable. Governments do this all the time when they go to war. They institute a regime of censorship. You don't let enemy propaganda reach your citizens. You censor.
- 4.110 We are at war now. We are in a state of clear and present danger, borrowing that military phrase. The whole post-Fascist period, that is to say, since the end of World War II, now we're in the 1960s, that's only 20 years ago, has been an era of clear and

present danger. The Fascist threat has gone away, but the capitalist oppression is still with us. And so in this emergency situation, the same time, censorship of the enemy propaganda is appropriate.

- 4.111 "Such extreme suspension of the right of free speech and free assembly is indeed justified." We're going to suspend the right of free speech, suspend the right of free assembly, not only what people say, but getting together, forming certain political parties, having political discussion groups, book reading groups, and so forth, not if they are focusing on the wrong ideas.
- 4.112 "Is indeed justified only if the whole of society is in extreme danger. I maintain that our society is in such an emergency situation, and that it has become the normal state of affairs. Different opinions and philosophies can no longer compete peacefully for adherence and persuasion on rational grounds." The so-called marketplace of ideas is a fraud. We should not pretend that we have a marketplace of ideas freely being exchanged and consumers making good judgment calls about which of those ideas are going to suit them.
- 4.113 Instead, what we have is a society governed by false consciousness. We might think that we are free in our minds, that we're forming our own viewpoints, but that's not true. We are conditioned by a repressive and oppressive society. "The false consciousness has become the general consciousness, from the government down to its last objects, the small and powerless minorities which struggle against the false consciousness and its beneficiaries must be helped."
- 4.114 The radical minorities need a leg up in this debate. So censorship of everything on the other side is legitimate. One more quick passage. Marcuse wrote a postscript in 1968, the year of the street revolutions, demonstrations attempted, and their suppression. "The tolerance, which is the life element, the token of a free society, will never be the gift of the powers that be. It can, under the prevailing conditions of tyranny by the majority, only be won in the sustained effort of radical minorities."
- 4.115 Majority rule is not the way; we need minorities who are radical, and this is what they are willing to do. They are "willing to break the tyranny and to work for the emergence of a free and sovereign majority— minorities," it's a call to action—who are "militantly intolerant and disobedient to the rules of behavior which tolerate destruction and suppression."
- 4.116 Where are we going as the new left after 1968? Well, we have tried ideology and to make the arguments. We've tried various forms of neo-socialism, neo-Marxism, and so forth. They all seem to have ended in failure. We can no longer look to the Soviet Union and perhaps not even to communist China for leadership of the cause. We have tried educating the younger generation to be more radical and to rise up and, on the streets, effect a revolution, and that seems to have ended in failure.

- 4.117 What can we do next? Well, if we are talking about revolutionary violence against an oppressive regime, maybe we need ourselves to resort to terrorism. Here are two German radicals of the 1960s who, after especially 1968, became redoubled in their efforts and formed an explicitly terrorist group. We need to initiate a violent uprising, kill off the leaders of this oppressive society, and hopefully rally people behind us, break through their false consciousness to bring in the next generation.
- 4.118 From the late 1960s to the early 1970s is a huge upsurge in the amount of terrorism inspired by various neo-Marxist regimes, especially sometimes working with nationalist regimes and separatist regimes in order to try to overthrow what they saw were as oppressive societies in the United States, in Peru, in Germany, in France, in Canada, in Japan. The Red Army faction, sometimes called the Baader-Meinhof group, was founded in 1970 and went on a killing spree, trying to assassinate, in some cases kidnap, various leaders.
- 4.119 Here is the rationale by Ulrike Meinhof. Very well-read young woman, well-read especially in Marxist and neo-Marxist doctrine. "The anti-imperialist struggle, if it is to be more than mere chatter, means annihilation, destruction, and shattering of the imperialist power system, political, economic, and military." We, in effect, need to blow up the whole system so that we can start again.
- 4.120 Marcuse, after Baader-Meinhof, Red Army faction was shut down, they went to prison, died. Various other terrorist groups also shut down by the various Western governments and so forth. The terrorist moment seems to have subsided as well, once again, deep depression on the far left. I want to end with this excerpt from an interview of Herbert Marcuse in 1974, where the interview is really pressing him to say, what can we do as leftists now? Is it all over for us?
- 4.121 "Dr. Marcuse, what happened to the student movement of the late 1960s?" Dr. Marcuse: "Well, I can tell you what did not happen to it. It isn't dead." So we're not giving up. It isn't dead? "It is not dead. I don't believe it is dead, and it will resurrect." But where? Where is this resurrection going to happen? Campuses? There's an eerie silence out there on the campuses. And Marcuse says, "I wouldn't even say that."
- 4.122 And here the signal is that it's not going to happen through overt economic revolution, overt political revolution. It's not that we're take over the institutions of mass communication easily. We're not going to do it by street revolutions. We're not going to do it by terrorism anymore, but we are going to resurrect it inside the universities. It will be a long march of reeducation over the course of the next generations. That's where the new left revolution will materialize from. All right, we'll stop there.

Lecture 5: Foucault's Paradox

At a glance — Foucault's paradox and his 1978-79 encounter with Iran.

- 5.1 All right, let's begin in 1978-79, when Michel Foucault visits Iran. And this was, in many ways, a surprising event because Michel Foucault is an atheist thinker, but he's visiting an Iran in the midst of a religious and religiously political revolution. Foucault is also known as a postmodern philosopher, cutting-edge postmodernist, and a man of the far left. Here he is visiting a regime that seems to be a throwback to premodern times and putting in place political ideals and political realities that seem opposed too much of what the left has stood for, traditionally.
- 5.2 So what is Foucault doing in Iran while its Islamic revolution is underway? Shortly, the revolution will be successful from the Islamist perspective, and the Ayatollah Khomeini will come to power and transform Iranian society and Iranian politics in light of a kind of Islamic theocratic regime, where theology or religious views is combined with political power to organize the regime.
- 5.3 Now, one part of the explanation we can put in terms of big-picture historical and philosophical terms, Michel Foucault is a postmodern thinker, and one of the standard questions then is, and natural question is, say, well, what is postmodernity? And one shorthand answer to say is that Iran is now standing for, in contemporary times, a kind of return of the premodern, the old ways of doing politics, when religion and politics were integrated, when one had a hierarchical society with the priests, or at least divinely ordained kings in charge of their regime, religion trumping politics, and then everybody obedient to higher authority.
- 5.4 The status of women as it was in premodern times, second-class, third-class, and in some sort of subordinate position as well. Suddenly we have, even though it is the 20th century, a return of a kind of regime that seems rather outdated from most of the world's perspective. At the same time, it is identifying its enemy, that is to say the new Iranian regime, as the United States.
- 5.5 The United States is the exemplar of modernity and all of the cultural, religious, political developments in modernity, a kind of liberalism, Enlightenment science, not particularly religious to the extent that we are religious. Politics is staying out of religious matters and leaving it to private individuals, freeing and liberating and making more equal women. And so modernity and its account of how culture and politics should be going.
- 5.6 Of course, the broader West is going in this direction, but the United States is the leading example of that. And of course, from the Iranian theocratic perspective, the United States is the great Satan. Then why is then a postmodern thinker who, at least in terms of his official philosophy, seems to be someone who is rejecting both the premodern and the modern, showing up in Iran and, as we will see, saying

complimentary things, positive things, nice things about the revolution in Iran and its direction?

- 5.7** So this is some of the territory we want to explore. In this lecture, we're going to focus on Michel Foucault's famous book, published in 1975 in France, called *Discipline and Punish*. Foucault wrote on most aspects of philosophy, most aspects of political theory. And in this course, we've been just looking at revolutions, we've been looking at war, the status of women, slavery, the place of religion with respect to politics. Another important part of political theory and practice is the judicial system or how we, so to speak, discipline and punish people we take to be the bad people in society.
- 5.8** Now, in another course here at the Academy in the Postmodern Philosophy course, we did devote a lecture to Michel Foucault, some of his more underlying philosophical perspectives as they apply to the issue of sexuality. We focused there on his very well-known work, *The History of Sexuality*. We're going to push that to the side, and in this one focus on *Discipline and Punishment: The Birth of the Prison*.
- 5.9** Just to signal up front the significance of Michel Foucault's philosophical and cultural analysis work on contemporary intellectual life around the world, I have here a survey of the most cited works in the social sciences of all time. Michel Foucault has the honor of having not one but two books on the top of all top books. The one we're going to be focusing on today is seventh on the all-time list, and the one, *History of Sexuality*, we cover in the other course is 11th. So he's one of those intellectuals whose influence is everywhere.
- 5.10** *Discipline and Punishment*, the most extreme punishment that is possible, of course, is capital punishment or the death penalty. It is instructive when doing comparative legal studies to ask, representatively, different parts of the world, where can the death penalty be practiced and for what purposes? Contemporary Iran, after the theocratic revolution, this is the list of things for which one can justifiably be put to death. And then in contemporary United States, this is the list of crimes on the books for which one can, in principle, be put to death.
- 5.11** Some similarities, murder in some cases. Whether it's a limited number of murders or murder as defined more broadly, that's a secondary issue. But then the list changes dramatically until you get down toward the bottom of the list. There we have terrorism and drug-related crimes. On the other side, genocide and drug trafficking. In both cases, if you're doing crimes that involve threats to or killing lots and lots of people, we're willing to do the death penalty. Then the drug war is significant.
- 5.12** But all of the ones in the middle are an interesting study in contrast. Blasphemy, insulting the prophet, corruption on Earth, obviously religiously based crimes. You don't find any of those on the other side of the list. Instead, on the other side of the list, the American list, it's mostly politically focused crimes. If you conspire to kill a court officer, a juror, or a witness, or a politician who is in office, or you're engaging in espionage

against the political system, in those cases, then those severe political crimes, death penalty is a possibility, and those are juxtaposed against, on the other list, crimes that seem to be with respect to sexuality.

- 5.13 Fornication, very broad category, sodomy, committing adultery, and any sort of same-sex intercourse. An indication of the different prioritizations of values in the two cultures according to their legal system. Now, the issue of capital punishment is then one interesting starting point to focus, because one of the things that has occurred in Iran after the theocratic revolution is an increase in the number of individuals who are executed by the regime. Correspondingly in the United States, there has been a steady decrease over the 20th century, up until this point, in the application of the death penalty.
- 5.14 In the 1970s, the same decade in which the Iranian revolution is occurring, and Foucault is at the height of his intellectual fame as a postmodern theorist and is visiting Iran, the United States is going through a period of soul-searching, a deep crisis with respect to the death penalty. And over the course of the 20th century, it had shown increasing reluctance or decreasing willingness to engage in the death penalty, the numbers declining.
- 5.15 But it was for the 1970s, for the decade of the 1970s, a period in which the death penalty was all but suspended from being put into practice in the United States, as two very important court cases wound their way through the system all the way up to the Supreme Court, and the Supreme Court is pronouncing on the constitutionality of the death penalty in this society. So what is it for us to be a modern, liberal, democratic, republican, civilized nation? What is the place of the death penalty in a nation such as ours?
- 5.16 And in these two cases, *Furman v. Georgia*, the court issues more severe restrictions upon the kinds of cases in which the death penalty can occur and the kind of administrative processes that need to be engaged in, checks and double-checks before willingness to do so. That spawned a whole series then of reforms at the state level. All 50 states, most of them took the Supreme Court's decision to heart and reformed their state-level statutes, and then it was all revisited again by the Supreme Court in 1976, the *Gregg v. Georgia* case. So that temper of mind in the modern world with respect to the death penalty is fundamental.
- 5.17 Now, again, the modern world and the liberal democratic republican world is congratulating itself on becoming increasingly humane in its administration of justice, taking justice seriously, but we're also taking power seriously and putting limitations on state power to protect the rights of individuals, even the rights of individuals who are bad guys who have committed serious crimes.
- 5.18 And so, much of the modern judicial process in the West had been reforming itself against what it took to be a largely barbaric, premodern, anti-scientific, and in many

respects, inhumane set of methods of doing justice. So here are some images, a representative of certain kinds of judicial processes. How do we find out if a woman is a witch, for example? Well, here's the process of repeated dunking in a river.

- 5.19** The idea here is, if the woman can survive the repeated dunkings in the river, only a witch could do that. Therefore, she is found guilty of witchcraft, at which point, of course, you would have to execute her. On the other hand, if she, as a normal human woman who is not a witch, does not survive this process, well, I guess she wasn't a witch. We chuckle, but we chuckle darkly, reflecting now on this, how barbaric, how premodern that all seems to be.
- 5.20** Widespread also use of, in the West, what are called trials by ordeal. How do we find out if someone is guilty or not? Here we are still in a premodern and religious framework, and that the ultimate arbiter of good and evil, right and wrong, guilt or innocence is, of course, God. We know that God is active on the world, and the judicial system, of course, is a reflection of God's decisions in the world. God will protect the innocent and God will punish the guilty.
- 5.21** So one ordeal is to see whether God is protecting you or not. If you are protected by God through, apparently, a natural process that would ordinarily harm a human being, only supernatural intervention can show that you are an innocent being. Here we have a red-hot iron that the judicial officer is offering forward, and the person who is undergoing the trial is expected to grasp this red-hot iron with his hand and hold it for a predetermined amount of time and then release it.
- 5.22** If his hand remains undamaged, then that shows that God has favored this individual, and he is innocent. If, by contrast, the normal natural process occurs, there is no divine protection in case here, the skin is burned and charred, that shows that the person is guilty. And up until modern times, the ultimate source, often cited, had to be religious texts for the institution of justice. But what does the divine teach us about justice?
- 5.23** And here there's a tension between lots of texts in the Bible that one can appeal to, but there's a fairly clear distinction between the Older Testament and the Newer Testament. If we read in Exodus, "But if there is any further injury, then you shall appoint as a penalty, life for life, eye for eye, tooth for tooth, hand for hand, foot for foot, burn for burn, wound for wound, bruise for bruise." Now, what does this mean?
- 5.24** Well, it does mean that we are going to engage in a judicial punishment process against those who are found guilty. They do need to be penalized. God's principle of justice here is a kind of principle of proportionality. We could argue that that is a reasonable principle. The punishment should fit the crime in some sense. At the same time, there is an apparent old-fashionedness or perhaps even a barbarism that we would expect. People who have done terrible things to each other, they have gouged someone else's eyes out, that we, as the administrators of justice, should ourselves gouge someone else's eye out.

- 5.25 Can we bring ourselves to do this? Is this what God really wants us to do? Lots of debates in this tradition, nonetheless, in that divine framework. The message does seem to be complicated or changed by the time we get into the New Testament, and we find passages like this. "Never avenge yourselves, but leave it to the wrath of God. For it is written, 'Vengeance is mine, I will repay,' says the Lord."
- 5.26 And how do we interpret that one? Does that mean that we're not supposed to do any justice activities on Earth? That's not our responsibility. Who are we to think that we can administer God's justice? We are all sinners ourselves. And so perhaps the lesson is that we should not have a judicial system, but ultimately God will enact justice on Earth. And again, many centuries of debate over the proper interpretation of these passages, and can we put the Bible as a whole together as scripture?
- 5.27 Trials by fire, trials by ordeal, trials by water. We're using all of the core elements as ways of testing whether God will intervene or not. And by the time we get into the earliest of the early modern era, by the 1500s, rather, the various trials by ordeal start to be set aside. They're starting to seem as barbaric, that we cannot rely on divine intervention in particular cases. It seems too random, so we're going to do something different.
- 5.28 And we start to see the introduction of things that are still with us in Western legal systems. Ordeals replaced by the ideal of compurgation, where what one would do at a trial is, we want to find out if someone is guilty or not, we would have a trial. The person with the complaint, if he or she is still alive, can make a case. The person who is accused can make a case, but it's going to be in front of 12 of the accused person's peers, in effect, a jury trial. It's going to be the judgment of the jury whether or not this person is innocent or guilty.
- 5.29 It's no longer a direct sign from God one way or the other. It is human beings who are administering the judicial system, and we recognize that number 12. That was controversial. Many people arguing, 12 of your peers. Well, what kind of people are your peers in the 1500s and on into the 1600s? These are not particularly educated people. Many of them are not going to be very literate. They're not thinking about big principles of justice. They don't know their theology.
- 5.30 So the average people who are going to compose the jury might seem to be pretty unreliable. And maybe if we are really serious about justice, we need to have well-trained people who are experts, particularly experts in divine justice. They know what God's principles of justice are. And so we need to have inquisition, questioning and determination of guilt or innocent, by properly appointed experts, who are political experts appointed by the Crown, but also have the correct judicial or theological training.
- 5.31 And so the rise of various inquisitions in Europe, particularly in southern Europe. And the use of torture widespread all over the world, particularly in ancient times,

continuing on into the early part of the modern world. But it, too, increasingly comes to be questioned and set aside. So, how are we going to modernize the law as we get into the Renaissance, into the Reformation, on into the early Enlightenment? A huge part of the story of the development of the modern world are a series of revolutions in how we do this whole aspect.

- 5.32** Now, the most fundamental question is this metaphysical and epistemological question. We're interested in what really happened. We're also interested in standards of justice, right and wrong. How do we determine truth? How do we get our normative standards, that we know that these are the right normative standards to apply? That requires hard work in epistemology, the theory of knowledge. It requires hard work in moral philosophy or ethical philosophy, to get your standards of truth.
- 5.33** Now, we can say ultimate truth and ultimate standards are revealed by God to a certain number of prophets, and the rest of us accept those on faith. We might say it is what has been revealed by God to the prophets, but interpreted by various wise people across the generations and captured in a tradition. We accept that tradition and carry it on to the next generation.
- 5.34** We might be more cynical. We might say, no, what goes on in law courts has very little to do with God or respect for tradition. It's simply a matter of who is in power in any given generation, and they find a way to make the system work on their behalf. The new kid on the block, the one that is increasingly argued for, is the principle of reason. If we are going to establish the facts, the truth of the case, this is something that happened in the natural world. The natural world operates according to cause and effect.
- 5.35** We should be, as judicial scientists, be able to figure out what the facts are and what the most logical interpretation of the facts are. Of course, it's going to be controversial. We're going to recognize that there's going to be at least two sides to this case. We're going to hear both of them, let them put forward their reasons and to criticize the other side's reasons. Then we're ultimately going to come up with, hopefully, the most rational judgment. And so all of this is being debated in the early modern world.
- 5.36** Should we assume, by the time a person is brought into the system, that the person is guilty? The burden of proof then is, for the accused person, to prove his or her innocence. Or do we start, as the moderns are going to argue, that we should start from the assumption that people are innocent, and it is the burden of the prosecution to prove that that person is in fact guilty?
- 5.37** Now, there are interesting logical and epistemological reasons for assigning the burden of proof one way or the other. But one of the important issues, philosophical issues, hotly debated in the early modern world, is over human nature. What is it to be a human being, so to speak, at birth? What is your moral standing? Are you a sinner at birth? That you were conceived in sin and brought into the world in sin, and that

perhaps in some sense that sin needs to be washed away from you, but you can never perhaps get rid of that sin. So we're all sinners by nature, so to speak, in which case you're probably guilty by the time you enter into the court.

- 5.38 Or do we have a more optimistic understanding of what it is to be a human being by nature? That we're all born neutral or blank slate or an erased tablet, *tabula rasa*, as the expression goes, and in which case we become good or we become bad according to the choices we make and how we are raised and so forth, in which case we're not going to assume that human nature is this dark and bad sinful thing that needs to be overcome. The assumption is more likely to be that we should treat people as innocent until we have really good evidence to treat them some other way.
- 5.39 But that is going to amount to a huge shift in how you administer justice, depending on which of those you choose. Do we think that justice is hierarchical and that perhaps our feudal structure of hierarchy, where there are different orders of human beings, from the monarchy all the way down to the peasants, and it's appropriate to have different courts of law with applying different standards, depending on what class the accused person is coming from?
- 5.40 Or do we believe, as the moderns are increasingly arguing, that human beings are equal, at least initially in their moral status, that we should have the same prerogatives, the same rights, the same principles of justice. And so, all of the courts of law should be unified in terms of the administration of principles of justice, getting away from the older to the newer.
- 5.41 And then supposing we have found someone guilty now as liberal, modern, humanized people who have some belief in the rights and dignity of all human beings, what are we going to do in punishing someone who has done wrong, still recognizing that at least some shred of dignified humanity is still there, that we still, in some sense, have a rights-bearing person, but also with respect to ourselves, as the beings who are administering the punishment, the kinds of punishments we are choosing to inflict on other people?
- 5.42 What does it say about who we are, and what kind of beings do we want to be in enacting punishments? And all of this soul-searching during the modern world is underway. Long list of capital punishment crimes widespread in—this is a list from central Europe, but you find that duplicated in most of Europe. I won't read through the entire list, but it's long and extensive.
- 5.43 One of the things that is a mark of modernity in its judicial proceedings is the shortening of that list, where the vast majority of them get demoted from being capital punishment crimes to, in some cases, not being crimes at all, but lesser crimes deserving of a lesser degree of punishment. Of course, probably everyone's favorite on this list is the crime of attempted suicide. If you commit suicide, you try to commit suicide, or it's an attempted suicide and you fail, well, that is a crime. But then, of

course, you'll be found guilty and executed. There's a certain irony built into that principle there.

- 5.44** The most famous of the reformers of the judicial promise is an Italian Enlightenment thinker, Cesare Baccaria. In 1764, height of the Enlightenment, wrote a treatise, *On Crimes and Punishments*, that reflected on all of the debates from the early modern world, now centuries later, as we reach the height of the Enlightenment. And it is his book more than many others, it's the most prominent one that is influential in many of the judicial reforms that are going to occur, not only in Italy, France, Britain, early America.
- 5.45** For example, one of the very clear influences of Baccaria is on the American founding fathers when they develop their constitution with the attendant Bill of Rights, the initial list of 10 or so. The eighth amendment is explicitly about how to do punishment in the modern world. As modern humane people respecting, we do not do unusual punishments; we do not do cruel punishments. We get that out of the judicial system.
- 5.46** The punishment does have to fit the crime, but we're not going to do, as civilized beings, the barbaric kinds of things that human beings did to each other in the name of justice in the past. Now, as a postmodernist, we can say there's this premodern way of doing justice; there is this modern way of doing justice. The modernists, of course, are congratulating themselves on being humane and dignified and doing justice a whole lot better than human beings have done in history.
- 5.47** Foucault is going to be much more cynical in arguing that, just as the moderns look with horror back at what the premoderns did, we postmoderns can justifiably look at the modern regime of justice and see it for the injustice that it actually is. Now, Foucault is complicated. He is a sophisticated thinker, and in many ways, he is a synthetic thinker. That is to say, he is drawing on many previous schools of political philosophy and more basic philosophy, and putting together his own, what we now call a postmodern package of ideas.
- 5.48** One direct connection is when people read Foucault and the postmodernists, they say, "Wow, this sounds a lot like critical theory. I read Horkheimer, I read Adorno, I read Marcuse. Now I'm reading Foucault and I'm reading Derrida, and I'm getting a lot of echoes and a lot of points of similarity." And Foucault acknowledges that in one of his later works. He said he was sad that he had not read the Frankfurt School earlier in his career. As he puts it here, "I agree with them on a lot. If I had known the Frankfurt School at the right time, I would have been spared a lot of work." So, much overlap between critical theory and Foucault's postmodernism.
- 5.49** He also draws significantly on Heidegger as basic philosopher and, to some extent, the political philosophy as well. So we have two previous discussions in other courses, our postmodern philosophy course at an earlier lecture in this sequence on Heidegger as philosopher. And here we have Foucault praising Heidegger. "Heidegger has always

been, for me, the essential philosopher." So to understand me, essentially, you have to understand Heidegger. And I'm integrating Heidegger with some Frankfurt school material as well.

5.50 Marxism. Foucault had joined the French communist party for a few years in the early 1950s. He did leave the party when the party was becoming too Stalinist, too much the French communist party taking its marching orders from Moscow. He did not like the rigidity. He did not like the Stalinist interpretation of Marxism. But nonetheless, Marxist analysis and Marx's phraseology is a staple in Foucauldian writing.

5.51 "The proletariat." It is class warfare, just as Marx says. "The proletariat doesn't wage war, rather, against the ruling class because it considers such a war to be just. The proletariat makes war against the ruling class because, for the first time in history, it wants to take power. When the proletariat takes power, it may be that the proletariat will exert toward the classes over which it has triumphed a violent, dictatorial, even bloody power."

5.52 So I'm on the side of the proletariat. I assume the proletariat are going to come to power, not because they are nice guys or to bring in peace and goodwill among them. It's going to be bloody, violent, and even dictatorial. So all of that Marxism also gets incorporated into Foucauldian postmodern theory as well.

5.53 Another giant on the intellectual landscape from whom Foucault is drawing. At one point in an interview, he tries to reduce the most important elements of his philosophy, and he says, "Read Nietzsche. I am simply a Nietzschean." Nietzsche, of course, is most famous for the doctrine of "God is dead," but also the will to power. Everything is a fundamentally power analysis. It's not a rational, reasonable, peaceful. It's a conflict of power at the deepest level. It's a will to power analysis. "I try as far as possible, on a certain number of issues, to see with the help of Nietzsche's texts."

5.54 We're going to be sampling aspects of Foucault's analysis of political philosophy, focused on issues of the judiciary, but behind that he is bringing to bear Marx, Nietzsche, Heidegger, Frankfurt School, and the full account has to integrate all of those.

5.55 Another famous phrase from Nietzsche is the death of God, the idea that we used to be religious, and religion permeated our culture, our thinking, our morals, including our practice of law. But in the modern world, we've become more, the argument goes, more rational. We don't see evidence and good logic in the arguments for the existence of God. We become more scientific. As science has developed most of the things that religion had an explanation for, science seems to be giving better explanations for.

5.56 So even if we are religious now, our religion is a shadow of what it once was, and we have to, if we're religious, really kind of have to work at it in order to maintain our religion, in contrast to a time when faith was simple and faith permeated all of our cultural and social institutions. We are now in what seems to be a godless world, and

our big question is, where are we going to get our morals from? Where are we going to get our institutions from? How am I going to find the meaning of life?

5.57 Now, in many cases, there have been humanists who had said the death of God is a good thing, that we have for many centuries been bound up with superstitious beliefs and various institutions using religion as a tool to control various other peoples. And so the death of God, it's a freedom, it's a liberation. Now, finally, I am a free agent. I can figure out what the meaning of my life is, instead of just seeing myself as a tool of some shadowy omnipotent figure.

5.58 But Foucault is also not a humanist, in any respect. God has died, but in its place in the modern world has been put into place this construction of the free, rational autonomous agent who has dignity and all of the rights of man; that also is false. So, postmodernism is going to mean not only the death of God—that's the premodern view, that the God is central to everything— it's also going to be the death of the modern view that puts man and humanity at the center and focus of everything.

5.59 "It is not the man, rather, who takes the place of God, but anonymous thinking, thinking without a subject." There's a kind of dehumanism or an anti-humanistic theme that we need to attend to all of us. Now, another important background theme before we plunge into the text is the relation between power, which is of central concern to politics, and the exercise, in this case, of judicial power.

5.60 We want to say, when we start calling it judicial power, that it has some concept or conceptual and realistic connection to justice, that we have a conception of justice that is objective, that we really are sorting out the guilty from the innocent, and we are treating the guilty proportionately to what they deserve. And that requires a certain epistemological confidence in being able to come up with big normative standards for justice. And that's a big, whopping justice standard.

5.61 And then power. And what we want to do as moderns is say, we are exercising power in a limited fashion. We put limitations on the power of government, for example. We do see power as necessary to accomplish various goods, but we are at the same time suspicious of the abuses of power that have been rampant throughout history. We have to have a very well worked-out power analysis.

5.62 How do we come then to claim to know? This is a big knowledge claim that we are making, particularly if we were willing to put someone to death, that we know enough. We have our facts correct, our logic is correct, that this person is guilty, and that the just thing, and we know what justice is, is to kill this person. Huge, huge claims. And for making those claims, one needs to have a well worked-out understanding of the relationship between power and the knowledge claims that are going to be feeding into your justice practices.

5.63 One of the marks of postmodern philosophy is its cynical attitude toward knowledge claims. What we like to say is, first we dispassionately and objectively strive to acquire

knowledge. We look at the facts, we gather our data, we try to look at things from multiple perspectives. We give people a chance to argue and counter-argue and so forth. Objectively, we can figure out very complicated things.

5.64 Once we have figured out what the truth is, then we bring in the apparatus of power in order to act on the basis of our knowledge. We're putting power in the service of knowledge, hopefully knowledge of what's true and knowledge of what is just. Foucault wants to argue that the order is reversed, that in fact, the way we start is, people have a prior commitment to a power value framework of some sort. Power comes first.

5.65 And what we do is, we construct a knowledge regime in order to justify, apparently, and support the application of power, how we want it to go. There is no such thing as objectivity in the acquisition of knowledge. When we are looking for facts, we're looking for facts that fit our agenda of a certain sort. When we're applying logic, we apply logic in a way that is, after the fact, supporting the value regime that we want to put in place.

5.66 It's rather that power constructs knowledge. But there is no such thing as ultimate justice or true justice or objective justice. Instead, there are all of these different value frameworks, each saying, we know what the just is. We know what justice is, but they all conflict with each other. And so all it is really is a power struggle between different knowledge claims that are going on. This is this point here.

5.67 "All knowledge rests upon injustice." There is no such thing as justice, really. There are just subjective, relativized claims of justice, and people use language to support that regime. "There is no right, not even in the act of knowing, to truth or a foundation of truth." There is no foundation of, no basic evidence or basic logic that we can ever find. "The instinct for knowledge is malicious."

5.68 People who want to have more knowledge recognize that knowledge is a form of power; the more you know, the more you can advance your agenda, particularly at the expense of other people. You can control other people. It's not only physical power, it's also intellectual power. Everything is a power struggle, and the moderns are just very good at using their knowledge claims, their science, their technology, and everything downstream from that to engage in their power agenda.

5.69 Now, with all of that, Foucault is an extraordinarily complicated and synthetic thinker, as background. I want to go into the text a little and talk about, in Foucault's own words, the main themes of how he analyzes the contemporary judicial system. Let's go to the text. Subtitle, the birth of the prison, and particularly the modern prison. The moderns often congratulate themselves by saying, in premodern times, you were found guilty, there was this big long list of things. If you're found guilty, we just take you out back, basically, and kill you. It's all over.

5.70 The moderns say, we're being more humane. We're only going to kill a very few number of people. Most of them we are going to put in prison. So prison as a growth

industry is then characteristic of the modern world. Of course, there were prisons before, but not on the scale of the modern world. Notice the date, 1757, height of the Enlightenment in Western Europe.

- 5.71** Foucault chooses this example quite self-consciously as the kind of thing that is still happening, as the Enlightenment is an intellectual movement but has not yet been institutionalized in society. And this is what it's going to be fighting against.
- 5.72** "On March 2, 1757, Damiens the regicide," that is to say, someone who killed the king, "was condemned to make the 'amende honorable' before the main door of the church of Paris, where he was to be taken and conveyed in a cart, wearing nothing but a shirt, holding a torch of burning wax weighing 2 pounds." Very precise. "Then in the said cart, to the Place de Greve, where, on a scaffold that will be erected there," this is the judge speaking, "the flesh will be torn from his breasts, arms, thighs, and calves with red-hot pincers.
- 5.73** "His right hand, holding the knife with which he committed said parricide, burned with sulfur, and then, on those places where the flesh will be torn away, poured molten lead, burning oil, burning resin, wax and sulfur melted together. And then his body, drawn and quartered by four horses, and his limbs and body consumed by fire, reduced to ashes, and his ashes thrown to the winds." And after all of that, finally, he was quartered.
- 5.74** Now, this is an example in France of the administration of justice in the 1700s. But this is revolutionary times. And very quickly, Foucault goes on to argue, "It is a time when, in Europe and in the United States, the entire economy of punishment was redistributed. It was a time of great scandals for traditional justice." That's the old fashioned ways of doing things. "A time of innumerable projects for reform. It saw a new theory of law and crime, a new moral or political justification of the right to punish. Old laws were abolished, old customs dies out."
- 5.75** We became modern. We modernized. Now, this is then the good-news story that the modern judicial reformers like to tell us. See how bad things were in the olden times, and how quick we are to try to move past it? It's happening all over Europe. "Perhaps it has been attributed too readily and too emphatically to a process of humanization." This is Foucault now introducing a note of cynicism. We're saying, oh, we're becoming more humanistic. No, this is just too readily, too easy a story about what's really going on here.
- 5.76** But there are lots of things that are happening. "The formulation of explicit general codes, the jury system," that we're potentially, when we're trying to punish people, we're not really trying to just get back at them and exert a kind of vengeance under the cover of law. We really want to have punishments that will help correct the person, reform the person, so he can become a better member of society.

- 5.77** We're trying not to just do our punishment too arbitrarily and generally. We're trying to take into account the uniqueness of each crime and each individual and to tailor the punishments to the individual crime. And so all of this is happening by the time we get to the end of the 18th century and the beginning of the 19th century, "the gloomy festival of punishment was dying out." And here we get a mention of the great Cesare Beccaria. As early as 1764, Beccaria remarked and so forth as the great reformer.
- 5.78** So, within a course of a relatively short period of time, maybe a half a century, a huge amount of judicial reform put in place by the modernists or the Enlightened reformers, and Beccaria is at the top of the list of such reformers. "The reduction in penal severity in the last 200 years is a phenomenon with which legal historians are well acquainted. But for a long time," and now we have a but, "it has been regarded in an overall way as a quantitative phenomenon—less cruelty, less pain, more kindness, more respect, more, again, 'humanity'," in the scare quotes, distancing.
- 5.79** In fact, that's not the right story. "These changes are accompanied by a displacement in the very object of punitive operation." The suggestion here is that we are not really punishing any less. Instead, we are punishing differently. We are not improved. We are new without a normative judgment. In fact, "is there a diminution of intensity? Perhaps. There certainly is a change of objective."
- 5.80** We're not so interested in doing all these horrible things to the human body as were happening in premodern times. We're de-emphasizing all of the nasty, brutal things that we are doing to the human body in punishment. But we have a different objective. We have displaced all of that judicial energy over to some other purpose. What is that other purpose?
- 5.81** "If the penalty in its most severe forms no longer addresses itself to the body, on what does it lay hold? It seems to be contained in the question itself. Since it is no longer the body, it must be the soul." We're trying to control the soul of people more. That's what the moderns are concerned with. Now, we're using soul here, metaphorically. Foucault is an atheist. This is not quite the right language, but he's a materialist of some sort. He doesn't believe in spirits and souls of that sort.
- 5.82** Instead, we are focusing on that which animates us, our psyche. It's the interior conscious level. That's what the process is going after. "A new character came on the scene, masked." So the judicial system has changed itself. Less emphasis on controlling the body, more emphasis on controlling souls or the psyche. But it also is pretending that it's not doing that. It's masking itself in some way.
- 5.83** And so all of this good-news story about how humane we are in the modern world, that mask has to be torn off and the ugly news revealed underneath. "During the last 200 years, Europe has been setting up new penal systems, judges have gradually, by means of a process that goes very far back indeed, taken to judging something other than

crimes, namely, the soul of the criminal." And by that very fact, they have begun to do something other than pass judgment.

- 5.84 Now, what does this mean, though, to say that we're interested in the soul? We're not so much really even interested in the crime. We're interested in what's going on inside the criminal. And what can we do with what's going on inside the criminal? And what Foucault is going to argue is that, as we have become more scientific in the modern world, the judicial process has taken into account all of the new sciences and brought those new sciences to bear upon the administration of justice.
- 5.85 We're not interested so much in the body and the facts. We're interested in a certain amount of knowledge of a certain sort. It's a knowledge regime. Here, "Knowledge of the offense, knowledge of the offender, knowledge of the law. These three conditions made it possible to ground a judgment in truth." We become obsessed with knowledge and scientific knowledge. We start to do all of this forensics. We start to investigate the criminals or at least the accused person's background.
- 5.86 What kind of schools did he go to? What was his family life? What were the social circumstances within which he was raised? We have this entire body of forensic knowledge, this entire body of biographical knowledge with respect to the person, knowledge of the law or all of the judicial history and all of that. So we become much more intellectual as moderns about the process.
- 5.87 "But now a quite different question of truth is inscribed in the course of the penal judgment. And the question is no longer simply, has the act been established and is it punishable?" So in the olden times, did it happen? We don't worry too much about deep investigations. Yep, this is the guy. What are we going to do? Bam, we do it, it's over. Instead, our processes become long and convoluted. And there's a whole army of various kinds of investigators and experts who are brought into the judicial process because we are all about knowledge and power.
- 5.88 "But also, what is this act? What is this act of violence or this murder? To what level, to what field of reality does it belong? Was it a fantasy, a psychotic reaction, a delusional episode, a perverse action? How can we assign the causal processes that produce it? Where did it originate in the author himself? Instinct, unconscious, environment, hereditary? A whole set of assessing, diagnostic, prognostic, normative judgments concerning the criminal have become lodged in the framework of penal judgment. Another truth has penetrated the truth that was required by the legal machinery, a truth which, entangled with the first, has turned the assertion of guilt into a strange scientifico-juridical complex."
- 5.89 So we have this entire industry now in the modern world staffed by experts from dozens of different fields who have knowledge, and it's all brought to bear on a particular case. We're not really so concerned with whodunnit, and let's punish the guy. We somehow are preoccupied and obsessed with all sorts of other stuff.

- 5.90 "This book then, Discipline and Punish, is intended as a correlative history of the modern soul and of a new power to judge." Not a better power, but a new power to judge. "A genealogy of the present scientifico-legal complex from which the power to punish derives its basis, justification and rules from which it extends its effects and by which it masks its exorbitant singularity."
- 5.91 So we might say, shorthand, in the olden days, we think essentially premodern times, justice is what God wants. But how does God administer justice? It happens very fast, and it happens often very violently. So divine justice is swift and severe. Now, it's long, it's drawn out, it's complicated—because we, moderns, don't believe in, so to speak, divine justice. We are moderns. Everything has to be scientific because we are obsessed with the machinery of applied science.
- 5.92 Now, what does this, though, have to do with justice, so to speak? Why would we be bringing to bear all of this modern science? Because there is also a political and an economic regime that we are obsessed with in the modern world. We are capitalists, and as capitalists, we want a certain kind of power regime, and we want to have a certain kind of populace to feed the economic machine of capitalism. Let's listen to the language here, because we're spending a huge amount of resources on this.
- 5.93 "This political investment of the body is bound up, in accordance with complex reciprocal relations, with its economic use. It is largely as a force of production that the body is invested with relations of power and domination. But on the other hand, its constitution as labor power is possible only if it is caught up in a system of subjugation."
- 5.94 All right. Translation of that. We see the words political investment, but it's in the context of a certain kind of economic use, forces of production. How are we going to maintain the current capitalist economic machine with its political machinery? Well, what do the capitalists want? The capitalists want lots of workers. And what are those workers going to do? They are going to show up on time.
- 5.95 They are going to take the positions assigned to them in the factory, and they are going to do what they are told, on time, the way they are told to do so. And they are going to then be trained, millions and millions of them, to be able to do that, so that we can have the big, modern capitalist production system that we have.
- 5.96 How then are we going to subjugate and control and dominate so many millions of people? If that's what we are committed to, in the strictly economic sphere, then it seems like what we also need to be doing in the judicial sphere is the same scientific regimentation. Because then, jumping ahead just a little bit, what happens to bad guys when they go to prison? Well, they show up at their assigned place. They are told where to go, when they're allowed to do what they are allowed to do, and they are regimented and controlled by the top down. If they step out of line, they get additional punishments, and they learn how to take their place in the penal system.

- 5.97** But that is training for those who have shown themselves not willing to accept their proper place in the broader economic system. It's a reform. It's not just that we are scientifically obsessed with all of the forensics. We want a certain kind of population, and our population in this scientific capitalist regime needs a certain kind of person.
- 5.98** "This means these relations go right down into the depths of society." The depths of society in the modern world is a capitalist economic engine. Now, this is a cynical interpretation of the power here. Perhaps we, too, "should abandon a whole tradition that allows us to imagine that knowledge can exist only where the power relations are suspended and that true knowledge can develop only outside its injunctions, etc."
- 5.99** So this is an epistemological point, where we have to stop pretending that knowledge is something neutral, something objective, and that that's what's going on in the judicial system. Instead, knowledge is always bound up in some sort of political power regime, and that's the only way we can understand why power is being used in the current regime as it is.
- 5.100** Now, this is the example of the prison, and we're trying to make a connection to capitalism, and we're using the factories as a certain model. Foucault wants to go on to argue that it's not only in those two areas that we are using the same top-down, dictatorial, strict regime. But if we look at other parts of modern society, how we do higher education, we organize higher education in terms of colleges, and Foucault points out that, basically, we took the old monastic model of universities developed in the late Middle Ages and carried those on into the modern world.
- 5.101** You show up to class on time, you do what the professor tells you, you learn to become a good citizen, you get a stamp of approval, and you get sent out into the workforce. If you notice how we do military in the modern world, it's not an old chivalrous knight sent and so forth, going off to battle. Instead, in the modern world, everything is organized. You are brought in, you are trained, your very self is broken down by the drill sergeants, and you are reconstituted. You live in these communal barracks, and you learn how to do everything according to the book and to follow orders.
- 5.102** If you look at elementary schools, we start now with kindergarten. Kids need to learn to show up on time, take their assigned place, follow the instructions of the teacher, and everything is scripted. The bell rings, and then you know what you're supposed to go and do next. The timetable, everything now in the modern world being subject to time, that the time then becomes a regime, and we become something close to slaves to the clock. Everything is scripted all the way through.
- 5.103** "The rigors of the industrial period long retained a religious air. In the 17th century, the regulations of the great manufactories laid down the exercises that would divide up the working day." If you think, OK, we go back to premodern times, and the monks and the nuns who are most pursuing the premodern religious life, their day is broken into, you

wake here, you eat here, you pray, you do this, you do that, you do that. Everything is entirely scripted.

- 5.104** We have carried that on into the modern factory world. We have carried that into the modern school world, and everything is now scripted by time. We have discipline. Here is a standard school. 8:45, 8:52, 8:56, 9:00, 9:04, 9:08, 9:12, etc. And children are conditioned to take their place in the overall society. And everybody is watched. This very important concept of panopticism.
- 5.105** Drawing from Jeremy Bentham, one of the great reformers of the penal system in the British model, he had designed what he took to be an ideal prison system in which there would be the guards, and the central guards would be able to see every prisoner at all hours of the day, to keep them constantly monitored on top of everything being scripted according to time.
- 5.106** You always need to know what you're supposed to be doing in modern society and everybody, particularly the authorities, are always watching you at all moment. You know that you're supposed to be doing certain things, and you know that the authorities are watching you. What does that do inside of you? You then work on yourself to become the right kind of citizen in this overall subjecting regime. All right, panopticism is the key concept here.
- 5.107** Discipline and Punish culminates intellectually, as this is what the modern world most represents. This is an architectural rendering of the panopticon, where you have a central figure who can see into each of the cells where all of the inmates are housed. Also at the outside, there is a window, so at least all during daylight hours, light comes in, and so you can see at least the outline of the person's body. Everybody is always being monitored.
- 5.108** And what Foucault goes on to argue is that this is not simply how we do justice in the modern world, where we want to know everything that everybody is doing all of the time. This is how we do school. This is how we do work. This is how, as we have more surveillance devices out in the public square, we are trying to control society. It's all part of repression, that we have become accustomed to the point where we have internalized it and not realized that we are a repressed and oppressed being.
- 5.109** Now, what are we going to do about this? Foucault had written on behalf of the French government some studies and recommendations for judicial reform. It's not that I have some new idea of how properly to do the judicial system. There is no such thing as ultimate humanity, ultimate justice, and so forth. I, too, just have a different value agenda and a power regime. Nonetheless, I recognize contemporary society as the oppressive regime that it is.
- 5.110** So these reports, as he puts it here, "They are not intended to improve, soften, or render more bearable an oppressive power." Modernity is just oppression. "They are intended to attack it." I am critiquing contemporary society in this particular

manifestation, just wherever it shows up under different labeling. So the medievals and the premoderns, they were oppressive, yes. But the moderns are just as oppressive; they're just oppressive in different ways. They just have different labels also for it. "Justice, technique, knowledge, objectivity. Each should therefore be a political act." Everything is politics. Everything is power, all the way through.

- 5.111 Now, jumping a couple of years later, Michel Foucault takes this trip to Iran. And this seems shocking because Iran is going in a theocratic direction. If anything, it's going back in a premodern direction. He writes some nice things about the revolution as it is occurring in Iran. The Islamic Revolution represents "a political spirituality." He doesn't believe in spirituality in any sort of old fashioned sense, but of course, that's the language that the Islamists are using. We are trying to purify the spirit and bringing people to a godly way of life. And Foucault is praising them for that, even though he doesn't believe in it.
- 5.112 The more important thing then is the second quotation. "It is a new manifestation of the very idea of revolution," and it is revolution that Foucault is primarily interested in here. We're not interested in existing society, particularly Western society, particularly modern society, and particularly not the United States, which is not the great Satan from Foucault's perspective, but it is nonetheless the great enemy. It is the most capitalist nation around the world.
- 5.113 Revolution, anywhere, at any time, that might have a chance of standing up to modernism, capitalism, particularly the United States, I am going to support that. So this, again, makes for a certain amount of strange bedfellows where we have postmoderns saying nice things about premoderns, but the real attack and the real enemy is the moderns.
- 5.114 We have Michel Foucault saying good things about the Ayatollah Khomeini and the revolution he's bringing about in Iran. Perplexities there, but also some elements of commonality, if you recognize that sometimes the enemy of your enemy is your friend in political sphere. Ayatollah Khomeini was in part inspired by an Egyptian philosopher, Sayyid Qutb. And the connection between Foucault and Khomeini, we've covered here; the connection between Khomeini and Qutb will be the subject of our next lecture. So we'll see you then.

Lecture 6: Qutb's Islam

At a glance — Sayyid Qutb's Islamism, framed by 9/11.

- 6.1** September 11, 2001, when the planes crashed into the World Trade Center. Immediately, of course, Americans, but the whole world is asking, how could this happen? Why could this happen? A big part of the story takes us back to 1948, over half a century earlier. The central figure in the story is then a relatively young man, Sayyid Qutb, an Egyptian who had been born and raised in Cairo, received a good, in part religious, education, in part a good classical education in Arabic traditions, but also significantly good education in world literature, particularly European literature.
- 6.2** So he read European literary figures from the great tradition, but also the great philosophers and political philosophers. So he was familiar with Hegel, Marx, Nietzsche, and others, but especially the Germans. Qutb had decided to go on an international trip, and he came to America because America exerted huge fascination on his mind, particularly the mind of intellectuals asking, what is the place of Egypt in the modern world? What is the place of Islam in the modern world? How are we to understand this colossus, this behemoth, this United States of America, that has, apparently out of nowhere, burst upon the scene and come to exert great influence everywhere in the world?
- 6.3** When Qutb arrives in America, he does enroll in formal study. He spent some time in California but pursues a degree in Colorado. And he is largely horrified by what he sees in America, the American people in general. "I found the herd everywhere." Americans seem to him to be like bovine cattle, sheep types of beings, herds traveling everywhere, sold out to the lowest common denominator, rather, of things that herd animals are interested, eating, fornicating, sleeping, and not much of anything else of significance.
- 6.4** That's the American people in general as he met them, but particularly, the women are terrible; they are disgusting. They do not know their proper place. Instead, they strive for liberty and equality with the men, and they use their liberty and equality for shamelessly immoral purposes. And this is celebrated in America. Here is a commentary from Qutb on American women in general, written the year before.
- 6.5** "The American girl is well acquainted with her body's seductive capacity. She knows it lies in the face and in expressive eyes and thirsty lips. She knows seductiveness lies in the round breasts, the full buttocks, and the shapely thighs, sleek legs. And she shows all this and does not hide it." Shameless displays of sensuality, celebrated, flaunted in the American culture.
- 6.6** Also 1948. I don't know what's going on in America, but significant for Arabs, significant for Muslims, is the formation of the state of Israel, their near neighbors from the Egyptian perspective to the northeast. A somewhat secular regime, but of course,

significantly also a religious regime, formed largely out of sympathy and to afford some protection for Jews after the Holocaust that had ended in 1948.

- 6.7 How is the world going to address the problem of rampant anti-Semitism? Here's a partial political solution, but nonetheless, the Arab world, the Muslim world is outraged, and Qutb is also outraged by this as well. So America, terrible, Israel, terrible. What are we to do? We, being Sayyid Qutb. Qutb, after some time in America, returns to Egypt. Egypt, after World War II, is in somewhat of a turmoil. Many rival religious and political factions, all vying for supremacy.
- 6.8 Some of them are drawing on European traditions and saying, we should not be too religious. Instead, we need to secularize, we need to modernize. And so what we should emphasize is, say, Egypt as a nation state, a modernized nation state. And so, all of the nationalist literature that had been developed in Europe after Hegel, particularly, and others, is widely read and popular in Egyptian nationalist movements.
- 6.9 Others argue that we should not be nationalist. Instead, we should celebrate and make fundamental our ethnic identity as Arabs. But Arabs are across North Africa. They are off into the Middle East. The national borders are artificial. What is real is our ethnic identity with a common heritage, common language. This should be combined with a kind of socialism. Again, drawing from the well worked-out literatures developed in Europe. And so various kinds of ethnic socialism, Arab socialism, should be the wave of the future.
- 6.10 So we have the ethnic socialists against the nationalists. And there are others, though, who are arguing that the more fundamental is not ethnicity nor nationality, but rather one's religious identity, and that the true religious faith is Islam, and only Islam can save the world. It must be a politicized form of Islam, one that is not content merely to be a matter of private religious belief separate from political action, but one that is incorporated.
- 6.11 The Muslim Brotherhood was active in Egypt and other places in the Middle East as well. Qutb joins the Muslim Brotherhood in the 1950s. He's involved in various activities against the current regime in Egypt. There are assassination attempts and plots, and Qutb is caught up in that and arrested and put on trial and sent to prison.
- 6.12 He has already been an author of several works up until this point. But while he is in prison, he writes a work called Milestones that is partly religious manifesto, partly political manifesto. It is this work that is to become enormously influential, not only within Muslim Brotherhood, but in many of the new Islamist movements that are going to be developed over the course of the coming generation all across the Middle East. I now want to go into the text so we can read in Qutb's own words the nature of this Islamist doctrine.
- 6.13 Now, Islamist is used as a term of art. The broader concept is Islam, and Islam is the name of a religion. And someone who is Islamic is someone who is culturally or

religiously a devotee, a follower of that religion. Islamism or an Islam-ist is used as a subset of people who are committed to Islam, but who see politicizing Islam. Islam must be made political, and an activist political movement that is to fight against all of the other religions and all of the other political doctrines for supremacy.

- 6.14** So it is not Islam merely as a religion, it is Islam as a political application of religion. And Milestones is a manifesto in that tradition. We go to the text. "Mankind today," 1960s, "is on the brink of a precipice." We're going to fall off the edge into disaster. "Humanity is devoid of those vital values which are necessary not only for its healthy development, but also for its real progress." It is humanity, mankind as a whole, not merely Egyptians, not merely Muslims. It's the entire world. This is going to be a universal doctrine, and our attention is on the human condition.
- 6.15** "Even the Western world realizes that Western civilization is unable to present any healthy values for the guidance of mankind." Here, Qutb's earlier reading in the Western traditions as well as in the Eastern traditions comes to be important. He is aware that, in Western Europe, in the Americas, they are trying to be liberal democracies, et cetera, et cetera, but they have reached a point of failure, and they recognize their own failure.
- 6.16** So if we were looking for in the Western world, it might be talking a good story about itself, but it recognizes in itself that it has reached the end of certain roads. "Even the Western world realizes that Western civilization is unable to present any healthy values for the guidance of mankind." All of the unrest among the students, all of the riots that are about to develop in the streets, the discontent in various forms, capitalism and liberalism seem to have reached the end of the road.
- 6.17** And one sign of that is, he says, "Democracy in the West has become infertile to such an extent that it is borrowing from the systems of the Eastern Bloc, especially in the economic system, under the name of socialism." So the West started off saying, we're going to be capitalistic. And if we really think that capitalism is the way to go, why is it, as we get into the 1950s and the 1960s, war on poverty, huge expansion of government programs and redistribution, we're taking all of these socialist ideas that were developed in Eastern Europe and importing them into the West? It must be a sign of failure.
- 6.18** But the socialisms that have been the most dominant in the East also are failures. "Marxism is now defeated on the plane of thought." By the time we get to the 1950s and the 1960s, even the true believers in Marxism realize that its theory doesn't work. And that's why we've got dozens and dozens of neo-Marxisms and neo-neo-Marxism coming around, trying to patch up this failed theory as well. So intellectually, Marxism is just spinning its wheels in a failure.
- 6.19** But even when we turn to Marxist practice, we have a revolution, a communist revolution in Russia, the Soviet Union starting in 1917. And what has happened there is

a lot of hunger, a lot of starvation even, and a lot of lower quality of life. Russia, which is the leader of the Communist countries, is itself suffering from shortages of food. So both Western capitalism and Eastern socialism are failures. Both of those are products of the modern world. The entire modern world in the West, particularly, is over or close to it.

- 6.20** Failure of all of the West, both Eastern and Western versions, mean, as Qutb concludes here, "It is essential for mankind to have new leadership, significantly, fundamentally new leadership. And Islam is the only system which possesses these values and this way of life." And not modernized in Islam. "If Islam is to, again, to play the role of the leader of mankind, then it is necessary that the Muslim community be restored to its original form." Go back to fundamentals, fundamental Islam.
- 6.21** So how are we going to do this? The first thing we need to do is formulate a vanguard, that is to say, an internal to Islam leadership of people who are right thinking and right acting. Now, this vanguard language is something that also is borrowed often from Marxist theory when they talk about the vanguard of the proletariat that's going to reform internally the movement and then mount the revolution. Now, Islam also needs a vanguard.
- 6.22** "It is necessary that there should be a vanguard which sets out with this determination and then keeps walking on the path, marching through the vast ocean of Jahiliyyah, which has encompassed the entire world." Now, this Jahiliyyah is a technical term. My Arabic is not strong, but what this means is the entire world of non-Islam, which is not only a realm of falsehood, a realm of illusion, but a realm of dis-value and anti-values, the realm of immorality. We need to confront the vast sea of Jahiliyyah that surrounds us a certain way.
- 6.23** "I have written milestones for this vanguard," those who are going to be the leaders of the new message. Now, of course, we have to go back to the Quran. The Quran is still in our hands. But no, the Quran is not a message for a target group of people and only for them. It is a universal message for all of mankind. There is one true faith, and all of mankind should realize the one true faith.
- 6.24** If he had only meant it for the prophet and his groups, or for this small group of people in this particular region, then he would not have said what he had said. God "would not have made Islam a universal message." We cannot say there's going to be multiple religions and any sort of polytheism, live and let live. "The spring from which the companions of the prophet, peace be upon him, drank was the Quran, only the Quran." There are no other texts worthy of study. We focus on the Quran, only it. Do not let it be infiltrated and made impure by other works.
- 6.25** "They of the first generation," Muhammad and his followers, "did not approach the Quran for the purpose of acquiring culture and information, nor for the purpose of taste or enjoyment. None of them came to the Quran to increase his sum total of

knowledge for the sake of knowledge itself, or to solve some scientific or legal problem, or to remove some defect in his understanding."

- 6.26** He turned rather to the Quran to get action instructions. It's not a theoretical doctrine, it is an action guide. "He approached it to act on what he heard immediately, as a soldier on the battlefield reads today's bulletin so that he may know what is to be done." It is an action manifesto, and the metaphor we use here is the metaphor of the military, military action. We are in a battle. This is what you need to do, and this is your, so to speak, your strategic document, your mission statement, to guide you in action.
- 6.27** How does one act? "When a person embraced Islam during the time of the Prophet, peace be upon him, he would immediately cut himself off from Jahiliyyah." You have to cut yourself off entirely from the non-Muslim, alien, immoral world, focus internally. Now this, of course, particularly when one is a small religion, a growing religion, or one is a minority member of the vanguard, or a minority member of the religion in a larger society that does not believe in the truth of Islam, you will be persecuted.
- 6.28** "The Muslim encountered nothing burdensome except torture and oppression, but he had already decided in the depths of his heart that he would face it with equanimity." I will accept this. "And hence, no pressure from the Jahili society would have any effect on his continuing steadfastness." No matter what pressures are put upon you by secular or other religious societies, you will not allow that to change your mindset. You will remain true to the faith.
- 6.29** "We must free ourselves from the clutches of Jahili society, Jahili concept, Jahili traditions, and Jahili leadership. Our mission is not to compromise with the practices of Jahili society, nor can we be loyal to it." If we are now minorities in some other country we have migrated to or immigrated to, they have their leadership. We are not loyal to it. They have their laws. We are not loyal to them. We cannot be. Because of its Jahili characteristics, it's all illusion, it's all falsehood, it's all immorality. It's not worthy to be compromised with.
- 6.30** "Our aim is to change the Jahili system at its very roots— this system which is fundamentally at variance with Islam and which, with the help of force and oppression, is keeping us from living the sort of life which is demanded by our creator." What is demanded by our creator is, this universal religion needs to be embraced by all of mankind in all of its actions.
- 6.31** "The nature of this religion, well, its system extends into all aspects of life. It discusses all minor or major affairs of mankind. It orders man's life not only in this world, but in the world to come." Islam is total. There's nothing outside of the sphere of Islam. No private zone of non-religion, no secular zone of non-religion. It encompasses and has something to say about everything. Everything in human life for all of humanity is to be governed by Islam.

- 6.32** The first step is submission. One must submit. No talk about liberty and liberation in that Western sense, finding your own way, being your own person. You are born under higher authority. You submit to the proper higher authority. "Indeed, the spirit of submission is the first requirement of faith. As soon as a command is given, the heads are bowed." And the bowing of one's head, of one's body, going to the floor, pressing one's face to the floor, is a sign of one's full and total submission. That's the first requirement of the faith. Everyone must [have] faith.
- 6.33** Practical life is to be organized according to divine law. Morality and political law comes from Allah, from God. And that code of law is not Western secular law. It's not Roman law. It's not British common law. It's not American constitutional law. The one true law is Sharia law, and that is the law that must be in place everywhere. And again, religion is not to be separated from the political sphere. This corrupt concept in the West of separation of church and state must be overcome. Islam is to be backed up by the power of the state, or as he puts it here, "the power of the state is to be behind its enforcement."
- 6.34** All right, so first we have to get inside people, inside their hearts. And he says, first, it's actually going to be not so much a rational commitment as a whole-self commitment to the religion. And then afterwards, of course, there will be some intellectualization, but that's not first and foremost what it is. It goes in the hearts. "It is an error, and what an error, to think that Islam can evolve in the form of an abstract theory limited to intellectual learning and cultural knowledge. Beware of this danger, beware!"
- 6.35** So we're not going to argue about Islam. It's not an intellectual doctrine where we try to sort out what the concepts are and how to define them and what this proposition means. And is it consistent with these various other propositions? And what about this objection from the Jews and the Christians and the materialists over here? We're not going to have academic intellectual discussions about this. That is a danger. That is where it is a faith commitment. It is a heart commitment. It's a whole-self commitment. The rest is superficial. It is action, not intellectualization.
- 6.36** "Its purpose is Islam," the very name, which means, what does it mean? "To bring human beings into submission to God, to free them from servitude to other human beings, so that they may devote themselves to the one true God to deliver them from the clutches of human lordship and man-made laws." No man-made laws, no man-made value systems, no man-made traditions. "So that they will acknowledge the sovereignty and authority of the one true God and follow his law in all spheres of life."
- 6.37** The Muslim society cannot come into existence without this. It's also not an individualistic doctrine, next point. "It cannot come into existence simply as a creed in the hearts of individual Muslims, however numerous they might be, unless they become an active, harmonious, cooperative group, distinct by itself." It is a community, a collection. It is a society, and the individuals form the society, and it's at the society level that we need to act.

- 6.38** "Working under a leadership which is independent of the Jahili leadership." So wherever we are in the world, we Muslims will form a group, at least Muslims who are now Islamists will form a subgroup, and we are loyal to ourselves all under a God. We have our own leadership. There is, of course, in whatever society we are, another leadership. There are other religious leaderships and other political leaderships—we are not loyal to them.
- 6.39** "In this respect the service rendered by Islam's pure way of life, as produced concrete and valuable results, Islam is based, the Islamic society, on the assumption of belief alone, instead of the low associations based on race and color, language and country, regional and national interests." Again, a statement, particularly in the modern world of Islam, as a universal message for all mankind.
- 6.40** This is not a nationalistic movement. So nationalisms around the world, those are faulty doctrines. It is not an ethnically based movement. There are all these different ethnicities all around the world. It is not a racially based movement for one race, but not another race and so forth. So we are not nationalists. We are not ethnocentrists. We are not racist. We are universalist.
- 6.41** Now, more specifically, the action statement is because not all parts of the world have the same laws and the same belief systems. And so the Quran provides guidance for different subsections of the world's population. "It was also explained in Quran that war should be declared against those from among the people of the Book who declared open enmity."
- 6.42** The people of the Book are the Jews and the Christians. The Book, in this case, is the Pentateuch and various scriptures in the Hebrew tradition, or for the Christians, the Old Testament and the New Testament. Those are people of the Book, and they have their own scriptures, their own book, that they think are true.
- 6.43** Muhammad, the Prophet, had received in clear instructions that those people are the enemy, and we must fight them and go to war against them. But there are other religions out there. "Concerning the polytheists," people who believe in multiple gods, "and the hypocrites." That's a pejorative label, obviously, for people who are maybe agnostic or not quite sure what they believe, or they mix and match various religious traditions their own particular way, or that they say that they are religious, but in their practical life, they don't really act very religiously, so they're hypocritical, have no integrity in various ways.
- 6.44** "It was commanded in this chapter that Jihad," that is to say, struggle and fight and war, "be declared against them and that they be treated harshly." So, war against the Christians and Jews, especially, everybody else of a religious nature, particularly, must be treated harshly. "Islam is not a defensive movement."
- 6.45** It's not merely that we have our religious faith, and if you just leave us alone, everything would be fine, and that the only reason that we are acting the way we are

acting is because we feel that we are under assault by the secular humanists and the liberals and the democrats and the atheists of various sorts, as well as by the Christians and the Muslims and the Hindu, not the Muslims, the Christians and the Jews and the [Hindus] and the Sikhs and all of the other religions as well.

- 6.46** We are under assault by all of them, but we're not merely a reactive defensive movement. Islam is an evangelizing movement, to borrow a concept. Its job is to spread until it becomes universally accepted. We have a broader meaning of defense. Maybe you could say we are acting in defense of the holy word of Allah. We are acting on defense of Allah, but in which case, the best defense is offense.
- 6.47** "We understand the true character of Islam and that it is a universal proclamation of the freedom of man from servitude to other men, the establishment of the sovereignty of God and his lordship throughout the world, the end of man's arrogance and selfishness, and the implementation of the divine Sharia in human affairs."
- 6.48** We have this great war ahead, and it will be ultimately a worldwide war. But of course, the first war is with oneself. You have to overcome your fears, your own selfishness, your own desire for a comfortable life, your own thinking that your friends and your families are of more importance than your devotion to the cause.
- 6.49** "Before a Muslim steps into the battlefield, he has already fought a great battle within himself against Satan, against his own desires and ambitions, his personal interests and inclinations, the interests of his family and his nation." All of those need to be conquered and come to be seen as of lower significance or perhaps no significance at all in the overall great cause.
- 6.50** "Against which is not from Islam, against every obstacle which comes in the way of worshipping God and the implementation of divine authority on Earth. It is the very nature of Islam to take initiative," not defensive, "for freeing the human beings throughout the Earth from servitude to anyone other than God." "Other societies," the fate of them, "do not give it any opportunity to organize its followers according to its own methods," when we go into these other societies and we form our own subgroup.
- 6.51** They don't let us institute Sharia law. They try to make us form, or conform rather, to their laws, whatever those laws are. That is unacceptable. "Hence, it is the duty of Islam to annihilate all such systems." And now a call to martyrdom. The price one will pay for devoting oneself to the cause, to doing the will of Allah, will be very high, and it might be what seems like the highest price, to pay with your life.
- 6.52** But part of the faith of Islam is to realize that life on Earth is not particularly important. There are higher causes, higher values. "The faith in the hearts of the believers raised them above all persecution. Belief triumphed over life." My belief is more important than my life. "The threat of torture did not shake them. They never recanted, and they burned in the fire until death." And this martyrdom is a noble, the noblest price one can pay for the cause.

- 6.53** "Indeed, their hearts were liberated from the worship of this life." Perhaps the biggest obstacle we have to confront is those who believe that this life matters. Your life matters. The pursuit of happiness in this world matters. And that we are humanists celebrating human life on Earth, and we think that human beings have dignity on this Earth, and we celebrate material accomplishment and so forth. All of that under the umbrella of life must be triumphed over a belief system that places something beyond the value of life.
- 6.54** "They freed themselves from this Earth and all its attractions, triumphing over life through a sublime faith. They show the height to which the spirit of a believer can soar, liberated and free, that height the attainment of which has been the highest honor in all generations and in all periods." The highest honor is to die for the faith.
- 6.55** And coming back to this theme, this seems, from the earthly point of view, that is to say, if you're not a true believer, giving up your life, that seems a bit hard. You die, you suffer for the cause. Martyrdom seems pitiful anymore. It might even seem tragic. But seeing the martyr's death as pitiful and tragic is also a mistake.
- 6.56** "From the earthly point of view, this tragic end troubles the heart. But the Quran teaches the believer something else, reveals to them another reality, shows them another scale." It's not an earthly scale, it's not a naturalistic scale. It's something beyond the true scale of value, the higher values in the beyond. "Life's pleasures and pains, achievements and frustrations, do not have any great weight in the scale, and do not determine the profit or loss."
- 6.57** So, the scales of value, all of the naturalistic, humanistic, materialistic, this-worldly pleasures, count for nothing or something very close to nothing. They don't weigh much at all. It is a beyond the natural, superior to the natural scale of values, and that is the only one that we measure.
- 6.58** "In the scale of God, the true weight is the weight of faith." How strong is your faith? "All men die," everybody dies. "All men die, and of various causes, but not all gain such victory, nor reach such heights, nor taste such freedom, nor soar to such limits of the horizon. It is God's choosing and honoring a group of people who share death with the rest of mankind, but who are singled out from other people for honor."
- 6.59** To die a martyr's death is the most honorable thing that one can do. You're going to die anyway. The best you can hope is that God has chosen you to die for his cause gloriously, in fighting against the great Satan, the Jahiliyyah society and all of its perversions and immoralities.
- 6.60** Now, this lesson might be especially hard for parents. It's one thing for you as an adult to say, I'm a grown man or I'm a grown woman. I'm going to dedicate myself to the cause and I am going to perhaps become a martyr for the cause. But what if I'm a parent and I'm an Islamist parent and I'm teaching my children the true faith? What do I hope for my children as they are growing up? What do I want them to dedicate their

lives to? And what happens if one of my children is martyred for the cause? What is my reaction going to be? What will the test that I am a faithful follower be? How do I feel when my own child dies in the Jihad?

- 6.61** "The messenger of God, peace be upon him, said, when a certain person's child dies, God asks the angel, did you take away the soul of my servant's child? They," that's to say the angel, "say, yes. Then he says, God, did you take away the apple of his eye? They say, yes. Then he says, what did my servant say? They say, he," he is the parent who has lost the child, "he praised you." Then you know you have a man of faith. God took my child. I praise God.
- 6.62** "And it is life from God for the martyrs." Now, of course, there is an afterlife. "Do not consider those as dead who were killed in the way of God. They are living and find sustenance from their sustainer." So there is a reward for the martyrs in the afterlife. So there's a quasi higher realm. There's a place of goodness and purity and beautiful, and one is in the presence of God.
- 6.63** But what's going to happen to the rest? And this is the people whose faith wavers, perhaps those who reject Islam, for those who never convert to Islam. "As to rejectors of the faith, the tyrants and the criminals, God has repeatedly promised that he will catch them in the hereafter. Do not let yourself to be deceived if the unbelievers walk about in the land; a limited enjoyment." Yeah, you will get some limited pleasures in this world. But after you die, "their abode is hell." And what an evil place that is.
- 6.64** All right, so then in wrapping up Milestones, which is a relatively short tract, not much more than 100 pages of text once it is translated into English. But in final call, Qutb is interested in addressing people who are wanting to be part of this vanguard, vanguard of the faith, who are going to make the total commitment to the lifestyle in order to bring about God's words. And he ends in these words here.
- 6.65** "The Quran was creating hearts worthy of bearing the trust of being God's representatives on Earth." Do you want to be God's representative on Earth? Can you imagine a better commitment to make for your life? Are you willing to pay the costs that embracing the mission is going to require? You're looking for members of the vanguard who are "being willing to traverse the path of life until death in poverty, difficulty, frustration, torment, and sacrifice. They were not to seek any hasty reward on this Earth."
- 6.66** It is a difficult calling, the most difficult calling that one can make, and one cannot accept any of the temptations of this world, any of the pressures put on by others to compromise and to get along in various ways, even to the point of death. But if you have true faith, then they will "not be anxious, while traversing this road ever paved with skulls and limbs and blood and sweat, to find help and victory, or desirous that the decision between truth and falsehood be made on this Earth. Indeed, this world is not a place of reward."

- 6.67** This is not a political or an economic or a racial struggle. It is essentially a philosophical belief struggle between two ways of thinking about life. "Essentially, it was a struggle between beliefs, either unbelief or faith, either Jahiliyyah or Islam." Start choice, make your commitment.
- 6.68** Milestones was written primarily while Qutb was in prison. He had been sentenced to death. And by the Egyptian government, in 1966, he was executed. His book, Milestones, had reached wide circulation, was influencing lots and lots of people, particularly young people, as an inspiring work. But then Qutb's execution also elevated him from being not simply a theorist, not simply an activist intellectual, but also a martyr. He died for his beliefs in a corrupt society that has sold out to the wrong form of political belief. And so he becomes as well an emblem or a motto, his works, and a very person whose name is to be revered by a generation of followers.
- 6.69** Now, the story carries on because his brother Muhammad Qutb, slightly younger brother, also similar belief system, Islam generally, but also Islamism, and deeply steeped in his brother's writings, accepting his analysis. He left Egypt, having not been so caught up in the political machinations and the various conspiracies and plots, and went to near neighbor Saudi Arabia, where he became a professor at one of the major universities in Saudi Arabia.
- 6.70** Just a few years later, this young man became his student. This is Osama bin Laden, who is to go on—he comes from a very wealthy construction family, but he gets an education and becomes radicalized with respect to Islam and Islamism, and then goes on in 1988 to form Al-Qaeda. So from Sayyid Qutb to Mohammad Qutb to their student Osama bin Laden, we now have a continuity of a certain kind of doctrine and a well funded organization able to operate internationally, dedicated to taking the cause, the Qutb cause, but more generally speaking, the cause of Islam to the rest of the world.
- 6.71** Bringing things further east, we know that Al-Qaeda was engaging in plans in its battles against the West. It was Al-Qaeda that took responsibility for the attacks on the World Trade Center and the attacks on the Pentagon, a well orchestrated attack to try to strike a dagger in the hearts of Western decadent society. But at the same time, Qutb's influence went further east to Iran. Here we have Khomeini as a younger man, a scholar dedicated to Islam and very intellectual, translating Qutb's works into Persian out of the original language, so that those committed to Islamism in Iran can benefit from the teachings of Qutb.
- 6.72** The influence then from Qutb as theoretician to Khomeini as political activist as Iran goes for its own revolution, 1978 on into 1979 when it was successfully prosecuted, we again have philosophical theory, in this case, theocratic philosophical theory applied successfully to a revolution, a political revolution in a major country in Asia.
- 6.73** Ayatollah Khomeini then becomes the first among equals in the new Islamic Republic of Iran. For the next 10 years or so, he is in control, but he dies in 1989, and things pass on

to Khamenei, Ayatollah Khamenei, and he is the ruler since 1989. As a result of this successful revolution, the Iranians take seriously doctrine. This is not simply propaganda that, now that we've gotten into political power, we're going to enjoy the good life. Instead, we take it seriously or we're going to put it into practice in all walks of life.

- 6.74** It is widely known what the Ayatollahs stand for in 1979. Shortly after the new regime comes to power, women who had enjoyed significant freedoms and equality—Iran had had significant influence from Western sources as well—recognize that we are going to go back. We are in a modern world, but they are going to take us back to a premodern world. And in terms of dress, women's mobility, affordance of educational opportunities, we know it does not look good for us.
- 6.75** And so there were mass protests from women against the hijab and other elements of the new Islamist regime in 1979. Those protests were suppressed. They were unsuccessful. And by the time we get to, just a few years later, women are, when they go in public, to dress this way. But again, the recognition is that Islam is fighting a fight against the whole rest of the world. And we need to have women who are not simply stay-at-home types of women. They need to be trained in order to do their role in the upcoming battle and perhaps themselves, even to become martyrs for the cause.
- 6.76** This image of women dressed in full body and head-covering dress, pointing guns as they are practicing to take their role in the future society, is quite arresting. I think things come full closure when we reflect that, back in 1948, when in the West, we were celebrating a certain kind of womanly ideal, that one is in deep conflict with the new womanly ideal being practiced in Iran. We have a symbolic opposition of world politics in this generation. All right, we'll stop there.

Lecture 7: Dugin's Vision

At a glance — Aleksandr Dugin's vision after the 1991 Soviet collapse.

- 7.1 All right, let's start in 1991. In 1991, the fall of the Soviet Union. Metaphorically, we might say that the Marxist ship of state has crashed aground, and the great experiment in Russia, as it is once again called, formerly the Soviet Union, has failed. Where is Russia to go now that the Cold War is over? What we had was much of the world divided into two large spheres of influence, liberal democracy, republicanism, capitalism by and large in the West and its allies, Marxism, socialism, communism, and its allies in the East, but the one great power has now gone away.
- 7.2 Now, into this ideological space, what's the new Russia going to be, steps a philosopher, political thinker, then in his middle 30s, widely read, enormously charismatic in personal experience and strong in his writer, Aleksandr Dugin. And in 1997, he pens an article and has it published, in which he says the future of Russia is, as the title indicates, "fascism—borderless and red."
- 7.3 Now, the borderlessness then raises, we have the standard Russian borders. We've also had the borders as they existed under the Soviet Union, and those borders, with the collapse of the Soviet Union, shrink, as many of the states formerly under the control of the Soviet Union assert their independence. Should we limit ourselves to the Russian border as more or less historically, or should we think borderlessness?
- 7.4 The red, of course, is sometimes indicative of blood, blood being spilled, violence, revolutionary activity. In some cases, it is indicative of communism, socialism, and political ideologies of the left. Now, ambiguous as to the title, but let's work through the main theses as Dugin announces them and argues them in this influential 1997 piece.
- 7.5 Now, he starts as philosophers and big-picture thinkers like to do, by offering a panoramic view. What has the 20th century amounted to? Now it's 1997. Well, the 20th century is almost over; we can assess what has gone on. It boils down to a huge battle ideologically that also carried out into the field, in war between liberalism, communism, and fascism. Fascism, we're familiar with now from Mussolini and the Fascists in Italy. Here Dugin is including their close siblings or their cousins, the National Socialists, under Hitler in Germany, central Europe.
- 7.6 Further to the east, communism, by and large, the first major revolution in Russia, which became the Soviet Union, followed by a communist revolution in China under Mao Zedong, and then the West, which is broadly speaking, liberal, here including all of the classical liberals, the welfare liberals, and then many of the movements within conservatism that align themselves in this broad umbrella. So West, central Europe, and East.

- 7.7 But what happened was, over the course of the 20th century, two of them failed. Fascism was defeated during World War II. Italy and Germany lost. Communism, it took a while longer, but it has failed as of 1989 when the Berlin Wall fell, 1990, 1991, when finally the Soviet Union fails. Now it seems like liberalism is the only contender left standing. But Dugin hates liberalism, and that's not an overstatement. Hate. It is a disaster. And as we will see, it is the great Satan of all human history.
- 7.8 Now, the fascism in his title here, what he's going to be arguing for, is we need in some way to revive fascism, learn from the mistakes of fascism earlier in the century, purify some of its elements, and reinvigorate it for the new Russian context. It was in an Italian context, it was in a German context. Now it is time for a Russian version of fascism. Well, what is fascism?
- 7.9 "On the economic level, fascism is characterized rather by socialist or moderately socialist methods which subordinate personal individual economic interests." Classical socialism, as announced by Mussolini, also carried over by the National Socialists in Germany. Anti-individualistic, not about you as a personal individual, rather, subordinated to broader government control.
- 7.10 "The fascist view of culture corresponds to a radical rejection of humanistic, excessively humane mentality, of what represents the essence of the intelligentsia. The fascist hates the intellectual as a type. He sees in him a masked bourgeois, a pretentious philistine, a chatterbox and irresponsible coward. The fascist loves the brutal, the superhuman, and angel-like at the same time."
- 7.11 So this is not an intellectual movement directed by intellectuals or, and we all have our stereotypes about what the pointy-headed, ivory-tower intellectual is like. This is action, brutal action in the real world, that fascism endorses. Mussolini is justifiably one of the great heroes of fascism. "The fascist pathos is accurately defined in the famous phrase of Mussolini, 'Rise, fascist and proletarian Italy.'" The proletarian is a Marxist borrowed concept, as we know, "'fascist and proletarian', such is the orientation of fascism." What we need to do, though, is adopt the spirit of Mussolini's fascism and recast it for the Russian context.
- 7.12 Now, why did fascism fail? "In history, clean, ideal fascism did not experience a direct incarnation. In practice, the urgent problems of assumption of power and establishing economic order forced the fascist leaders, including Mussolini, Hitler, Franco in Spain, Salazar, Portugal, to forge alliances with conservatives, national capitalists, big owners, and corporation heads." And that was the mistake. They compromised with the capitalists, the conservatives, the national capitalists, and the owners of big capital.
- 7.13 And the language that he uses here, the capitalists are like a virus. "National capitalism is the inner virus of fascism, its enemy and guarantor, rather, of its degeneration and perishing." So there can't be any compromise in the new restored version of fascism. Now, sometimes fascists in contemporary parlance, as the 20th century went on, were

labeled as right-wingers. You see this is very common in socialist thinking and in left-wing thinking. They want to distance fascism as much as possible.

- 7.14** Dugin argues, as a matter of theory and as a matter of practice, fascism is not a right-wing ideology. It is out of the left. It is a form of socialism, and he is embracing the socialist label. "In analogy to national socialism." So we have the socialism, but it's cached at the national level, Italy, Germany, and so forth. "It was often simply called German socialism. One can speak of Russian fascism as Russian socialism." Those are equivalent labels.
- 7.15** "What is meant is," what's the Russian part? We know what the socialism is generically, but it's tailored to the Russians, "the concrete, spiritual-ethical and cultural principles that have organically formed the nation as such." Once again, we have an organic understanding of society. Society is not a collection of individuals who formed contracts with each other or transferred sovereignty to a delegated number of government agents who are going to protect their rights and so forth. It's not that model at all.
- 7.16** Society is itself an organism that has its own life, its own identity. Each society has its own organic uniqueness. "Russian socialism—that is, not Russians for socialism, but socialism for the Russians." That is to say, we don't start with an abstract template of what socialism should be, and we try to squeeze the Russians into that abstract template. Rather, we take the Russians as an organic society and adapt socialism to the Russian identity. So the emphasis is going to be important here.
- 7.17** A call for younger people to join the cause. What we are looking for, "national revolutionaries, young, malicious, merry, fearless, passionate, and not knowing limits, they build and destroy, rule and fulfill orders, conduct purges of the enemies of the nation." We need to purify the Russian nation, and a certain kind of young revolutionary is going to accomplish this.
- 7.18** Taking some praise from a contemporary French fascist writer who is also disappointed by the failures of fascism in Italy and in Germany, but seeing signs of hope for fascism further east in Russia, French fascist writer. "Robert Brasillach voiced a strange prophecy: 'I see how in the east, in Russia, fascism is rising—a fascism borderless and red.'" And that's from whom Dugin is borrowing his title. "Note," clarification, "not a faded, brownish-pinkish national capitalism," no compromise, "but the blinding dawn of a new Russian revolution, fascism, borderless as our lands." There are no limits to the Russian borders. "And red as our blood."
- 7.19** Same decade, Dugin was one of the cofounders and was the chief political thinker, the deep thinker, for a new party that was formed in Russia after the fall of the Soviet Union, and they called themselves the National Bolshevik Party. The Bolsheviks were the original communists in Russia, the party of Vladimir Lenin, Joseph Stalin, Leon Trotsky, and the others. They were the Bolshevik Party that successfully mounted the revolution starting in 1917.

- 7.20** In some sense, in addition to all of the fascism, Dugin is saying, we also are going to integrate certain amount of communism, Marxism, Bolshevism, and so forth. But it's not going to be international Bolshevism. According to classical Marxist theory, it's going to be a national Bolshevism. So telegraphing that in some sense, we're going to be integrating the best from communism and the best from fascism into this new synthesis.
- 7.21** And this is some members of the party protesting outside a government building at the time. And it's interesting that you can see, in the iconography, they've chosen the red, which is the traditional communist, Marxist, socialist red color. And still, after the fall of the Soviet Union, the hammer and sickle, which was the emblem of them. But it looks very similar to the swastika that comes out of National Socialism and Germany under Hitler, a fusion of all of these ideologies.
- 7.22** Now, 1997 is when this piece is published, but Russia is transforming itself, and it's clear, within a few years, that there's going to be a new kind of stability. There's a power struggle all through the 1990s, a great deal of uncertainty about what direction Russia is going to go. But Vladimir Putin works his way to the top and becomes the Premier of Russia by the year 2000. Started off as a KGB officer under the Soviet Union, then came to be the head of the FSB, another intelligence military-connected agency, by 1998, and assume the presidency by the year 2000.
- 7.23** Of course, everyone around the world, Russia is the biggest country geographically in the world, strong history, still has nuclear weapons. What's going on in Russia? How can we figure out what Putin is all about, where he's going to take Russia? Is he just an old KGB guy who's coming to power? Is he a true believer of communists, even though he's not talking that way? Does he have some personal vision that he's going to put forward? Nobody knows. So what's really going on inside Putin's brain?
- 7.24** Dugin is rising in esteem among many Russians and cultivating also an international reputation. And as Putin starts to announce what he stands for, sometimes he's talking very practically, but sometimes he steps back and becomes more theoretical, more philosophical, more religious in his discussions. And people notice many similarities between what Dugin is talking about, as a vision for Russia, and what Putin is saying and doing. And so the question then is whether there is any connection between the two. And some people will float the idea that Putin's brain really is Dugin.
- 7.25** Now, interestingly, Putin has never, to my knowledge, quoted or cited or acknowledged Dugin as an influence. So this is going to be, at the most, behind the scenes or happy coincidence or whatever. But from some of the theoreticians whom Putin has cited favorably in various speeches over the years, we can read into that some of the principles that he is in favor of.
- 7.26** One thing that is important in the Russian context is that Russia has traditionally been a deeply religious nation. An Eastern Orthodox or Russian Orthodox version of

Christianity is dominant in Russia. Much of that was attempted to be suppressed under the officially atheist Soviet Union, but nonetheless, it was just mostly driven underground and was religion reasserting itself significantly after the fall of the Soviet Union.

- 7.27** Putin makes a point of appearing regularly with the patriarch, the first among equals of the Russian Orthodox Church, to cite him favorably, to quote him. So there are ideas officially, and in practice, there should be a merger of church and state, like religion and politics. There's no separation, and certainly the official atheism of the former Soviet Union is gone.
- 7.28** Putin also has quoted and cited approvingly Leontiev, who is a historic figure to us now, who became a monk. He's a conservative Tsarist. Go back to the old days of the Tsar. "He's a conservative and imperial monarchist Russian philosopher who advocated closer cultural ties between Russia and the East," against the West, which is faulty and decadent, "against what he believed to be the West's catastrophic egalitarian, utilitarian, and revolutionary influences."
- 7.29** So, one hint of what's going on inside Putin's brain. He's also cited Ilyin and quoted him approvingly. Well, who is Ilyin and what does he stand for? Another brief description here. "In his view, Hitler's National Socialism, Mussolini's Fascism, and the Russian White Movement were very similar and spiritually close. He described them as sharing a 'common and united enemy, patriotism, sense of honor, voluntary-sacrificial service, an attraction to dictatorial discipline, spiritual renewal, and a revival and rebirth of their country, and the search for a new social justice.'"
- 7.30** So lots of moral language that is built into there, but moral language of a certain sort. This is what it is to be a good citizen or a good subject of the Russian state. Now, Vladimir Putin is consolidating Russian power. So while Putin came to power and, in the year 2000, and by 2009, 2010, is clearly in charge and in control and has significantly indicated the direction for the future Russia in terms of practical politics, Dugin has also been writing seriously, and in 2009, he publishes his next great work, and it is called The Fourth Political Theory.
- 7.31** As we have seen in the 1997 piece, he has said the 20th century was characterized essentially by liberalism, fascism, and communism. That's the big three. And now it is time, in the new Russia, for Dugin to announce what the great fourth replacement is going to be the future for Russia. I want now to go to the text, dive into Dugin in his own words, sketching out the philosophical background, the theological background, his assessment of current world geopolitics, and what the place of Russia with its new ideology is going to be.
- 7.32** So what is the fourth political theory? Or 4PT, as he often abbreviates it. A rehearsal of themes that we are familiar with from Dugin's earlier writings, all of the 20th century boils down to a battle between liberalism, and there are left versions of liberalism and

right versions of liberalism. If you go into the West, there are internal debates about the right direction that liberalism should go.

- 7.33** Communism, and the communism also is a relatively big basket of ideologies, both Marxism as one prominent version of socialism, socialism more generally, including the strong, more left-leaning social democratic movements around the world. And then the third being fascism, also a relatively large basket of ideologies. It includes National Socialism, that's the German version, other varieties of the third way, Franco, Peron in Argentina, Salazar in Portugal, and others.
- 7.34** Now, interestingly, this concept of the third way, we need to clarify it because the third way has come up earlier in this lecture series in the context of President Bill Clinton and Prime Minister Tony Blair, saying, after the fall of socialism in the Soviet Union, we're not going to go to a strong and robust version of capitalism. Instead, we're going to have a compromise or middle ground between capitalism and socialism. Dugin is using third way to mean fascism, not that compromise between capitalism and socialism. So a terminological point that needs to be kept straight.
- 7.35** 20th century, not only an intense, sometimes nasty ideological debate, but also a terrible practical debate on the battlefield. Wars fought over these ideologies, and out of that emerges one victorious ideology, and that is liberalism. "Liberal theory is the only one remaining of the three by the time we get to the end of the 20th century." The liberals are all triumphant. The American way is going to prevail all over the world. It is simply a matter of time.
- 7.36** But liberalism is not invincible, and Dugin is happy about that. So he cites the events of 11 September in New York, when the Islamist terrorists flew planes into the World Trade Center, huge devastation, into the Pentagon, plus the plane that crashed, I believe, in the fields of Pennsylvania. So, thankfully, the Islamists are showing that the Americans and liberalism are not invincible. They can be attacked, and we should take some encouragement from this.
- 7.37** Also, in terms of the internal developments inside Western liberalism, there are signs of decay, signs of disintegration, signs that perhaps liberalism, even though it was victorious in the 20th century, is going to fail of its own accord. Here Dugin cites the rise of postmodernism inside of the Western intellectual developments. Thinkers like Michel Foucault, Jacques Derrida, and widespread skepticism and relativism, the rise of critical theorists who are mounting an internal attack on Western capitalism and Western liberalism, what we now call the entire postmodern era, it might be that the West has sown the seeds of its own destruction.
- 7.38** The fourth political theory can take then inspiration from the damage done by the Islamists and by the postmoderns and the critical theory. "The fourth political theory must draw its dark inspiration from postmodernity." Then a strong piece of language here, "from the liquidation of the program of the Enlightenment." We need to entirely

liquidate Enlightenment thinking, "and the arrival of the society of the simulacra"—this is the new technologies where we are spending a lot of time in artificial reality, stuck on our phones and in social media and playing video games and so forth.

7.39 And all of this, he thinks also, is a new social reality for the West, that its technology is divorcing it from reality. And that also is a possible sign of a weakness that can be exploited by the fourth political theory. "Modernism," that is to say, going back to the 1500s, the 1600s, culminating in the Enlightenment, and then all of the transformations of society that have occurred first and most significantly in the West, has reached a point of exhaustion.

7.40 And on Putin's analysis, the postmoderns are not an alien anti-Enlightenment force, but rather they represent the Enlightenment and modernity going full through the end of its course and reaching a death stage. There's an organic understanding in Dugin of how societies evolve. They start off with youth and vitality. They reach maturity, but they end in a death cycle. And postmodernity, from his interpretation, is the death stage of and the death rattle of modernity and the Enlightenment.

7.41 So we can celebrate what the Islamists are doing, we can celebrate what the postmoderns are doing, as a sign of the death knells of the West. But also, it's not simply that there's the modern world and now we are into postmodernity. What this means is that the advocates of 4PT can do is look back to some of the earlier models and try to reinvigorate some of those. "The fourth political theory may easily turn toward everything that preceded modern modernity in order to draw its inspiration." And what preceded modernity? Well, we will have to wait and see.

7.42 Now, notice that we start at this point to integrate more explicitly religious language. "When it returns, postmodernity is easily recognized as the kingdom of the Antichrist." So in Eastern Orthodox Christianity, there is a sense that the world is going down, that it is going to sell itself out to flaccidity, to evil and immorality and other forms of weakness. And at that moment, the Antichrist will arrive. We will be into an apocalyptic era, and out of that will then come some sort of future.

7.43 Dugin is recognizing that, out of premodern time, when religious thinking dominated, the notion that this was the future that we should be working toward and hoping for—it will get very bad, it will get very bad—but out of that will come a kind of rebirth. Dugin is noticing that. This is not simply, he says, a Russian Christian thesis. It's found in Muslim theology. It's found in Jewish theology. It's found in Hindu theology. All of the great traditional religions of the premodern era have a similar doctrine, and I think that doctrine is correct.

7.44 "This is not simply a metaphor." We're not doing Hollywood rhetoric. "It is a religious fact, the fact of the Apocalypse." The Apocalypse is coming. Now, stepping back from that to now philosophy, Dugin goes out of his way to cite the philosopher who he thinks is the most brilliant, fundamental, insightful philosopher, and he couches himself

as a disciple of this philosopher. Independently, Dugin writes a book on Martin Heidegger's philosophy, and here in Fourth Political Theory, we find it explicitly mentioned—Heidegger and the event, the big event that's going to occur.

- 7.45** "Here we can identify the most profound ontological foundation for fourth political theory, the most all-encompassing, paradoxical, profound, and penetrating study of being. I am talking about Martin Heidegger." So Martin Heidegger is the number-one philosopher. So we go back, we read Martin Heidegger, we read his philosophical doctrines, and of course, we recognize that, when he turned to political philosophy and political theories, he became a National Socialist. He joined the Nazi Party, acted on their behalf.
- 7.46** And that makes then perfect sense from Dugin's perspective. That philosophy and that fascist or National Socialist political doctrine that he had earlier celebrated is what we are reinvigorating in the 20th century. And now the strong language, "Heidegger bitterly hated liberalism." And I, Dugin, as a follower, am channeling that. Now, Heidegger used a special term, this 'Ereignis', in the German, this event. And it is going to be a kind of apocalyptic event, where the world gets worse and worse, and conflict and disaster and sin and immorality and degradation and perversity come to dominate. Satan seems everywhere in the world.
- 7.47** Heidegger did not use that religious language, but Dugin will. And out of that, just when things seem to be the worst that they can possibly be, and we're ready to give up and surrender ourselves to nothingness, in that moment, there will be the event, the great awakening that comes out of the Apocalypse, and then a kind of renewal of one's spirit, the spirit of one's people, and a new direction for history. And this is going to happen in Russia. Russia is now the special place.
- 7.48** If we reflect on the place of Russia in world history, Dugin goes on to argue, "The entirety of Russian history is a dialectical argument with the West against Western culture." And once again, the term dialectical has various meanings, but in modern political thinking and philosophical thinking, it almost always means an echo of Hegel and/or an echo of Karl Marx. So the thesis has been Russia, the antithesis has been the West. There's a great struggle between those two theses and antitheses, and out of that collision will then come a new synthesis, and that will be the future of Russia.
- 7.49** "It is a struggle for upholding our own Russian truth, our own messianic idea, our own version of the end of history." And entirely, Russia is in this self-developmental process to realize its own vision. And I, Dugin, am carrying on that tradition. "The brightest Russian minds saw clearly that the West was moving towards the abyss," and the West will continue to do so. The West will go "from crisis to crisis," things getting worse and worse, "one bubble to another" in the globalist economy.
- 7.50** And that is because the West has bought into a completely wrong, decaying, ultimately perverse philosophy. It became materialistic, it became sold out to capitalism and

money-making and thinking that life is about pleasure and the pursuit of happiness, and that is a philosophical betrayal. "It's mankind's departure from its existential and spiritual roots." Therefore, when we're doing political philosophy and political practice, we have to integrate that with the deepest philosophy. It has to be on a proper philosophical foundation.

- 7.51** "We must refer to the philosophical foundations of history and make a metaphysical effort in order to solve the current problem." Not just reforming and tweaking around the edges. We need to go deep and engage in a transformation. "The Russian Ereignis, the big event—this will be the very event, unique and extraordinary for which many generations of Russian people have lived and waited, from the birth of our nation to the coming arrival of the end of days." There will be an end time, and it's coming, and every crisis is a problem, but also to be celebrated as a sign that we are getting closer and closer to the end time.
- 7.52** Now, who are we fighting against? Well, we know that Heidegger hated liberalism. We know that liberalism is the reigning ideology in the West, and so Russian fascism, Russian socialism, has to be opposed to that. But this is now Dugin's understanding of what liberalism stands for. "Liberalism encourages the individual to become himself." Liberalism says, you are you. You have your potentialities and your actualities. It's a self-realization ethic. Be all you can be. Dream your biggest dreams, get your act together, and go for them. That is the liberal approach.
- 7.53** Properly, he cites here John Stuart Mill, the great liberal philosopher of the 19th century. So we go back to our lecture discussing Mill and all of them. Now, that liberalism is individualistic. Sometimes we then say, well, the proper alternative to that is some sort of group thinking. Dugin wants to say that we are not, in our approach to group thinking, our understanding of the organic society, going to be racist or racialist. "The fourth political theory rejects all forms and varieties of racism."
- 7.54** Now, the reason for this is that race is more of a biological concept. The argument here is going to be that the right kind of group has to be a spiritually integrated group, and spiritual connection cuts across biological connection. So people of any races can have a tight spiritual ethnic connection. It's going to be an ethnic grouping, not a biologically reductionistic, materialistic racial grouping.
- 7.55** A claim about whether all of these different societies, all of these different groups with their own ethnicities and their identities and so forth, whether some of them are better than others. This is another problem with racism. Racists are almost interested to say, there are all of these biologically different races, and our race is better than all of the other races. We have—our genes are better, or our brains are better, or our intelligence is better for biological reasons.
- 7.56** It's not only that the biological is not fundamental, but rather the idea that some groups are better than others. What we call morality and our standards for normative

judgment develop inside a culture. Different cultures develop different standards inside them for their own development. If you are a product of one society and its moral standards, you can't step outside of your cultural identity and into the shoes of someone and the standpoint of a completely different cultural identity. There's no way to compare these two.

- 7.57** There is going to be no universal ethics, no universal normative standards, rather. Instead, there is a kind of relativism at work here, and Dugin philosophically cites this point. "Societies can be compared, but we cannot state that any one of them is objectively better than the others. Such assessment is always subjective." We are all born into given societies, conditioned by our societies and our way of thinking, what we think is true, what we think is false, what we think is good, bad, important.
- 7.58** Much of that is shaped by the language that we learn, and we just cannot adopt any sort of an objective perspective. That would require us to step outside of how we have been conditioned as subjects and adopt some sort of neutral or God's-eye perspective. We never have that. The best we can do is say that this is my ethnicity, this is my cultural identity, and I am embracing it, but I can't denigrate any other. So there is a relativism tied to subjectivism.
- 7.59** "Ethnos or ethnos is the greatest value of the fourth political theory as a cultural phenomenon." You are a member of an ethnos, an ethnicity, and that is fundamental. "As a community of language, religious belief, daily life, and the sharing of resources and goals, again, as an organic entity." The ethnicity is organic, "written into an accommodating landscape."
- 7.60** But what does liberalism want to do? It wants to take the individual out and say, you are a self-governing being. Maybe you have free will and volition. You can make your own choices about your values and your goals. You might even decide, I don't like living in this particular culture and decide I'm going to become cosmopolitan, a citizen of the world, or maybe I like this other culture's way of doing things better. It's totally your choice, and your development as a human being is totally an individualistic project. That is entirely rejected by the Dugin approach.
- 7.61** Instead of thinking of the individual, the better model, he says here, is the village state, and particularly in the Russian context, where Russia is huge and decentralized. Even the idea of a single Russian nationality with central control, as the communists tried to do, that's very hard to articulate. Rather, Russians identify more locally, perhaps even more regionally. Maybe we can expand that out. "But the village state is an alternative view of politics from the perspective of the ethnos naturally living in balance with its environment." So you are rooted in a particular place, in a particular culture. That is your identity.
- 7.62** Now, we want also to reject liberalism, but we have to understand liberalism. We want to sort out what we can learn from Marxism's failures, from traditional fascism's

failures. And as we know in Dugin, it's going to be a national Bolshevism. While they failed, nonetheless, they have good things in them. We're going to extract the good things from Marxism and from fascism in a new synthesis.

- 7.63** So what is the problem with Marxism? Marxism is materialistic. That's the core problem. "Materialist reductionism and economic determinism comprise the most repulsive aspect of Marxism." So ontologically, metaphysically, at its foundation, it's just wrong, philosophically. On the other hand, Marxism is great in the following respect. "Marxism is relevant in terms of its description of liberalism." Marxism opposes liberalism and critiques liberalism.
- 7.64** All of those critiques we are going to accept and incorporate, "in identifying the contradictions of capitalism." Marxism is great as a critique of capitalism. So in terms of Marxism's positive doctrine, what it stands for, its materialism and all the things that follow that, we reject all of that. What Marxism is against, we accept all of that and incorporate that into 4PT. "Marxism is tremendously useful. Marxism serves as an excellent tool."
- 7.65** So the Marxist criticism of it, it here being liberal capitalism, and the struggle against it, remain on the agenda. Following Marxism and also the fascists, "We propose the theory that every human identity is acceptable and justified." So that is to say, there's lots of different cultures out there. The liberals want to have this very universal understanding of what it is to be a human being, that all human beings have certain rights that are objective and to be respected in every single individual.
- 7.66** In contradiction to that, there are different human identities, because of all the different ethnicities that are out there; all of them are fine, except for those that are individualistic. "Every human identity is acceptable and justified, except for that of the individual. Man is anything but an individual." You are always a member of a collective.
- 7.67** "Liberalism must be defeated and destroyed, and the individual must be thrown off his pedestal. The difference is that this freedom is conceived as human freedom, not as freedom of the individual, but as the freedom given by ethnocentrism." Whatever freedom you have comes from being a member of a group. It is your group's realizing of its freedom, sometimes from oppression with respect to other groups—that's what we are striving for. We're in favor of "the freedom of any form of subjectivity except for that of the individual."
- 7.68** Dugin then goes on to identify another liberal whom he hates, Ayn Rand. Her version of liberalism, strong, robust individualism, a very romantic conception of your life as an adventure. You have certain freedom rights, liberty rights, the pursuit of happiness, becoming the entrepreneur of your life, and then developing a political system to support individuals as they go about all of that. Completely wrong, completely immoral. So objectivism, as she calls her philosophy, is also the enemy.

- 7.69 To summarize this negative part, it's "a radical rejection of modernization," the entire modern world. The idea of progress, of immediately following this, some suggestion of a replacement of the progress, understanding of history, "evolution, development, and growth." Now, what do we mean by that? Another part of the liberal modern project has been the idea that, finally, as we get into the modern world, we've got past many of the obstacles that have stopped human beings from progressing.
- 7.70 We got rid of superstition. We got rid of ignorance. We have developed the capacity for reason and rationality. We're teaching everybody to read. We have all of these sciences that are figuring out all sorts of things about the world. We're developing all kinds of technological powers to bend nature to our will. So instead of killing us as nature typically has done, very quickly and in large numbers, we can modify nature and extend our life span. So we're making progress in all of these different spheres.
- 7.71 We're eliminating slavery. We're extending the franchise and all of the other rights to women as well. So finally, we have a progressive understanding of human history, and it's open-ended. There's no reason why our children and our children's children can't continue, and we have a bright, open-ended, sunlit future. That view of history, that the liberals and various forms of progressives—the self-description, we are progressives—believe in, Dugin also rejects that entirely.
- 7.72 Now, another major doctrine about the trajectory of history has been a totally decline doctrine. There was, back in the good old days, the golden era, where everything was made perfect and beautiful, but then humans came along, made mistakes, committed sins, messed things up, and the entire history of the humankind is one of decline, and things are just getting worse and worse until ultimately we're going to sink into insignificant.
- 7.73 Neither of those is what Dugin advocates. Instead, he cites Oswald Spengler, Carl Schmitt, Ernst Jünger, Martin Heidegger, Arnold Toynbee, and the Russian thinker, Danilevsky. Now, all of these, except for Toynbee, are fascist authors, 1920s Germans, and again, except for Danilevsky. But Oswald Spengler, with *The Decline of the West*, having an organic and cyclical understanding of the way societies go.
- 7.74 They all go through a life cycle—birth, growth, maturity, decline, death. And then some other culture rises up. It has its moment in history, but the same cycle. So rather than, when we step back, seeing all of history as either decline or progress, it is simply a matter of different societies rising and declining, rising and declining. And so we have a curvy wave graph of history at work. And the same thing is going to happen now that liberalism is dying. Russia should be entering into its growth phase.
- 7.75 More attacks on liberalism here. It's very common now in the 20th century to beat up on the fascists and the National Socialists for starting the war, the Holocaust, Auschwitz, systematically trying to exterminate millions of people and succeeding in doing so. It's fashionable toward the end of the 20th century to beat up on the

communists for having their death camps in Siberia, the terrible famines that occurred in China under Mao Zedong Cultural Revolution, Great Leap Forward, and and so forth.

- 7.76** But from Dugin's perspective, the West and the liberal West is no moral saint, and it's not in any way morally superior to those bad things that were done by the Nazis and the communists. "It is responsible for slavery." Slavery is the fault of liberalism. "It destroyed the Native Americans in the United States." It dropped atomic bombs on Japan. It is responsible for the wars in Serbia, here referring to the Balkan Wars, early 1990s, the attacks on Iraq, Saddam Hussein after 9/11, fighting against the Taliban in Afghanistan, also after 9/11.
- 7.77** That's all America's fault, and America is a representative of liberalism. Those are all the fault of the West. But at the same time, as dark as all of these events have been in the 20th century, they are making things in some sense worse and worse, and that shows that the end times are getting closer and closer. The concept here of eschatological, the ultimate, the theory of the end times, making sense of what's going to happen. "The end times and the eschatological meaning of politics will not realize themselves on their own." In fact, with our ideology, we are bringing it to the fore.
- 7.78** Now, against the postmodern world. Right now, the modern West has come to dominance, but it, as a result of its internal failings and contradictions, has become postmodern. So the postmoderns, as a decadent, nihilistic, skeptical, relativistic, "we hate our own society" kind of movement, is a sign of decadence within the West that we can celebrate.
- 7.79** But there still is a problem for us outside of the West because, at least during the early part of the century, there was a three-way battle that was going on. There was not this monopoly of power dominated by any single one of them. Then the fascists and the National Socialists were defeated. Then it came a two-way battle between the Soviet Union and the United States of America. That was full of conflict and so forth, but there was some wiggle room for everybody around the world.
- 7.80** But now that the United States and liberalism have triumphed, we, in effect, have a monopoly on global affairs, and that is bad. Instead of a bipolar world or a tripolar world, we have a one-polar world, and that means one great power is in a position to assert its intellectual, cultural, political dominance on the rest of the world. And the nature of power is that it will do so.
- 7.81** "The current world is unipolar, with the global West as its center and with the United States as its core." And you'll notice the title of this subject. This is an evil. This is not just bad, it's not just undesirable. This is evil. This is the great Satan, and the United States is going to be it. "Geopolitically, it is the strategic dominance of the Earth by the North American hyperpower and the effort of Washington to organize the balance of forces on the planet in such a manner as to be able to rule the whole world."

- 7.82** America wants to rule the whole world. It wants to impose its agenda on everybody else, all of these other cultures that are out there, "in accordance with its own national imperialistic interests. It is bad because it deprives other states and nations of their real sovereignty." What we should be doing as organic relativists is recognizing that every culture, every ethnicity, has a right, so to speak, to its own internal developments, to do things its own way.
- 7.83** But what the West and the liberal West wants to do is to say, oh, we don't like how you treat children. We don't like how you are treating these minority groups. We think you are too dictatorial or over here, and we start then to influence them. Sometimes we send in the troops to say, "What you're doing is so bad that we just have to stop you from doing so, and we're going to make you do things our way." That's a moral and political imperialism that goes against the cultural relativism that Dugin is in favor of.
- 7.84** "When there is only one power which decides who is right and who is wrong, and who should be punished and who not, we have a form of global dictatorship." The United States is a global dictator, and dictatorship is not acceptable. "Therefore, we should fight against it." So the number-one enemy in the world is the United States of America, and we need to go to battle against it.
- 7.85** "If someone deprives us of our freedom," in this case, we are Russians. We have our own ethnicity, we have our own religion, we have our own political way of doing things. We are communal. We're not interested in modernization and technology and liberating women in the way the West talks about, and universal human rights. That's not us. If you try to stop us from doing things our way, that is a violation of cultural relativism and should be fought against this.
- 7.86** "If someone deprives us of our freedom, we have to react, and we will react. The American Empire should be destroyed. And at one point," there's a necessary march of history here, a necessary development, "it will be." America is going down.
- 7.87** Now, that's to talk geopolitically, but we need to integrate the religion and the religious language. This is not simply a secular political doctrine. It is also a theological doctrine. "Spiritually, globalization is the creation of a grand parody, the kingdom of the Antichrist," so that we're all going to become liberal. We're going to respect individual freedom and rights to life, liberty and the pursuit of happiness everywhere. We're going to get rid of all of the trade barriers and let people trade with each other all over the world, free trade and international commerce. That is the Antichrist at work.
- 7.88** "The United States is the center of its expansion. American values pretend to be universal ones," but there are no universal values, only culturally relativized. Now, that then is to say, there are lots of traditionalists and anti-Americans outside of America and lots of anti-liberals outside of the liberal West. But also there are a significant number of traditionalists and anti-liberals inside the West. Dugin is offering an olive branch or a kind of alliance with those who are willing to join in that crusade.

- 7.89** "All traditionalists should be against the West and globalization. So traditionalists and partisans of traditional principles and values should oppose the West and defend the rest, if the rest show signs of the conservation of tradition." Even inside the West, as he goes on to say here, there can be and there really exist people in the West, and even in the United States of America itself, who do not agree with the present state of affairs and who do not approve of modernity and postmodernity.
- 7.90** So there are significant minority intellectuals and cultural traditions inside the West that are very conservative, very traditionalist. They will say, of course, we reject postmodernity with all of its nihilism and skepticism and relativism. But we also think the modern world is a giant mistake. When the modern world broke with its traditional past, the traditional religious values that used to have preeminence in our culture, that was a huge mistake. And so within the West, there are those who say we should go back to, so to speak, the good old days, and reject modernity and the Enlightenment.
- 7.91** Dugin is saying, you are my allies. You are Russia's allies, and I am reaching out to you. "They are defenders of the spiritual traditions of the premodern West." Old-time religion, old-time culture, old-time traditions. "They should be with us in our common struggle." Putting this all together, hopefully in a big package, as Dugin wants, "It is time to engage in a deep revision of the illiberal ideologies of the past." So illiberalism is not a bad word.
- 7.92** Liberals will say, "Oh, the bad old days, back when everything was so dictatorial and conformist and controlling and so on. Now we have freed significant numbers of the people." Now, liberalism is the bad word, and that means we have to go back to what have been apparently confined to the dustbins of history, take out the old illiberalisms and find what's good in them.
- 7.93** "What are their positive sides?" What's good about the illiberal doctrines? Well, they are anti-capitalist. Capitalism is bad, evil. They're anti-liberal. Liberalism, as we know, is bad, evil, as well as anti-cosmopolitan. The idea that we can celebrate all different cultures and have souvenirs from all of our world travels and live here, have our summer home here, vacation over there, mix and mingle ourselves as we wish, all that cosmopolitanism. That is wrong. And of course, anti-individualist.
- 7.94** And the fourth political theory then is going to be an integration of all of those antis. Communism has its good points. We will take those. National Socialism and fascism have their good points. We will take those. As long as we remember that we are not racist at all about it, and we're not saying that our Russian way of doing things is better than the other ways of doing things and so on, that is improper.
- 7.95** What we call the fourth political theory, summarizing here, we need to free socialism from materialism and atheism. That is to say, socialism as an economic doctrine, yes, but not the Marxist form, essentially. And we have to get past the racism that was built into, especially, the German form of National Socialism, that form of fascism. We can

get rid of that fascism, retain the rest of it. Then "we arrive at a completely new kind of political ideology."

7.96 It's interesting. It's a completely new political ideology, which we call 4PT, or the label that he prefers, National Bolshevism. The Bolshevism capturing the communist roots, the Marxist roots, the national part capturing the fascist National Socialist part. So, that is the new integration. That's just the first step. Those are all, by and large, modern non-religious ideologies. They're not particularly religious. We have to explicitly add the religious elements.

7.97 This comes out of the premodern theories or ideologies, Christianity, Islam, Buddhism, Jewish, Hindu, citing the major ones. We need to go into those spiritual traditions and pull out the best from within them. All of them are very concerned with a more communal, collective notion of service and sacrifice. The idea that much of the materialistic world is a source of temptation, that people will sell out to sin, and that will lead to various forms of depravity. But ultimately, there will be an apocalypse and some sort of end times, and then a spiritual transformation will occur.

7.98 If we can find, by sifting through all of the traditional religious doctrines, that common core, integrate that into 4PT, then we have the right theory. "We propose as a subject of the fourth political theory can be found in the Heideggerian concept of Dasein." Heidegger is the philosopher who has done the most to put all of this together. The concept of Dasein from the German is his concept for being human or human being, a being there, projecting just into reality.

7.99 But it's not an individual that is doing so. "It is a concrete but an extremely profound instance that could be the common denominator for the further ontological development of the fourth political power." We also need to go back to Heidegger, especially, and reincorporate that. At the same time, saying we, we being now Aleksandr Dugin and fellow Russians, we have our Dasein, our way of being a people. But I'm not going to be imperialistic at all about this.

7.100 Every culture and every individual possesses their own Dasein. There are going to be different developments in different parts of the world. "I sincerely believe that the fourth political theory and its secondary variations, National Bolshevism and Eurasianism, can be of great use for our peoples, our countries, and our civilizations."

7.101 Now, in the midst of that sentence, toward the end of the book, Fourth Political Theory, we have a new word that is introduced, Eurasianism. So National Bolshevism, integrating fascism and communism as political ideologies, with some measure of religious eschatology built in. But geopolitically, Eurasianism, and up until the early 2000s, the language that Dugin mostly uses was the language of Russia. It's Russia and its people that have the special historical destiny that is being worked out right now.

7.102 By the time we get to the year 2009, though, Dugin is shifting from focusing on Russia alone, and we'd seen Russia mentioned significantly through the earlier parts of Fourth

Political Theory, but now Eurasianism. So, Russia might be at the center, but there's also European Russia and Asian Russia. There are all of the current societies and nations that are currently buffer zones between Russia and China, Russia and Europe, Russia and America, and so on.

- 7.103** We have a suggestion here in 2009 that the proper ethnos or the proper unit is not going to be Russia in particular, but rather an integration of a Eurasian identity. Then we start to think about Crimea. We start to think about Ukraine, Belarus, the buffer states, Finland, if we go up to the top. Those are all part of the European side of the Russian sphere of influence. If we go to the south, we start to think about Georgia and Chechnya and Azerbaijan. Those have traditionally been part of the Russian sphere of influence, and were formerly part of the Soviet Union. Kazakhstan, as we go further east, Tajikistan, Turkmenistan, and so forth, Mongolia.
- 7.104** So if then we don't say it's only Russia, but rather a Eurasian political zone, that's what we are thinking about. And I think what Dugin is clearly indicating is, the future, at least in geopolitical terms, that he foresees is, there are not only going to be four political theories, but probably there will be four geopolitical zones that are in contention with each other.
- 7.105** Of course, far to the West, we have America and its zone, the Americas and then its various allies. We see in Western Europe, the attempt to put together a European Union, the idea America has 50 states that form an American Union. Well, there's roughly 50 countries or so in Europe, and they recognize that individually, they can accomplish less than, if they can integrate all of those 50 or so into a political and economic unit, they can contend more seriously on the world stage.
- 7.106** If we go to the Far East, China is giant, and it has, of course, its zone, all of the Southeast Asian nations, Mongolia, and it's not going to go away either. So the Americas, the Western Europeans in their union, the Chinese and their sphere of influence, Russia will be the fourth, and it will have its Eurasian zone as well. And that's likely to be the geopolitical alliance for the succeeding generation.
- 7.107** Nonetheless, those speculations aside, there is one primary target, ideologically. That's liberalism. And one national target, geopolitically, that is America, Dugin calling on everyone to ally with him against those two targets. There are those who are aligned against such a project, this unipolar American liberal world—"those who want to impose uniformity, the one American way of life," that's on one side, "one world, and their methods are force, temptation, and persuasion. They are against multipolarity." For now, we want multipolarity. That's us. Pause there.

Lecture 8: Scruton's Conservatism

At a glance — Roger Scruton's conservatism, closing the survey.

- 8.1** We began this series in philosophy of politics, from the Cold War to after 9/11, by looking at three liberals in political philosophy, Ayn Rand, Robert Nozick, and John Rawls. At the end of this series, we're going to turn to an up-to-date modern conservatism, as enunciated by perhaps the most well respected conservative philosopher and political thinker of our era, Roger Scruton.
- 8.2** But let's assess the world as it is from the perspective of the year 2014. We can divide the world and our concerns with respect to the world from our Western perspective. Roger Scruton is an Englishman or a British man and an advocate of Western civilization. How do things look internal to Western civilization and from what's going on external to Western civilization?
- 8.3** We know there's the rise of Islamism, particularly politicized forms of the religion of Islam, many of them branching out and adopting terrorism as a political weapon. In the year 2014, the Islamic State, one of these organizations, had been very active seizing successfully parts of Syria and Iraq. So a long story here, but nonetheless, a heating-up of worrisome activity in the Middle East, particularly guided by a politicized religion, Islamism.
- 8.4** And 2014 is the year China cracked down on democracy and freedom movements in Hong Kong. Hong Kong had been a British colony. It had received a lease from the Chinese, for a 100-year lease, and as a result of that, transformed Hong Kong into a beacon of liberal capitalism, becoming one of the wealthiest and freest parts of the world.
- 8.5** But then at the end of the 100-year lease, the British returned Hong Kong to China. The Chinese had made general promises to respect Hong Kong's more or less autonomy and integrity. But over the succeeding decades, it is encroaching, trying to bring Hong Kong into the regular Chinese fold, and in 2014, a significant crackdown.
- 8.6** In Russia, now solidly under Putin's control, Russia is becoming more expansionist, making noise and signals with respect to Ukraine and annexing explicitly Crimea, which was at that point part of Ukraine, then becomes part of Russia, then gives Russia a wonderful port in the Black Sea, thereby access to the Mediterranean and much of the rest of the world. Coincidentally, 2014 is also the year Aleksandr Dugin publishes his book on Martin Heidegger.
- 8.7** So, lots happening. If we start to focus internally on developments inside the West, how are things going? The West is liberal, it's partly conservative, it's democratic, it's republican, it's free-market, it's capitalism. All of this has been developing for some centuries. How do things look in the year 2014, and there are some significant

developments, some of them quite worrisome from the perspective of many liberals and almost all conservatives.

- 8.8** This is a chart. By the time we get to 2014, we are well into the internet age. We are well into the era of sophisticated software, including software that can scour the entire web and do word counts about what words are being used the most. This is some work done by the data scientist David Rozado. Very interesting work that he is doing, looking at major media in the United States.
- 8.9** If we look at the New York Times, the Los Angeles Times, Washington Post, Wall Street Journal, the largest of the newspapers, and we just, every year, do a count of all of the words that they use, how much do they use this particular word that we are interested in? So in this case, we take the word racist, racism, and the related fields, and we go back to 1970. And how many times does that word or combination of one of those words appear in the New York Times, Washington Post, both put them all together?
- 8.10** And of course, racism is an ongoing issue. So there's discussion, 1970, 1980, a bit of an upspike in the early 1990s, and it goes back early 2000s, down into 2010. Suddenly something happens around the year 2014, just takes off. Suddenly, all of the major newspapers are very interested in talking about race, racism, and so forth. There's been a cultural shift.
- 8.11** Now, does this cultural shift mean that suddenly everybody in America is talking about racism? There's a huge amount more racism, and the newspapers are reporting this change of activity? Or is it that newspapers are run by well educated people who come out of universities with an ideology, and in their ideology, race and racism are central. So they want to talk about race and racism a lot, and that's why we're finding this talked about a lot.
- 8.12** If we change from race and racism, if we turn to sex, sexism, and add the concept of misogyny, obviously, things we talk a lot about in the course of the West, 1970, uptick again in the early 1990s, then down, bit of a spike around 2008 and '09, down again. But again, around the year 2014, huge increase in those words in those newspapers.
- 8.13** Transphobe and transphobic, not very much discussion of those at all. Starting around 2010, a bit of a blip, but then huge after 2014. White privilege, not very much at all until blip around 2010, down again, again, a huge upsurge. So signs of cultural and intellectual shift, perhaps transformation going on inside Western civilization. These are four American newspapers, but the same pattern is repeated in newspapers all across the Anglo world, Canada, Britain, Australia, New Zealand, and so forth.
- 8.14** So what is going on inside Western civilization? If we put all four of them together, we see there's a common pattern, visually identifiable. It's also in the year 2014 that Roger Scruton, the well-known conservative intellectual, professor of philosophy sometime, columnist, lecturer, publishes a second edition of *The Meaning of Conservatism*. What

does conservatism mean? And particularly, what does conservatism mean in the modern world, and now in particular, the contemporary world of the 2010s?

- 8.15** This is a book that he had originally published in 1980 when he was a younger but nonetheless mature scholar, and now 34 years later, he has revised some things, but is publishing the newest version. Now, Scruton was old enough to have, as a young man, lived through the student revolutions and student revolts and street riots and campus unrest of 1968. He spent time in Paris, the same Paris where Jean-Paul Sartre, Simon de Beauvoir, Michel Foucault, various postmoderns were active.
- 8.16** He experienced that then firsthand, but his reaction was different from most of his fellow students. He felt himself to be an outlier. "I had witnessed the student revolution in Paris, had lived through its effects in the universities where I studied and taught, and had rebelled against the prevailing ethos of rebellion." 1968 stands for a rebellion and perhaps even a hopeful revolution of many, particularly those on the left and far left, against existing Western civilization, hoping to transform it into something else. And Scruton is a rebel against the rebels. He is a conservative.
- 8.17** But half a century later, after 1968, almost 2014, what is his assessment of the world? And there, intellectually, and in terms of cultural activism, suddenly critical theory is everywhere on campuses, and spilling out into mainstream intellectual life. The postmoderns, everyone has heard of Michel Foucault and Jacques Derrida in the academic world, and their influence is spilling out into cultural life.
- 8.18** Everybody knows the phrase social justice warriors. And warriors is, of course, a quite militant label. It's not just we have ethical and moral concerns and we want to reform society. We are at war. Political correctness, a phrase that comes out of Marxist doctrine but is adopted widespread inside Western discussion. This new concept of the woke, as a cultural, moral political framework and activism with respect to it.
- 8.19** Now, those are quite divergent in some respects, but that they are all active and interacting with each other around the same cultural moment is striking. And Scruton's question then is to say, of course, we have all of these external problems to worry about, but perhaps the more serious problems are our internal problems. Will Western civilization not die because it is conquered from without, but because it commits a kind of suicide and lets its internal enemies destroy its very foundations and the good things that Western civilization has achieved?
- 8.20** That's his question. Is it too late? I want next to turn to the book, *The Meaning of Conservatism*. Read what conservatism is in Scruton's philosophical perspective, but also he is now, as an older scholar, having lived through half a century of theory, debate with his fellow academics from various perspectives, but also a close observer of what's going on in practical politics. What does conservative mean in 2014? In the 2014 preface, a couple of remarks on, this is now a long-lived book, and Scruton has not found it necessary to change very much at all.

- 8.21** So we have an introduction for it. And here, once again, I was there in 1968 in Paris during the most famous of the revolutions, and I rebelled against the rebellion. I am not a revolutionary. I am not a rebel. I am a conservative. "The experience had convinced me, first that I was a conservative," a moment of self-realization. "And secondly, that conservatism is not about freedom, but about authority."
- 8.22** From the perspective of the students and the other rebels in 1968, they are trying to free themselves from what they take to be an oppressive system. They want to break free. The kind of freedom that they engage in seems to be anarchic, willing to destroy huge amounts of property, huge amounts of civility, even damage other human beings in achieving their so-called freedom. But whatever conservatism is then, it cannot be about freedom.
- 8.23** My project then came to be this. "I sought to distinguish conservatism from economic liberalism, and also to counter the Conservative Party's emphasis on free markets and economic growth." So the freedom that we're talking about, it not just is the freedom that leftist students and leftist activists see as freedom from capitalist oppression, but rather the kind of freedom that the capitalists themselves talk about, that we should be economically liberal, leave individuals free to make their own careers, trade with whomever in the country and around the world.
- 8.24** Capitalism, which is another name for economic liberalism, Scruton thinks, needs to be distinguished from conservatism. The Conservative Party, by which he means—this is now the 1980s. Margaret Thatcher is to become the Prime Minister, and the Conservative Party has a lot of traditional conservative elements, but is increasingly also in favor of free markets, economic liberalism, and so forth. He thinks the Conservative Party is also going in a mistaken direction in that respect.
- 8.25** So what is conservatism if we separate it from this student radical left conception of freedom, as well as from this economically liberal conception of freedom? "Conservatism, as I describe it, involves the attempt to perpetuate a social organism." It's an organic. Society is an organism. "Through times of unprecedented change, organisms can be cured by growth, but they can also be killed by it. And that briefly is what we are now witnessing, not only in England, but throughout the Western hemisphere."
- 8.26** The organism that we call Western civilization is under attack externally, the enemies that want to kill it, but it also has internally any number of self-destructive enemies that want to kill it from within. So we are fighting for our lives. Now, who are the great enemies from the conservative perspective? Well, one of them certainly is Marxism, intellectually, and Marxism as it has been applied. So I take up socialist ideas, particularly in their Marxist form, and as a conservative, I need to argue against those.
- 8.27** He points out, in the late 1970s on into the 1980s, in Britain, in universities, everybody basically is a socialist of some sort, and a significant contingent of them are Marxists. "It

should be remembered that at that time, the late '70s, socialist and Marxist ideas were orthodoxies in the universities, and indeed, that it was almost unheard of for anyone openly to dissent from them."

- 8.28** So one question then is going to be, if the best and brightest of any given generation go off to university to get their training and what their philosophy of life is and what their professional skills are going to be, if an entire generation is basically educated in the 1970s and '80s in Marxism and socialism, then 20 years later, 30 years later, when they are mature leaders of the major organizations, political organizations, business organizations, other cultural organizations, what should the effect of their university education be on the broader culture? From the 1980s, adding 20 or 30 years is going to take us to the 2000s.
- 8.29** "My own college, Birkbeck College in the University of London, contained, to my knowledge," this is a charming anecdote, "only two conservatives," myself and the tea lady, whom she said was a very nice lady from Naples, apparently a strong Catholic, such as her act of rebellion was to have a picture of the Pope on display on the wall behind her as she's serving tea to all of the Marxists and the socialists. So it was Scruton and the tea lady doing battle against that.
- 8.30** Now, it's not only, though, the Marxists. "This idea of natural rights, natural justice, are by no means the invention of liberal political theory." Outside, of course, the academic world, we still find lots of intellectuals and thoughtful people who are liberal in the traditional British sense, liberal in the traditional American sense. And they will be anti-socialist, anti-Marxist as well. They're talking about human nature and the idea that the fundamental normative principles of justice and liberty are the natural rights that all human beings have.
- 8.31** This also is a widespread language, but Scruton is going to be opposed to it as well. Here's his way of describing this. "That there are natural rights existing objectively and independently of any positive law which might otherwise be held to have created them, is a disputed thesis of philosophy." Of course, there's been long disputes written about this, and Scruton is taking the skeptical side with respect to them.
- 8.32** What we mean by a positive law, these are the laws that are made up by the government, by the legislature and various executive branches and so forth. But in liberal political theory, the idea is that those are based on human nature and certain natural normative principles, that everyone is born free, everyone is born equal. There is an objective conception of justice with respect to human affairs, and that the government, when it goes on to formulate its positive laws, should be respectful of these natural laws.
- 8.33** Now, what exactly are these objective natural laws? Big debates among the philosophers, of course. And Scruton is saying, I'm with those who say, those things do not really exist. As a piece of evidence, he will say, "The latest attempts at the

enterprise," who are the great liberal thinkers of our recent era—he mentions John Rawls, Robert Nozick, whom we spent some time with earlier. So they are both liberals, although they take their liberalism in very different directions.

- 8.34** But if liberalism was a coherent doctrine, we should be able to specify what these natural objective facts are. But even the liberals themselves can't get their acts together, so to speak, and agree on what this is. That shows that maybe we are dealing with a fiction. So the differences between those two liberal schools "shows how far philosophers remain in disagreement," even the liberals themselves, "both as to the content of our," putting in scare quotes, "'natural rights'," or so-called natural rights, and what political system should secure them.
- 8.35** So, socialism and Marxism, especially problematic. Liberalism, problematic. Another important concept in our modern Western lexicon, democracy. That we should be democratic. "Democracy is as contested an idea as natural justice." What do we mean by democracy? The will of the people? Or does that mean all of the people or some of the people? We talk about majority rule. We talk about saying we have an American system, for example, elections, but it's very indirect democracy. At the presidential level, we elect electors who then go off and actually elect the president formally.
- 8.36** So all of these different models of what democracy means, many of them are in conflict with each other. We're also supposed to believe in individual rights, the rights to life, liberty, and the pursuit of happiness. But what if the majority or even a supermajority rejects the liberty rights of some individual? Does democracy trump individual rights? We're all still trying to work all of this out. Maybe this means that democracy is not such a deep concept as we sometimes think it should be.
- 8.37** The way Scruton puts that point toward the end of this paragraph is to say, "It may be that we esteem democracy not as an end in itself, but as a means to other things which could, in principle, be achieved without it." So one way of thinking about democracy is to say that democracy is a process. We're going to let everybody participate in this process, have lots of discussions, and then we are going to vote, and then we're going to do it all again, three, four, five years later, and again, and again. So it's really a process.
- 8.38** But wherever the democracy goes, wherever the will of the majority seems to be over time, it just is going to go wherever it is. We don't have any end in mind. The democracy is supposed to take us here, or democracy is supposed to take us there. Democracy could take us anywhere. It's simply a process that we are committed to. This is the right way of doing things, independent of any particular content.
- 8.39** If that's how we think about democracy, then, well, do we want to just say anything goes, that democracy could take us anywhere? Could democracy take us back to slavery? Could democracy, we could decide 51% of the population is male, and they're going to vote away all of the rights of the females? That's OK? No.

- 8.40 Maybe we have some other ends in mind, some other really important political values, and we just think that democracy is a useful means of getting there. Maybe it's better than various other alternatives. But if it turns out that democracy is not going to get us where we need to go, then maybe there are other methods that we need to consider to get us where we really think we need to be. So, democracy, another fraught concept.
- 8.41 Now, another thing that's part of conservatism, and importantly so for Scruton, is that conservatism is not ideological, doctrinaire, definitional, or precise. One of the marks of modern political philosophy has been the idea that we know for sure and absolutely what the truth is. If we are liberals, we will say individuals are sacrosanct. Individual rights are universal and unalienable. We know this, and we precisely define those individual rights. You have the right to life, the right to liberty, the right to property, the right to free speech, the right to freedom of religion.
- 8.42 Then very precisely, the judicial system has to follow these rules of procedure. We're bringing in, of course, forensic science to back all of that up. We want to define our principles as clearly as we possibly can. The socialists want to say, also, we are definitely going in a certain direction. We know what is moral, we know what is immoral. We know that there is a march of history. Karl Marx spoke about the iron law of necessity, or iron necessity, and the laws that are captured there. This is a social science, and the best social science and statistics can properly analyze where society is and give us the right prediction for the future.
- 8.43 Conservatism, though, is not like that cognitively or epistemologically. "Conservatism may rarely announce itself in maxims, formulae, or aims. Its essence is inarticulate." That is to say, we can't put into words what the essence of conservatism is. "And its expression, when compelled, skeptical." It's more likely not to say, this is what we are for, and we're going to fight for what we are for. It's more likely, we know the enemy when we see it, we know what we are against, and then in a reactive fashion, we're more likely then to get our act together and fight against someone else's agenda.
- 8.44 That's the nature of conservatism. But don't ask us for a precise verbal definition or a formula. I'm just going to go on to say, this is partly why perhaps conservatism is at a rhetorical disadvantage, because the liberals and the socialists, they've got all of their great rhetoric. This is what we stand for. This is our banner. We've got slogans, we've got definitions and formula, lots of them that are easily marketed to the masses, to rally large numbers of people behind them.
- 8.45 Conservatism doesn't do that, so it's very hard to say, "Let's get it together, guys, and just conserve the system and not be too radical." It doesn't have that same rhetorical feel, so this is a problem. Nonetheless, it is better. And one of the arguments he makes is that, despite the rhetorical success of liberalism and socialism, they have nonetheless caused disaster.

- 8.46** Look at the great wars that were fought across the 20th century. World War I, the liberal democracies against the more authoritarian empires in the East. Capitalism versus socialism versus fascism and so forth. All of these ideologies with their very precise doctrines, rallying millions of people and causing tens of millions, actually, into the low-hundreds of millions of deaths.
- 8.47** "The 20th century," this ideological century, "is memorable for nothing so much as its violence, and the attempt to understand this violence has brought with it the rise of political ideology. As the ignorant armies clashed in the night of Europe, the rumor spread that there were causes for which they were fought, causes such as 'equality', 'freedom', and 'social justice'." Again, the scare quotes.
- 8.48** Now, this is an interesting passage for another reason. One is that many commentators have said the modern world, particularly as the modern world developed, had become a more ideological era, partly because perhaps we became more literate, we became more rational, we became more scientific, we started to think more big-picture, more people doing so. And that is when we start to think about political and social and cultural issues, means we become more ideological.
- 8.49** The vast majority of us are no longer slaves or serfs or otherwise peasants, most of whom are illiterate, just going along with the rhythm of the centuries, doing whatever they are told in the old-fashioned way. We start to take ideas seriously and to put those into practice. One interpretation then of what happened in the 20th century is that, in the modern world, we developed all of these ideologies. Many of those ideologies contradict each other or are in conflict with each other.
- 8.50** When large numbers of people in different nations are committed to those ideologies, and the whole social and legal system is based on those, then in the international sphere, they're going to start to conflict with each other. If those conflicts can't be resolved diplomatically, then they are going to go to war. Ideology then is the cause of all of the war that is going on in the 20th century.
- 8.51** But notice the way Scruton phrases it. He phrases it that ideology seems to be more after the fact. First, nations are going to war for whatever reasons, and then after the fact come these ideological labels. So the way he puts it, for example, when he says, "The ignorant armies clashed in the night of Europe." So the war is underway. Why are we fighting? I don't know. That's ignorance. We're just fighting for whatever reasons. It's not that we're on behalf of some ideology or other.
- 8.52** "As the ignorant armies clashed in the night of Europe, the rumor spread that there were such things as causes." So, after the fact. The earlier sentence, "The attempt to understand this violence has brought with it the rise of political ideology." So all of the violence is happening, and the ideology comes along afterwards to try to explain the violence.

- 8.53** Now, this is a fascinating thesis about the philosophy of history, and I just commend it to your further thought and attention, early in *The Meaning of Conservatism*. There's something about the modern European mind, especially, where now that we are more intellectual, we want to have these formulas and knowledges and ideologies. "The European mind seeks for a deep description of its politics." We want to know why, why, why, get down to the fundamentals.
- 8.54** And that is a modern phenomenon, "which reflects its real predicament, but which remains uncontaminated by the day-to-day. Socialists and liberals have contended for this mind, each claiming to provide the system of principles with which to pass from policy to doctrine and from doctrine back to policy." They are the intellectuals, they are the ideologists, they are the ones who think we can and should figure out the way the world works ideologically, transform the world in light of our ideology, and then, of course, that ideology—the transformation in practical reality will reinforce our ideology.
- 8.55** That is totally alien to the conservative mindset. "Conservatives, who see value in prejudice and danger in abstract thought." How often has the mantra been, in the modern world, "don't be so prejudiced"? Prejudice is a dirty word. You're not supposed to just unthinkingly reflect whatever you happen to have heard, how you happen to have been born. You should think through everything, consider alternative ways of thinking about things, different ways, possibly, of being, and then come to a reflective judgment in an abstract, consistent way.
- 8.56** That has led to disaster. Prejudice is better. "The danger in abstract thought." We fly up to big words and big systems. We get away from the rooted, where we find ourselves, and so forth. The problem then is that the conservatives feel some pressure. What is this conservatives ideology, this conservative doctrine? They come up hesitantly with stuff that nobody is really particularly satisfied. "They express their beliefs in vague and conciliatory language. However, neither the socialist nor the liberal can be appeased. Their bigotry"—they really are the bigots. "And there is no greater bigotry, I shall suggest, than the bigotry of liberalism."
- 8.57** Pausing here for a moment. This is interesting that the entire history of liberal thought, the enemy has been bigots from their perspective, a kind of prejudice. Our way is just automatically the better, and I can impose my way on the rest of the world. The liberals say, no, you don't do that. Leave individuals free to go their own way, be tolerant of differences, etc. Don't be a bigot. But nonetheless, in a perhaps not obvious way, Scruton is saying, the liberals themselves end up being the biggest bigots.
- 8.58** "It permits," and it's interesting, he doesn't say the socialists are the biggest bigots. In this score, the liberals are worse than the socialists. "It permits no conciliation, while their statements seem clear, definite, and founded in system." So the conservative temperament now, and maybe we shouldn't call it a political system or a political

ideology. It's a prejudice, it's a sentiment, it's a felt way of being. So who is the great enemy of conservatism?

- 8.59** "Their characteristic and most dangerous opponent is not the radical." By here, radicals, we typically mean far left kinds of radicals, "who stands squarely against them, armed with myths and prejudices that match their own." I'm going to pause there, right there. Notice this language here. We conservatives have our myths and prejudices. I will admit this up front, he will say, he being Scruton.
- 8.60** Now, we're talking about objective truths and reflective post-judgments. I have prejudices, I have my myths, but the socialists also have their myths and their prejudices. Every group has its own myths and prejudices, and it's just contending myths and prejudices, not fact versus falsehood, or truth versus fantasy. But worse than the radicals who have their own myths are the reformers. The radicals want to change everything. The reformers want to do it step by step, piecemeal.
- 8.61** "Who, always acting in a spirit of improvement, finds reason to change whatever he cannot find better reason to retain. It is from this spirit of improvement," the idea that we can make the world a better place, by constantly improving at the margins and sometimes significantly, this is "the legacy of Victorian liberalism," Queen Victoria, 19th-century Britain, "and social Darwinism."
- 8.62** The theory that says Darwin's theory, crudely put, survival of the fittest, brutal struggle for resources, the strongest are going to prevail over the weaker, thereby improving the species. If we apply that to social things, we take this Victorian liberalism and social Darwinism, and we think society is capable of indefinite improvement. That is the great enemy of conservatism. "Modern socialists and modern liberals continue to derive their moral inspiration." They are reformers, and that's the worst enemy of the conservative.
- 8.63** So what is this conservative stance? "Conservatism is a stance that may be defined without identifying it with the policies of any party." Conservatism is used often for local concerns. Conservatism means what these conservative parties in the 1970s and the 1990s stand for. Instead, it is going to be something that is relativized, because there's lots of conservatisms depending on what your cultural and political tradition is. It's not to be identified with any particular party with its particular platform as well.
- 8.64** He then goes on at this point to criticize the Conservative Party, starting in 1980s with the rise of Margaret Thatcher. But also this carries on, he thinks, as we get into the 20-teens and current Conservative Party incarnation. "In recent years, the Conservative Party has often seemed to be about to break with its tradition." Well, what traditions? "It has joined in the competitive market of reform, endorsing the delegation of power, the code of economic internationalism, the free market economy, which it once so strenuously opposed."
- 8.65** The tradition of conservatism in Britain had been to be opposed to the free market. To be in favor of a strong national economy with significant government direction,

significant tariffs, which are taxes against imports and exports, import and export regulations of various sorts. But what we find now is that the Conservatives Party is breaking with that tradition and starting to become more cosmopolitan, more free market in its organization. So it has sold out from this perspective to the economic liberals.

- 8.66** It has also sold out to the socialists. The liberals emphasize freedom, the socialists emphasize equality. The tradition of conservatism had been to say, look, some people are smarter, some people are better people, morally, in various ways. And whatever our nod to democracy is, nonetheless, England has a tradition of hierarchy. And that hierarchy has served England and maintains its stability across many centuries. Let's not get rid of all of the hierarchical elements in our society.
- 8.67** But the Conservative Party is caving on this. The claim is, "It allowed during its recent 18 years in office, the continued subjugation of educational, social, and legal institutions to the egalitarian ideology associated with socialist planning." So the socialists are pushing to get rid of all privileges, all hierarchies, make everything much more egalitarian, and the conservatives have adopted then a significant amount of that. And then from the liberals, their emphasis on freedom, we've adopted a significant amount of that. We are then gutting internally the traditional principles of conservatism.
- 8.68** "Most of all," and this is the problem, the worst problem of all, "it has begun to see itself as the defender of individual freedom against the encroachments of the state. Concerned to return to the people their natural right of choice and to inject into every corporate body the healing principle of democracy." Wrong, wrong, wrong. These are just passing fashions. Individual freedom, that is to say, rights of choice, democracy, passing fashions, well meant, not always misguided, but by no means the intellectual expression of the conservative point of view.
- 8.69** "The result has been either transitory or unmeaning urges to reform, or else the wholesale adoption of the philosophy which I shall characterize in this book as the principal enemy of conservatism." Now, all of these enemies that I have identified so far, which one is the worst of the worst? "I shall characterize in this book, repeating, the principal enemy of conservatism, the philosophy of liberalism."
- 8.70** And liberalism, as we know, Ayn Rand, Robert Nozick, John Rawls, that is the deepest enemy of conservatism, "with all its attendant trappings of individual autonomy and the natural rights of man." We need to get rid of the notion of individual autonomy, get rid of notions of the rights of man. They don't exist. Not individual, but social organism. Not the rights of man, but they're going to be principles and prerogatives that have developed over the course of the tradition that seem to have served Britain well.
- 8.71** Special criticism for Margaret Thatcher in the 1980s. "During the years of Margaret Thatcher's governments, we were encouraged to see national politics, indeed

international politics, in terms of some wholly abstract conflict between freedom and totalitarianism." So the Cold War, and we're on the side of freedom. The Soviets are on the side of authoritarianism and totalitarianism. Those labels much too abstract, much too general to capture any sort of significance from Scruton's perspective.

- 8.72** That human beings have certain natural rights, and that's what we are in favor of in the West, against a kind of slavery under totalitarian communism. Well, again, much too abstract. Now, these are politicians talking, and politicians don't necessarily use language accurately and consistently and so forth, so we might cut them some slack. Scruton does go on to say that there is something to this tradition. Lots of very smart people have talked about democracy and natural rights.
- 8.73** So, "Properly stated, this distinction need not be naive, and indeed, it has the backing of a whole tradition of political philosophy, reaching from Locke in the late 1600s to Robert Nozick in the 1900s. Moreover, it represents an essential part, both of the rhetoric of American government and of the self-image of American society. This does not show, however, that the distinction can be put forward as though its clarity were immediate."
- 8.74** So even after centuries of liberal political thought, we can't really say that it has been worked out in a way that is consistently understood and can be consistently applied. Freedom, OK, I'm fine with the word freedom, but that always has to be in a localized, particular context. "While freedom meant freedom from communist oppression, conservatives could advocate freedom."
- 8.75** So yes, we are against that particular form of oppression because we know what specifically the target is and what they are doing. We are against that, and we conservatives can join in an alliance with the liberals who are also against that kind of communist oppression. "But with the collapse of the Soviet Empire and the emergence of a left-liberal consensus," and they're all talking about freedom once again in a much more abstract fact, and then the conservatives have to break with their former allies. "The old battle cry does nothing to distinguish conservatism from its rivals."
- 8.76** Now, an example, what then in more concrete should we talk about freedom? Because obviously, the liberals want to say we have this very robust set of freedoms, that we should basically be free in all areas of our lives to do what we want, as long as we're not infringing upon the freedom of other people. So that very general principle gets applied. But conservatives want us to go to specific freedoms and talk about them on a one-by-one basis, not have to buy into this entire so-called freedom package.
- 8.77** So let's talk about freedom of speech from the conservative perspective. "It is obvious that there cannot be freedom of speech in any healthy society, if by freedom is meant the absolute untrammelled right to say what one wishes and utter one's views on anything, at any time, and anywhere." So some sort of absolute and universal right to

free speech? No. You cannot have that. So any of the free speech advocates from the liberal perspective who argue for that sort of thing? No, absolutely not.

- 8.78** Now, liberals working in the free speech tradition had said there are limits to free speech, but only speech that is itself inflammatory and causes obvious harm to other people. Classic examples would be, you've got two guys, they've been drinking at the bar for a certain number of hours. The bar closes at 3:00 in the morning. They're both drunk, but they're also the kind of drunks who tend to get a little bit belligerent. And drunk guys, when the bar close, they start trash-talking with respect to each other, and they start to say various things to each other.
- 8.79** And often the police will, at that point, be parked outside the bar. When they see the guys come trundling out, ready to get into a fight, the police will step in and stop them from engaging it. Now, is that a violation of their free speech rights? The liberals will typically say no, because what you're doing, you're inciting a person, you're dealing with a drunk person, and when you say certain things, it's an automatic reaction. So the appropriate thing is to limit the speech of the drunk guys in that particular context.
- 8.80** Now, we can scale that up to crowd examples. The famous example is the crowded theater example, which came into political and legal discussion after a famous Supreme Court case early in the 20th century. So can I, in a crowded movie theater, where all the lights are off, can I stand up and hysterically shout, "Fire, fire, fire"? And so the idea here is, if I do that, then everybody's going to panic. "What? Fire?"
- 8.81** And we know in a crowded theater, it's very hard for people to get out. People are going to then start trampling over each other and people are going to get hurt. So you can't, and we have to add the qualifier here, falsely shout fire in a crowded theater. And if you falsely shout fire in a crowded theater, and people get hurt, you can properly be prosecuted for that speech that caused damage to other people.
- 8.82** But at the margins, there are cases where speech can be interfered with, but the liberals want to say, beyond all of that, go for what you want. Conservatives, as Scruton wants to argue, want to say, no, no. That is much too liberal, so to speak, and the freedom has to be nested in a concept of public order, proper legal restrictions. Here's how he puts it here.
- 8.83** "For the conservative, constraint should be upheld, until it has been shown that society is not damaged by its removal. Thus, the constraints on freedom arise through the law's attempt to embody the fundamental values of the society over which it rules." So we have a reversal here. What we have then is, the liberal wants to say, people should be free, maximum freedom. And the only restrictions are going to be where it's clear that that freedom is going to cause some damage to other in society. But our preset is freedom with limits.
- 8.84** The conservative says we need to start the other way around. We start from a position of constraint. Society has worked out a set of rules that constrain it and tell us how we

are to operate. Within that set of constraints, society will grant you some freedoms. It's freedoms within a constraining regime, rather than a regime that is tacked on outside a huge zone of freedom. That's the fundamental difference.

8.85 "There is no freedom to abuse, to stir up hatred, to make or publish treasurable, libellous, obscene, and blasphemous utterance. In England, as in every civilized country, there's always a law which forbids the production and distribution of subversive material, the law of sedition." This would apply to perhaps any revolutionary literature, arguing that the current system is entirely corrupt and it should be significantly overthrown. A conservative will be fine with a censorship regime, with respect to those.

8.86 "Now, this law also makes it an offense voluntarily to stir up hatred between different sections of the community." You don't like the police or you do like the police. You don't like this religion or you do like that religion. You don't like capitalists or you do like capitalists. Any group of society, if you are speaking too negatively to the point where we might say hate speech is being engaged in, that also can be restricted by conservatives. What freedom means then for a conservative is this.

8.87 "It is a freedom to do precisely what is not forbidden by law." Freedom is not something that you have before the law and that we jealously guard against, laws that are going to infringe on our freedoms. Rather, we start with a tradition of law, and that set of laws grants you or allows you freedom. "What is forbidden by law records in a long tradition of reflection on the nature and constitution of British society."

8.88 So English common law, drawing all the way back to the Romans, certainly the post-Magna Carta era in the 1200s and on through the centuries. That entire tradition, that is British culture and British law, whatever freedoms are allowed within that tradition that comes first, that is what we mean by freedom. So, "freedom in this sense," Scruton goes on, and this is the only sense that matters, "is not the precondition, but the consequence of an accepted social arrangement."

8.89 Social arrangements come first, freedom within that. It's not the case that I have freedoms, and then we freely create social relationships. We start with two individuals. I suppose we think of a romantic context. They like the look of each other, and they freely choose to interact with each other and then form a relationship. Rather, the kind of relationship that they are allowed to form has been preset by the rules of society. Who can date whom, who can get married to whom, and then individuals are free to operate within that set of principles.

8.90 But there's no freedom trump card that can veto social institutions. Social institutions are prior. "Freedom without institutions is blind. It embodies neither genuine social continuity nor, as I shall argue, genuine individual choice. The concept of freedom, therefore, cannot occupy a central place in conservative thinking." There are lots of other values that are more important than freedom. Those ones we work out, freedom

is on the list, but it's further down the list and needs to be accommodated to those more important values.

- 8.91** "One major difference between conservatism and liberalism consists, therefore, in the fact that, for the conservative, the value of individual liberty is not absolute." Individual liberty is not an absolute, "but stands subject to another and higher value, the authority of established government." Authority first. Whatever the established government is, it comes first, and it is rooted in tradition. The individual accommodates to the established authority.
- 8.92** "Government is the primary need of people subject to the discipline of social membership." The first thing we need is government. That is to say, some external social agency to govern us. I should not be a free and autonomous agent that I will govern myself, and in order to protect me from predators in society, government will act as my agent. That's the liberal way; that's the wrong way of thinking.
- 8.93** "It is through the ideal, an ideal of authority, that conservatives experience the political world." We are subject to authority. Their liberal opponents, whose view is likely to be ahistorically, ahistorical rather, will usually reject that notion as an antiquated survival of monarchical ideas of government." The liberals will always say, "Oh, you conservatives want us to go back to the Middle Ages. You want to go back to theocracy or whatever."
- 8.94** "To put it briefly, conservatism arises directly from the sense," this is not an intellectualized thing, "a sense that one belongs to something, some continuing preexisting social order." If I am an Englishman or if I'm an American, I belong to this tradition. It existed before I did. I came into it. To a large extent, it shaped me. It has its ways of doing things. That's first. That fact is all-important in determining what to do.
- 8.95** This means for political education, for cultural education, other forms of education, this is the important thing. "The important thing is that the life of a social arrangement may become mingled with the lives of its members. They may feel in themselves the persistence of the will that surrounds them. The conservative instinct is founded in that feeling," instinct and feeling. "It is the enactment of historical vitality, the individual's sense of his society's will to live."
- 8.96** It's the society that is the organism, the entity. It lives, it has a certain will. My job is to merge myself as an individual, to feel myself as part of this organism. That is the conservative essence. "Society is more than a speechless organism." We're going to upgrade this organic understanding of society. "It has personality," British character, American dream, etc. "Its history, institutions, and culture are the repositories of human values. In short, it has the character of end as well as means."
- 8.97** It is the end. The individual is not the end. It is the tradition captured in a culture; that is the end. Whatever subordinate institutions we allow, how much equality, how much

freedom, how much democracy, has to serve the ends of the organism that has its own will to live—that is, the culture of which you belong.

- 8.98** "True conservatives have their ears attuned to those principles and try to live, as a result, in friendship with the nation of which they are a part." So if you are inside of a culture, you were born there, you were raised there, or you chose to live there, and you are a radical, and from the inside, you're trying to destroy, you change dramatically its institutions, then you are functioning inappropriately, to put it as mildly as possible, from the conservative perspective. An appropriate person will be doing the opposite, supporting the institution within which they live.
- 8.99** This is the essence of modern conservatism, or conservatism in Roger Scruton's sense as we get significantly into the 21st century. Now, we're still using a pretty broad label, conservatism, and all during the course of this series, we've been using some pretty broad labels. Liberalism, we know there are subschools of liberalism. Socialism, there are subschools of socialism. There are various sorts of fascist experiments and so on. The same is true of liberalism.
- 8.100** And since conservatism is an important part of our lexicon in the United States, in Europe, and all over the world, I want to just indicate Scruton's place with his very prominent form of conservatism within a broader conservative landscape. I've got a chart here that I will commend to your attention. This is just a beginning in becoming more systematic. Perhaps this is not a good conservative thing to do, and abstract.
- 8.101** But any political philosophy obviously has a large number of components, but the conservatives typically will emphasize a certain number of concepts. One has been the importance of religion, particularly religious traditions. So one way of placing a conservative or a conservatism in the contemporary landscape is to ask explicitly, what do they think about religion? What do they think about their particular religion, if they have a religion?
- 8.102** So it's not just religion in general, but my religion in particular. So it might be that I'm a Christian, but also then might be a Catholic or a Protestant. Or I'm a Protestant, I might be a Methodist or a Baptist or a congregationalist. So get as particular as possible. What do I think of the scope? That is to say, how wide in application should my conservative principles be? What is the nature of those principles themselves? If I say conservatism stands for this and it does not stand for that, what is the status of those principles? Are they firm? Are they flexible?
- 8.103** Tradition is another one that is strongly emphasized. What do I mean by tradition? How important in tradition? Can I specify what some of those important traditions are? Some of them might be religious, but many of them often are. And what is my attitude toward change? That is, not everything is completely static. How much change, at what speed, do I advocate, if any change at all?

- 8.104** Now, one prominent traditional form of conservatism I'm going to call paleo-conservatism, with this being the adjective. So paleo means old, in an old time. These are the most traditional forms of conservatism. And there are many conservatives and subversions of conservatives who will answer those questions in the following way.
- 8.105** What do I think about religion in general? I would say religion is absolutely necessary, absolutely essential to the foundation and functioning of any moral society, as a paleo-conservative. My particular religion, I do recognize that there are lots of religions out there. Nonetheless, my religion is the true religion, and other religions represent fallings away from the one proper true version of religion.
- 8.106** My religion is universal. That is to say, it's not just for me and my group. My religion is for all of humankind, and it should be treated as such, that ultimately we want all people around the world on board with our religion. The principles that inform our conservatism are absolute. They are particularly in strong religious form. They are God's pronouncement, and God is absolute. God does not change his mind. So the principles that should inform our moral thinking, our political thinking, also are absolutes.
- 8.107** We have a long tradition that we are trying to conserve. And so when we look back at the tradition that we have inherited and that we now embody in this particular generation, our attitude towards the tradition should be a reverential attitude. Our great forefathers, our great ancestors. The attitude of reverence has a somewhat religious element to it, but not necessarily, because many of our ancestors whom we will revere might not have been particularly religious individuals themselves.
- 8.108** Maybe they were famous political leaders or military leaders or other people who have contributed to our tradition in some significant way. Our attitude with respect to change is to say that we have been changing too much in the modern world. Everything is so different from when I was a child, from my grandparents' time, and if I'm more reflective about it, I will be more likely to say, if we go back a century, two centuries, those were much better times, maybe even before the modern world.
- 8.109** What we should do as conservatives is jettison much of the stuff that has been added on by the recent generations, to go back to the better time in history. Now, that is a bit of a stereotype, but there are many conservatives who represent that conservative stereotype, and those are what we're going to call paleo-conservatives.
- 8.110** Now, by contrast, I want to position Roger Scruton, and we're going to elevate him to an-ism. If you are a conservative who, say, has read Scruton's works and you think Scruton has the right kind of conservatism, there are important differences from that paleo-conservative. Hence, Scruton is a modern and perhaps a contemporary conservative, whatever label one wants to put on. He's a newer form of conservative, not an older form of conservative.

- 8.111** With respect to religion, when you read through Scruton's work, he will say it is important, very important, but I have never seen him say it is absolutely necessary and fundamental to society. Some very successful conservative traditions are not particularly religious. Maybe they are culturally religious, but they are not necessarily robustly religious. My particular religion, well, he's a man of Britain. Britain has been significantly shaped by Christianity, perhaps a broader Judeo-Christian tradition.
- 8.112** But I'm not going to insist on the truth of particular Christian doctrines, the virgin birth, the resurrection, that Moses actually brought tablets down from the mountain and so on. I'm going to say instead, Christianity represents a cultural tradition that's embedded in current British society, and I think that's important, but I'm not going to say that it's absolutely true and say that it's the only kind of religious tradition that can work. There might be other cultural traditions, cultural Hinduism, cultural Judaism, that work in other cultures as well.
- 8.113** The scope, therefore, of my conservatism is not universal. There's no one conservative doctrine, a set of principles that should be applied everywhere. There are different cultures with their different traditions that seem to have worked across the generations, and so there is a kind of relativism. I'm not going to say that we have to take British institutions, British common law, British religion, and impose it on the Japanese. The Japanese have their own great, wonderful traditions. Cultural Christianity and British common law might not fit. Let them go their own way.
- 8.114** With respect to principles, rather than saying our principles are true, fixed, permanent, and eternal, Scruton is much more flexible. We do take seriously traditions and the principles of cultural tradition, but how we apply them is going to be variable depending on circumstances, so we're going to be much more pragmatic. Scruton, as a philosopher, has read the pragmatic philosophers, their epistemological critiques, their understandings of how, in many cases, what is going to work successfully requires that we adapt to circumstances and be flexible. All of that Scruton will endorse.
- 8.115** Instead of revering our tradition with that slightly religious connotation, that I'm almost going to bow down before saints or other revered traditions. Scruton typically uses slightly less elevated language. Tradition is important, and we should honor our traditions and take them seriously as a point of honor. And honor is not quite as reverential as revering is. And then finally, Scruton is not a conservative who says the entire world has been—the modern world, rather, has been a mistake. You think the modern world has done a lot of terrible things, but at the same time, the modern world has a lot of accomplishments.
- 8.116** His primary objection then is not to say that we should take all of modernity and throw it out and try to go back to premodernity, go back to the Middle Ages or go back to whomever. Rather, the problem of modernity has been the rate of change. That instead of slowly, in small, discrete areas doing experiments socially and see how it works out if we change things in this way, and then rejecting that or adopting it and

slowly moving in a particular form, what has been happening in the modern world is that we try to be revolutionary about everything, and we want to change everything.

- 8.117** That's wrong. Let's entirely get rid of it. And then that sets society up for social dislocation. So this is Scruton's version of conservatism. It shares some important similarities with other forms of conservatism. This is only two. You can expand this chart out as much as you want, and I commend that as an exercise.
- 8.118** As we have now reached the end of this series, this is a broadly philosophy of politics. We started, 16 lectures ago, back in the French Revolution and Edmund Burke's reflections on the French Revolution. I wanted to step back and see how far we have traveled and what my objectives have been over the course of the semester. If we just march through, even the first part, we start with the French Revolution and Edmund Burke's version of conservatism.
- 8.119** We have George Hegel and nationalism, Karl Marx and communism, John Stuart Mill's liberalism, William James and John Dewey, pragmatism and progressivism, Mussolini and Gentile, fascism, Martin Heidegger, national socialism, John Maynard Keynes, interventionism or Keynesianism, as we call it, Hayek and Austrian-style Austrianism with respect to free market capitalism.
- 8.120** Now, these are all giants in the name of political philosophy. And one of the objectives is for us as contemporary thinkers to get up to speed on why the giant names in political philosophy are giant names in political philosophy and to make them part of our intellectual furniture. So when people talk about Marxism or Hayekianism, we have some indication of what that means. And they are all famous exemplars of then schools of political philosophy that have an -ism attached to them. So know what all of those different -isms are and how they contrast with each other. And that, of course, is a lot of work.
- 8.121** Now, that took us up to World War II. We started with the Cold War, 1940s and 1950s, Ayn Rand, and objectivism and capitalism. Robert Nozick, and a libertarianism form of liberalism. John Rawls, with his form of liberalism, more amenable to a welfare state. Michel Foucault and postmodernism. Herbert Marcuse and critical theory. James Buchanan, with public choice, Sayyid Qutb and Islamism. Aleksandr Dugin and Make Russia Great Again-ism, if we can call it that. Then finally, Roger Scruton with a contemporary form of conservatism.
- 8.122** Again, a number of giants in political philosophical history, making them part with our working vocabulary in our internal, but standing for a number of isms, some of them drawing on earlier versions, some of them new and original. I've also emphasized putting each of these political philosophers and the movements they represent in historical context. What was their awareness of the history that they were a part of? Their understanding of what was going on in their society that they were reflecting on at the given time?

- 8.123** Then also, what did they project for the future? Instead of seeing simply a set of principles and arguments in collision, what the relationship is between those political philosophical principles and actual practice, and attempts to come up with political philosophies that can then be put into practice to advance society in whatever direction I think is appropriate.
- 8.124** Another thing I have emphasized has been going to the text. It's very useful, of course, to listen to lecturers, give an overview of the history and the context and what this ism stands for and what this person believed and so forth. If you have a professor who is objective, you can get a pretty good understanding of what all of these things are. But there's nothing better than going to the original sources themselves.
- 8.125** These are the great minds in the history of political philosophy. They've all exerted huge influence. The closest you can get to having a one-on-one conversation with them is reading their own thoughts in their own words. Often it is difficult, but that also difficulty is good for the mind. It makes you think. It makes you realize what you know, what you don't know, what is certain, what is uncertain in your own thinking. And by engaging in, of course, learning from, but also being willing to challenge and debate in the course of reading these important people, you learn a whole lot more, but also your mind strengthens. So play, so to speak, against the best.
- 8.126** I want to take a few more minutes to do a slightly more analytical framework with respect to everything that we have covered. We have covered a dozen or more important isms and something close to two dozen important philosophers, political philosophers, along the way, and we've mentioned dozens more along the way as well. That's a huge amount of stuff to absorb.
- 8.127** Lots and lots of issues. Revolutions, the status of women, where does religion go, how should we do our judicial system, under what circumstances do we go to war, et cetera, et cetera, et cetera. All kinds of particular issues, particular packages of beliefs on those with important representatives. But what we often try to do in contemporary discourse is have shorthand discussions, and we want to use political vocabulary in a way that communicates to others usefully.
- 8.128** I want to suggest that, while the terms left and right, which are the most-used concepts in contemporary political vocabulary, they have some targeted specified uses that thoughtful people will not use them very much, except in clearly delineated concepts. As a suggestion, now that we have all of these isms under our belt and all of these important representative people, I want to give some indication of the next step, intellectually, in doing a philosophical politics and coming up with a vocabulary that will suit us better as we do our own thinking and, hopefully, have more fruitful discussions about political matters with other people.
- 8.129** So all of these isms, how do we break them down? What I want to suggest is that the left-right idea, which came out of the French Revolution, and it is a one-dimensional.

We say we have a spectrum, and we say there's the left end of the spectrum and there's the right end of the spectrum. And people on the left end of the spectrum, they believe these things, and people on the right end of the spectrum, they believe these things over here. This is a one-dimensional analysis that had a very specific usage.

- 8.130** When you were in the National Assembly, from the speaker's perspective, there were some people sitting to the left of me, and there were some people sitting to the right of me. And these people were all over the map, but by and large, they believe this set of things, I'm going to call them leftists. And these people over here, all over the map, they believe by and large this set of things; I'm going to call them rightists. And over two centuries later, we're still using left and right, but often in a completely different way from then.
- 8.131** So what I want to suggest is that when we do political philosophy seriously and we start to inch toward trying to do political science, that there's not just a simple one-dimensional thing, package on the left, package on the right, that at least eight or nine questions are asked and answered before we come up with a coherent political philosophy or political system.
- 8.132** First question is, and this is going to be one dimension, how liberal or authoritarian should we be? We can say people should have maximum freedom at one end of the spectrum, or at the other end of the spectrum, they should be maximally subject to authority with no freedom. Then taking any given thinker, or ism that one is concerned with, and trying to place it on that spectrum. But how much freedom or how much authority is one kind of question.
- 8.133** A related question is, who is the object or the subject of your freedom or authority? Do you think society is made up of individuals? That it's individuals who should be free or subject to authority? Or do you think that society is made up of collectives, collections of individuals? People are in a class, an economic class, or perhaps a feudal hierarchical class. Or they are in different ethnicities, or they are members of different religions. And so we take collections and organize our policy in terms of those collections of individuals, and we're not focused on the individuals. Another important question.
- 8.134** In terms of change, are we primarily focused on taking society as it is and trying to conserve it, keep things the way they are? Often that is conjoined with a normative judgment. I think this is the right way of doing society, so I want to conserve it. Or is my attitude that, with respect to a contemporary society, I want to change everything? We need to have a revolution. So, strong conservatism at one end of the spectrum, revolutionism at the other end of the spectrum. This is a distinct question from liberty or authority, and whether you're talking about the individual or the collective. Rate of change.
- 8.135** Another question, in doing our politics, how many people in society should meaningfully be participating in the political process? We say at one end of the

spectrum, we can say there should be one person, one guy, the king, the monarch. He has all the power, he makes all the decisions, everybody else follows along. We might say, well, there should be a group of people, of hopefully the better people, the aristocracy, and they are the ones who should meaningfully hold and exercise power.

- 8.136** Then we can add and say, no, we should at least be the majority or perhaps a supermajority. Now we're starting to talk about democracy. It should be widespread participation of the people in the act of government. Of course, we might then say it should be a unanimous decision, whatever it is, and that would be the furthest. Everybody absolutely, should always have a say and be participating in the process. Again, that's a distinct question from saying what the rate of change should be, whether we're focused on individuals or collectives, whether our political values are more authoritarian or more liberal. Already, we're up to four distinct dimensions to attend to.
- 8.137** What are our values' status with regard to each other? Do we think whatever rules, laws, regulations we're going to have in place in our society, they should be applied equally to everyone in the society? Or do we think that there should be different rules and different laws for different segments of society? That there should be a hierarchy of rules and regulations?
- 8.138** How much power do we think government should have? Whatever goals, we think, it's trying to protect liberty, it's trying to go for equality, it's trying to do this, that, or the other thing. How much power should a government have to be able to accomplish those goals? Again, whether it's one person exercising that power or the democracy, how much power should the one person have or the democracy have?
- 8.139** First, one end of the spectrum, we say, well, no, there should actually be no government power at all. We've not discussed anarchism in this course, and that's an obvious candidate for addition, but there should not be any government at all, no power delegated at all. Or we can say, well, no, government is a necessary institution. We'll delegate a certain limited series of powers to government, police power, court power, military, but nothing beyond that.
- 8.140** Then, of course, we can add lots of, well, the government should do this, it should also do this, it should also do this, all the way to get to the end point on this spectrum, which would be to say, the government should do control, regulate absolutely everything in society. That's how much power. This is the power dimension.
- 8.141** Governments are enacting laws, rules, regulations, statutes, variable names, and so forth. What is the status of those rules, laws, principles, statutes? Are they to be taken as principles that are firm, inflexible, and to be applied? This is the rule. You follow the rule no matter what. Or is it the case that these principles are more like rules of thumb, guidance for citizens and for politicians, and they can be applied situationally,

depending on the circumstances? That's a different dimension from all of the other ones as well.

- 8.142** Finally, I suggest there's at least one more. I don't see this as a close-ended system, as we are now up to speed. Political thinkers and philosophers ask, are there more dimensions that need to be added here? Is it the nature of our political philosophy that we are simply concerned with processes and not necessarily outcomes? Or is it the case that we have an idea of what individuals should be doing with their lives, where society should be going, this ultimate end state that we think the best society is going to be?
- 8.143** That then is to say, we have an outcome that we are projecting, an ideal society, or we think society is necessarily evolving in that direction, but we have that outcome, and we are crafting then our rules and regulations with respect to achieving that outcome. Or do we say, we don't really have an outcome in mind. We don't know where society is going. We don't know where individuals want to go with their lives.
- 8.144** Or more broadly speaking, we don't know where the natural order of evolution is taking human beings. Instead, when we are doing politics, we're just talking about the process. How are we going to govern ourselves or how are we going to be governed? What are the rules of the game, so to speak, going to be? And when we act individually and socially, according to those rules of the games, we can't really predict the results or the outcomes that are going to occur in a generation, two generations, a millennium. We don't really care, particularly, what that outcome is.
- 8.145** Just having the right rules and all of us living according to those right rules, that's enough for political philosophy. Now, that is a lot of work. My suggestion, though, is that the thoughtful isms and the thoughtful political thinkers, this is not just the intellectuals, this is also citizens who take their own self-development seriously, and the development of their own society, that all of us in constructing our own ism and understanding the various other isms with which we can sometimes learn from, but sometimes we have to fight against, that we have to ask and answer at least these eight questions.
- 8.146** And that is then at least an eight-dimensional graphic, which is impossible for the human perceptual mind to grasp anyways. But nonetheless, an eight-dimensional package is what each ism represents. We can go through the list and say there are going to be authoritarian collective conservatisms. Just to stop after the three. But then there's also going to be liberal individual revolutionaries. And that's just more or less arbitrary, to put three concepts together.
- 8.147** But even just with those three, there's lots of other possible packages that are possible. So we're already into several isms. See it as an initial guide, right to the questions. If you are so disposed after reflecting on the great minds in political philosophy and the articulation of a serious number of significant contender isms, enter yourself into the conversation with your friends, with your families, because at least in society, as it is

currently constituted, it is a do-it-ourselves society. The more informed we all are about how to do it well, the better off we will all be. All right, I'm going to stop there.